

State's Witnesses:
KYLE MALDONADO

Report #: IP220111126 Supp#: 001 Agency Name: Indianapolis Metro Police

Area: Metro North District

Date/Time Printed: 11/09/2022 08:44

STATE OF INDIANA, COUNTY OF MARION, SS:

PROBABLE CAUSE AFFIDAVIT

Defendant Name: Jermerrell Cortez Hubbard

Arresting Officer / ID: Kyle Maldonado/43160

This incident was captured on assigned IMPD body worn camera. This probable cause affidavit is a short statement of facts related to the filing of crimes alleged as required under IC 35-33-7-2, Sec. 2. (a) Sec. 2. (a) "At or before the initial hearing of a person arrested without a warrant for a crime, the facts upon which the arrest was made to be submitted to the judicial officer, ex parte, in a probable cause affidavit." This probable cause is being submitted as the straightforward facts of probable cause for arrest of a crime(s) alleged, submitted for filing with the MCPO by a law enforcement officer. lengthy and more detailed information or statements may have likely been captured by IMPD body camera(s).

On 11/8/2022 IMPD Officer Maldonado 43160 was on routine patrol in the area of 34th and Keystone when he noticed a silver BMW X3 SUV traveling eastbound on 34th St. This vehicle matched the description of a suspect vehicle in a shooting that occurred a few hours prior in the area. The description of the shooting suspect vehicle was a silver BMW X3 SUV with a paper plate. Officer Maldonado could not read the plate due to the dust and dirt on the rear window but could see it was a paper plate. This plate was not clearly visible and was obstructed by the dust and dirt. Officer Maldonado had to get very close to the rear bumper of the silver BMW and use his spotlight to attempt to read the plate. Officer Maldonado had trouble making out the plate. Officer Maldonado eventually was able to read 423C779.

Officer Maldonado was in a fully marked IMPD police vehicle, full department uniform, and had his BWC activated when he stopped the silver BMW near 34th and Manor Ct. Officer Maldonado made contact with the driver, later identified as Jermerrell Hubbard. Officer Maldonado asked Hubbard for his driver's license and Hubbard stated that he did not have one with him and was starting to reach around the vehicle. Officer Maldonado could see that the cup holder in the center console had several hand gun rounds in it. Officer Maldonado asked Hubbard to step out of the vehicle and walk to the back of his car. Hubbard complied without issue.

While Officer Maldonado was talking to Hubbard Officer Hopkins 42514 was at the passenger side of the vehicle and could smell the order of marijuana coming from the vehicle. Officer Maldonado was gathering Hubbard information to confirm his driver's status while Officer Montgomery 40843 placed handcuffs on Hubbard and read Hubbard Miranda. Officer Montgomery stated that he saw marijuana cigarettes' in the center console.

Officer Hopkins and Officer Maldonado conducted a search of the vehicle due to the smell of marijuana coming from the vehicle and the view of the marijuana cigarettes in view. Officer Hopkins located a clear plastic bag containing green leafy substance under the passenger seat. This bag later weighed 119.95 grams at the IMPD property room scale. Officer Hopkins also located a working digital scale with green leafy residue in the center console. Officer Maldonado located a black handgun under the driver's seat. The gun was identified as a Glock 17 9mm with SN BTYT752. These items were later taken to the IMPD property room by Officer Maldonado.

Officer Maldonado asked Hubbard if he understood his Miranda rights that was read to him and Hubbard advised he did. Officer Maldonado asked about the plastic bag containing suspected marijuana and Hubbard stated that it is fake marijuana that he bought from a smoke shop. Officer Maldonado asked if he meant synthetic marijuana and Hubbard stated it was. Officer Maldonado asked Hubbard about the gun and Hubbard stated that is his gun and he is permitted. Hubbard stated that he put gun under his seat when he goes to work. Hubbard stated he uses the synthetic marijuana and the scale to brag on Instagram but does not sell the

Hubbard was arrested for possession of a controlled substance (synthetic marijuana) while in possession of a handgun. Hubbard was transported to Marion County jail by Officer Ryne 42204

Hubbard's vehicle was towed to Auto Return by Affordable towing. Three cell phones and some tools were noted of value.

All events occurred in Marion Co, IN.

ADD DRUG WEIGHT

30 rounds?

I swear (affirm) under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ **Kyle Maldonado**

Law Enforcement Officer

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49D29

STATE OF INDIANA)
)
 vs.)
)

INFORMATION

COUNT I

MURDER

I.C. 35-42-1-1(1)

A FELONY

COUNT II

ROBBERY RESULTING IN SERIOUS
BODILY INJURY

I.C. 35-42-5-1(a)(1)

A LEVEL 2 FELONY

JEREMERRELL HUBBARD B/Male
DOB 10/4/2002

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about January 31, 2023, JEREMERRELL HUBBARD did knowingly kill another human being, to-wit: Brian Ward Jr.;

COUNT II

On or about January 31, 2023, JEREMERRELL HUBBARD did knowingly take property, to wit: a bag and/or US currency and/or contents of bag from Brian Ward Jr. or the presence of Brian Ward Jr., by using force, to wit: shooting Brian Ward Jr.; said act resulting in serious bodily injury, gunshot wounds to Brian Ward Jr.

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

February 5, 2023

Date

RYAN MEARS

Marion County Prosecutor
19th Judicial Circuit

/s/ Anne Frangos
Anne Frangos, #28367-49
Deputy Prosecuting Attorney

State's Witnesses:

Jeremy Ingram, IMPD
Mark Prater, IMPD
Brett Lauerman, IMPD
Jonathan Franz, IMPD
Todd Lappin, IMPD
Nick Striker, IMPD
Garland Cooper, IMPD
Tiffany Rand, IMPD
Ryan Gootee, IMPD
Austin Bonty, IMPD
Chris Stout, IMPD

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Detective Jeremy Ingram swears (affirms) that:

On January 26th 2023 Officer Lauerman ID 41352 was dispatched to investigate a report of a suspicious vehicle at 2514 Plaza Dr. The anonymous caller stated that two black males wearing ski masks were sitting in a Gray BMW SUV running for over 24 hours. Officers Lauerman arrived and spotted the vehicle backed into the apartment building at that location. Officer Lauerman pulled through the street westbound and could see that the vehicle was a gray BMW SUV with IN plate 732CGI and was occupied by two black males wearing masks, who attempted to slide and slouch lower into the seat surreptitiously to avoid detection.

Officer Lauerman approached the vehicle four car lengths from the east and was able to see that there appeared to be a blue and white surgical mask obscuring the plate. Officer Lauerman made contact with the registered owner and driver of the vehicle. Officer Lauerman approached the driver's side door and requested that the driver roll down his window. Officer Lauerman was immediately hit by the strong odor of burnt marijuana. Officer Lauerman asked for the driver's ID. The driver was confirmed through control and the ID to be Jermerrell Cortez Hubbard B/M DOB 10/04/2002. Mr. Hubbard was also the confirmed registered owner of the vehicle according to control.

Once Officer Harper arrived it was determined that both occupants would be removed due to the odor of marijuana emanating from the small opening in the window. Officer Lauerman removed Mr. Hubbard from the vehicle and then removed the passenger from the vehicle. A pat down was conducted and a small bulge in the passenger's pocket believed to be ID cards or similarly shaped objects was left on his possession. The passenger stated that he did not have an ID and that it was his Grandma's items. As Officer Lauerman looked under the front driver's seat he observed a black semi auto handgun with an extended mag. This firearm was later found to be a Glock 30s .45ACP bearing serial #BWER479. Officer Lauerman located another handgun with an extended mag under the passenger seat. This firearm was later found to be Glock 32 .357 sig bearing serial #BUGG853. It was at that point that both suspects were detained.

The passenger refused to identify to officers. It wasn't until properly searched that the front passenger was found to be Keyshawn Johnson B/M DOB 09/20/00. Mr. Johnson was found to have an outstanding Marion County warrant. Officer Franz also located a small cigarillo wrapper in the front right pocket of Mr. Johnson's pants. Inside this wrapper Officer Franz located what he knows through his training and experience to be raw marijuana. Mr. Johnson also told Officer Franz that he had cut his electronic monitoring device off. The vehicle these occupants were in was a 2005 Gray BMW X3 with IN plate 732CGI. That vehicle is registered to Mr. Hubbard with an address of 2403 Martin Luther Ln. Both suspects were arrested and transported to CJC.

Affidavit for Probable Cause

From: Detective Jeremy Ingram

During the course of the conversation that was recorded on Officer Lauerman's body camera this affiant can hear Lauerman asking what the two were waiting on and Mr. Hubbard pointed to the direction of XXXX PXXXX Drive and stated he was waiting on his people.

On January 30, 2023 at approximately 1:05p.m. Indianapolis Metropolitan Police Department, Northwest District Officers responded to a person shot at 2524 Plaza Drive. Officers arrived and located a black male on the sidewalk suffering from gunshot wounds. The male was later identified as Brian Ward Jr. Medics arrived at the location. Medic Napp, IEMS 12, 0593 pronounced the black male deceased. On the sidewalk were several fired casings and a black handgun. The decedent was on the sidewalk next to a running Lincoln MKS, license plate number 207LLF. A witness (Witness 1) stated that the decedent was visiting his girlfriend. The decedent left the apartment and went outside to start his vehicle and then enter back into XXXX PXXXX Drive. A short time later the decedent exited and walked towards his vehicle, the Lincoln MKS when Witness 1 heard several gunshots. Several people then called 911. Officers requested Homicide to the scene and I Detective Ingram along with several assisting detectives then responded along with Crime Lab.

I observed the Lincoln MKS and located damage to the rear windshield and rear light and bumper area, from what appeared to be fired bullet striking the vehicle. One witnesses (Witness 2) on the scene stated that they heard shots and saw a Gray BMW SUV fleeing the apartment. Witness 2 also stated that the BMW SUV looked like the same BMW that was involved in the incident on 01-26-2023 where two people were arrested. Witness 2 stated that the driver ran from where the decedent was located and got into the driver seat of the BMW SUV and a second suspect ran and got into the passenger seat. The SUV then headed toward the exit of the apartment complex. Detective Lappin managed the crime scene in front of 2524 Plaza Drive and crime lab collected several shell casings and spent bullets and a blue and white surgical mask. The Lincoln MKS was then towed to ACC to await a search warrant.

Witness 1 and Witness 3 told this affiant that when the decedent left their apartment he was carrying an over the shoulder black Louis Vuitton satchel bag. As he exited they heard several shots and came outside and saw the decedent on the ground and his satchel bag was missing. Witness 1 was able to show Sgt. Prater pictures of the over the shoulder Louis Vuitton bag which Sgt. Prater was able to send to me. Witness 1 also stated as she went to help the decedent and tried to hold his hand she pulled his right hand out of his hoodie pocket and black handgun came out and fell on ground next to him.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Jeremy Ingram

AFFIANT

DATED: February 6, 2023

Affidavit for Probable Cause

From: Detective Jeremy Ingram

An additional witness (Witness 4) came forward and spoke to Detective Lapin and Sgt. Prater. Witness 4 stated he saw the shooting and that a b/m subject wearing all black with a black mask was standing beside the entry to 2XXX PXXXXX Drive and as the decedent exited the entry door the subject wearing all black and black mask shot several times striking the decedent. The witness then fled the area and returned when he saw police on scene. Detective Sosbe had plain clothes units head to the area of 2403 Martin Luther Ln in an attempt to locate the Gray BMW X3 SUV. Detective Sosbe was familiar with other incidents that Mr. Hubbard is suspected in and also the arrest from 01/26/2023.

Detectives were able to locate the vehicle parked at the corner of 20th/Hovey streets. That vehicle was a 2005 Gray BMW X3 with plate 732CGI. It was confirmed to be the same vehicle from the arrest on 01/26/2023. Detectives noticed one person in the driver seat. That subject exited and walked to 2403 Martin Luther Ln. and used a key to unlock the security door and went inside. This was observed and filmed by Detective Rand. The subject was carrying a black over the shoulder satchel bag and was wearing all black with a black mask. Detectives were able to film the subject and the bag. This affiant was provided pictures of the decedents satchel bag and it matches the satchel bag that was being carried by the subject who walked into 2403 Martin Luther Ln. Detectives then maintained visual on residence and the BMW while this affiant then worked on search warrants for the residence located at 2403 Martin Luther Ln.

The following is the timeline from when the detectives located the BMW at 20th/Hovey:

1:56 p.m.: BMW vehicle was located in 2000 block of North Hovey Street. Vehicle located Detective Nick Striker

2:00 p.m.: Detective Rand and Detective Garland Cooper observed BM inside the vehicle in driver's seat.

2:14 p.m.: Detective Striker observes BM gets out of BMW wearing all black with a "Indiana Jones satchel" begins to walk east then north

2:28 p.m.: Detective Rand observes a BF wearing a blue puffy coat and scarf go inside of 2403 Martin Luther Lane

2:30 p.m.: Detective Rand observes BM (believed to Hubbard) use key to unlock security door and go inside 2403 Martin Luther

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Jeremy Ingram

AFFIANT

DATED: February 6, 2023

Affidavit for Probable Cause

From: Detective Jeremy Ingram

2:38 p.m.: Detective Rand observes BM (Hubbard) walk out to get mail and then go back inside 2403 Martin Luther Lane

3:34 p.m.: Possibly mom came out to the car then walks back inside

3:35 p.m.: Light skin person came to the door to let dog in while mom was outside

3:43 p.m.: Mom and unknown BF walk out and get into black impala. Unknown female locked both doors

5:32 p.m.: Detective Ryan Gootee observes black Honda back up outside of 2403 Martin Luther Lane and observed Hubbard come out to the vehicle get in passenger seat. After a few minutes Hubbard and BM driver exited the vehicle and went into 2403 Martin Luther Lane.

Detective Nick Striker kept surveillance on the BMW SUV parked at 20th / Hovey Street the entire time until relieved by Sergeant Hemphill.

SWAT Operator Kenny Kunz located handgun on Bryson Jefferson in right pocket

Detective Austin Bonty and Detective Chris Stout located the Louis Vuitton bag under refrigerator.

A signed and valid search warrant was then served on 2403 Martin Luther Ln. Inside the apartment were two individuals, Jermerrell Hubbard B/M DOB 10/04/2002 and Bryson Jefferson. Crime Lab then responded to 2403 Martin Luther Ln to process it along with assisting Detective Craciunoiu and Sgt. Prater and with the plain clothes detectives. The black over-the-shoulder satchel bag was located under the refrigerator. The black Louis Vuitton bag under the refrigerator was very clean and looked as it had been recently placed under there. A black ski mask was on the kitchen counter. Two firearms were also found in the apartment. Jermerrell Hubbard was wearing the same clothing that Detectives observed him wearing when he exited his BMW and entered the apartment. Jermerrell Hubbard and Bryson Jefferson were transported to the IMPD Homicide office for an interview. The black Honda that Mr. Jefferson arrived in and was witnessed by detectives that Mr. Hubbard got into was towed to ACC along with the Gray BMW to await search warrants.

At the Homicide Office, I read a waiver of rights to Mr. Jefferson who refused to sign and asked for a lawyer and the interview ended. I read a waiver of rights to Mr. Hubbard that was recorded on video which he signed. I attempted to ask Mr. Hubbard about his whereabouts earlier in the day and he stated he was walking around and that his vehicle was stolen at 10 a.m. I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Jeremy Ingram

AFFIANT

DATED: February 6, 2023

Affidavit for Probable Cause

From: Detective Jeremy Ingram

on 38th street. Mr. Hubbard stated that he doesn't even recall being arrested four days earlier on 01/26/2023 due to short term memory loss caused by COVID.

The items of evidence were collected from 2403 Martin Luther and transported to the Crime Lab. Crime lab also responded to the homicide office to collect clothing and photos of Mr. Hubbard after a search warrant was granted.

The three vehicles that were towed to ACC were processed. Fired bullets were recovered from the Lincoln MKS. The upper slide and parts of a Glock .40 caliber handgun were located in the back console of the BMW SUV. These search warrants were managed by Detective Melkey.

I attended the autopsy of Brian Ward Jr. and the manner and cause of death was homicide by gunshot wounds.

All of the above events occurred in Marion County State of Indiana.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Jeremy Ingram

AFFIANT

DATED: February 6, 2023

STATE OF INDIANA
MARION COUNTY, ss:

**IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION**

Cause No: 49D29

STATE OF INDIANA)
)
 vs.)
)

INFORMATION
COUNT I
BURGLARY
I.C. 35-43-2-1
A LEVEL 5 FELONY

JEREMERRELL HUBBARD B/Male
DOB 10/4/2002

Co-Defendant with:

LEE-ANTHONY HUBBARD

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about March 7, 2022, JEREMERRELL HUBBARD did break and enter the structure of William Ashford, to-wit: storage building/warehouse; with the intent to commit theft therein, to-wit: custom tires and rims, center caps, car stereos, and/or a television

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

March 7, 2023
Date

RYAN MEARS
Marion County Prosecutor
19th Judicial Circuit

/s/ John A. Molloy III
John Anthony Molloy III, #31763-49
Deputy Prosecuting Attorney

State's Witnesses:
MICHAEL EDWARD MCKENNA
William Ashford
Markell Jones

**AFFIDAVIT
FOR PROBABLE CAUSE**

**STATE OF INDIANA
COUNTY OF MARION, SS:**

Detective Michael McKenna swears and affirms that he believes and has good cause to believe as a result of his investigation that he learned from reliable persons that the following facts and circumstances occurred:

On Tuesday, March 8, 2022 at approximately 1632 hours, Officer Brandon Logan with the City of Lawrence Police Department was radio dispatched to the location of, 7145 East 46th Street for a delayed burglary of a business report.

On arrival, Officer Brandon Logan came into contact with the complainant identified as, William Ashford. William Ashford states he is the owner of Grind City Customs. William Ashford states Grind City Customs is a auto body shop that specializes in the restoration of old cars. William Ashford states he recently fired an employee identified as, Andre Baker. William Ashford states Andre Baker use to work for him and currently resides at 7045 East 47th Street. William Ashford states he was involved in a verbal altercation with Andre Baker as recently as 02/15/2028 at that point he cut ties with Andre Baker.

William Ashford states he was out of town this past weekend but returned to the shop on Saturday, March 5. William Ashford states he believes the burglary occurred between Saturday and Sunday but cannot specify a time/date. William states he came to the shop on Monday, March 7 and observed multiple sets of 32" through 18" tires/rims were missing from his warehouse, along with the 70" big screen television located on the wall. William Ashford states there was no sign of forced entry into the building and the door/garages were all locked. William Ashford states the only other person who had a key to the building was his ex-employee, Andre Baker. William Ashford advised Officer Brandon Logan that the approximate value of the items stolen out of the warehouse is over \$100,000.00.

Officer Brandon Logan attempted to identify areas that could be finger printed for a potential suspect but was unsuccessful. Officer Brandon Logan made contact with Det. Michael McKenna to advise him of the incident.

On 03/09/2022, Detective Michael McKenna was contacted by William Ashford via cellphone. William Ashford advised Detective Michael McKenna that he had located some of his stolen property for sale on Facebook Marketplace. William Ashford then

drove up to the City of Lawrence Police Department to meet with Detective Michael McKenna to show him the Facebook Marketplace posting that has his stolen property listed for sale. Detective Michael McKenna observed a Facebook Marketplace posting that appeared to be posted on 03/08/2022 from Indianapolis, In by a user identified as "Markell Jones". In this posting, William Ashford pointed out that the items in the photograph were all items that were stolen from his shop. Dayton rims, Forgiato rims, Rucci rims, tires, center caps and car stereos. This posting listed rim and tire sets for \$5,000.00 a piece. Detective Michael McKenna looked up the user "Markell Jones" on Facebook and located a unique Facebook User ID as "Markell.Jones.549" that posted the Facebook Marketplace post.

Detective Michael McKenna looked up "Markell Jones" in case reporting systems and located a "Markell Jones" with the DOB of 05/15/2000. Detective Michael McKenna ran "Markell Jones" DOB 05/15/2000 through IDACS/NCIC and observed the Indiana ID Card of Markell Jones matched the Indiana ID photograph to a Facebook photograph from "Markell.Jones.549" page.

Markell Jones Indiana ID card listed an address of 10148 Ellis Drive Indianapolis, In 46235. Detective Michael McKenna was also able to confirm this address as Markell Jones's address through the leasing office of Carriage House East Apartments. Detective Michael McKenna also confirmed this address as Markell Jones's residence through TLO as well.

On 03/11/2022, Detective Michael McKenna with the assistance of several other Lawrence Police Detectives served a signed search warrant for the listed address of Markell Jones at 10148 Ellis Dr. Indianapolis, In 46235. Detective Michael McKenna did not locate any evidence of the burglary but did locate a US Postal mail envelop addressed to Markell Jones at this address. Detective Michael McKenna also met with a female at the residence identified as Nicole Graves who identified herself as Markell Jones mother. Nicole Graves stated that Markell Jones does not live at the address anymore but did provide Detective Michael McKenna with Markell Jones's cell phone # of (317)932-2065.

On 03/16/2022 Detective Michael McKenna received a phone call from Markell Jones from phone number (317)932-2065. Markell Jones stated he wanted to come speak to Detective Michael McKenna regarding the incident and agreed to meet Detective Michael McKenna at the City of Lawrence Police Department located at 5150 N. Post Rd. Lawrence, In 46226 at 1330hrs.

On 03/16/2022 at 1253hrs. Markell Jones did arrive at 5150 N. Post Rd. Lawrence, In 46226 and does have in his possession a cell phone.

On 03/16/2022 Detective Michael McKenna carried out a search warrant to recover Markell Jones's cell phone which is a red iPhone 11 with a cell phone # of (317)932-2065.

On 03/16/2022 Detective Michael McKenna interviewed Markell Jones regarding the burglary at Grind City Customs. Markell Jones stated he was told by a family member identified as Lee Hubbard that Lee Hubbard and his brother Jermerrell Hubbard did the burglary at Grind City Customs and that he, Markell Jones was attempting to sell the stolen items on Facebook Marketplace at the request of Lee Hubbard. Markell Jones stated that Jermerrell Hubbard and Lee Hubbard live in the area of E. 25th St and Hillside Ave. Detective Michael McKenna showed Markell Jones a map of the area of E. 25th St and Hillside Ave. and Markell Jones pointed to an apartment complex just south of E. 25th St and Hillside Ave intersection named New Bridge Apartments. Markell Jones pointed to a specific street named "Martin Luther Ln".

Detective Michael McKenna checked case reports for Lee Hubbard and Jermerrell Hubbard and located a Jermerrell Hubbard DOB 10/04/2002. Detective Michael McKenna ran that information through IDACS/NCIC/BMV and learned that Jermerrell Hubbard has a registered address of 2403 Martin Luther Ln. Indianapolis, In 46218 on his Indiana drivers license. Detective Michael McKenna also learned that Jermerrell Hubbard has two vehicles registered to him in the State of Indiana both with the address of 2403 Martin Luther Ln. Detective Michael McKenna also located case reports with Jermerrell Hubbard in them also with the address of 2403 Martin Luther Ln.

On 03/17/2022 Detective Michael McKenna along with several other detectives with the City of Lawrence Police Department carried out a signed search warrant at 2403 Martin Luther Ln. Detective Michael McKenna located a set of keys belonging to an older vehicle which Detective Michael McKenna later confirmed with William Ashford belonged to one the vehicles he had been fixing up for a client. Detective Michael McKenna also located several cellphones in the apartment. Detective Michael McKenna also located Leeanthony Hubbard at the apartment at the time of the search warrant. Detective Michael McKenna also seized several cellphones belonging to Leeanthony Hubbard as well.

Detective Michael McKenna attempted to interview Leeanthony Hubbard back at the City of Lawrence Police Department, but Leeanthony Hubbard stated he did not wish to speak to Detectives. Leeanthony Hubbard was released.

On 03/17/2022 Detective Michael McKenna applied for and was subsequently granted search warrants for the cellphones he recovered during the search warrant at 2403 Martin Luther Ln. which Detective Michael McKenna learned belonged to Leeanthony Hubbard. Detective Michael McKenna observed photographs of the items stolen from Grind City Customs in the Recently deleted photo file on Leeanthony Hubbard's cellphone. Detective Michael McKenna also located a text message thread on Leeanthony

Hubbard's cellphone to Jermerrell Hubbard's cellphone where LeeAnthony Hubbard and Jermerrell Hubbard appear to speak about the burglary on 03/07/2022.

Detective Michael McKenna has yet to locate Jermerrell Hubbard or any property belonging to Grind City Customs.

THE ABOVE EVENTS OCCURRED IN MARION COUNTY, STATE OF INDIANA.

I swear (affirm) under penalties for perjury that the foregoing facts, all having occurred in Marion County, Indiana, is true to the best of my knowledge and belief.

DATED:08/05/2022

/s/ Detective Michael McKenna
AFFIANT

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49D29

STATE OF INDIANA)
)
 vs.)
)
JEREMERRELL HUBBARD B/Male
DOB 10/4/2002

INFORMATION
COUNT I
ATTEMPTED MURDER
I.C. 35-42-1-1(1) and I.C. 35-41-5-1(a)
A LEVEL 1 FELONY

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about January 7, 2023, JEREMERRELL HUBBARD did attempt to commit the crime of Murder, which is to intentionally kill another human being, namely: A.R., by engaging in conduct, that is: shooting at and/or against A.R. with the specific intent to kill A.R., which conduct constituted a substantial step toward the commission of said crime of Murder;;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

April 18, 2023

Date

RYAN MEARS

Marion County Prosecutor
19th Judicial Circuit

/s/ Anne Frangos

Anne Frangos, #28367-49
Deputy Prosecuting Attorney

State's Witnesses:

Bryan Sosbe, IMPD
Rodney Bradburn, IMPD
Robert Burns, IMPD
Tyler Colclazier, IMPD
Cassandra Crawley, IMPD
Brett Lauerman, IMPD
Jeffrey Peterson, IMPD

Demetric Smith, IMPD

Doug Boxler, MCCL

A.R.

E.J.

R.J.

N.N.

T.W.

AFFIDAVIT

FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Detective Bryan Sosbe swears (affirms) that:

On January 7, 2023, at approximately 12:22 p.m., Officer Burns of IMPD was dispatched to 3415 N. Grant Ave. on a report of a person shot. On scene, Officer Burns located the victim, A.R. to his face and a gunshot wound to his buttocks. A.R. was transported to Eskenazi Hospital by IEMS. Det. Sosbe was notified and responded to the scene, Det. Scheid responded to Eskenazi Hospital.

While in route to the scene, Det. Sosbe was advised about a vehicle with bullet damage arriving at North District Roll Call, occupied by two females.

On scene, Det. Sosbe observed 5 fired cartridge casings, a blood trail, a set of tire tracks in the driveway, a silver Ford truck, and bloody clothing.

Det. Sosbe spoke to the occupants of the silver Ford truck (unrecorded). Det. Sosbe was advised by all 3 individuals that they turned onto Grant from 34th and the victim ran up to them asking for assistance, so they called 911 and tried to help him.

Evidence Technician D. Smith, A128, photographed the crime scene and collected evidence, which included a 22 caliber Astra Arms handgun that was in the victim's right front pocket.

Det. Scheid was unable to conduct an interview with the victim, due to the medications/pain killers he was on.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Bryan Sosbe

AFFIANT

DATED: April 18, 2023

Affidavit for Probable Cause

From: Detective Bryan Sosbe

Det. Sosbe then went to North District Roll call where interviews were conducted with T.W. and N.N. Det. Sosbe's audio recorder only recorded 2 seconds of the interview with T.W. before pausing itself. The interview with N.N. was fully recorded.

Both women stated they were at the address to help A.R. retrieve the last few items from the residence, the dog, and clean up. A.R. was outside of the truck while both women were still in the truck. A.R. got some mail out of his car, put the mail in the truck, and was going back towards the residence, when gunshots rang out. T.W. hesitated to leave, but N.N. encouraged it. As they were leaving, T.W. looked back and saw a figure dressed in all black, with a black ski mask, firing at A.R., who had blood on his face. T.W.'s vehicle was struck by gunfire three times.

Both women stated the incident is related to the homicide of A.R. mother which occurred in November 2022. Since then, A.R. has been threatened and harassed, and even had 2 separate incidents where masked individuals were observed at his home (IP22121600000401/IP220123129) and work(unreported).

Det. Sosbe returned to the scene to canvass the area for possible video evidence in the neighborhood. Det. Sosbe observed a gray BMW X3 parked on the north side of 3423 N. Grant Ave., which is a vacant residence. Det. Sosbe noted the make, model, color, and license plate of the vehicle (gray BMW X3, 732CGI) while walking around the back of the address. Det. Sosbe was advised by Ofc. Crawley that she was approached by an individual who stated they were the property manager for 3423 N. Grant Ave., and they were working on the residence. Det. Sosbe accepted this as a reasonable explanation and continued the canvass. Officer Crawley's body worn camera was not activated at the time of the encounter.

Det. Sosbe then returned to the office and researched previous incidents at 3415 N. Grant Ave. During the incident at 3415 N. Grant Ave. on December 16, 2022, Mr. Jermerrell Hubbard

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Bryan Sosbe

AFFIANT

DATED: April 18, 2023

Affidavit for Probable Cause

From: Detective Bryan Sosbe

was identified as being one of two individuals seen around the residence. This incident is under case number IP220123129.

On December 16, 2022, Officers Tyler Colclazier, Richard Faulkner Jr, Katrina Robinson, and Jade Pierson with the Indianapolis Metropolitan Police Department were dispatched to a person armed at 3415 Grant Ave. The caller stated there was a subject on the side of the residence with a ski mask and pistol. Officers were aware that there was a homicide at the above address just a couple weeks prior. When Officer Faulkner arrived on scene and approached the residence. Officer Faulkner observed an individual, wearing a light gray sweatshirt, poke his head around the front side of the residence. Officer Faulkner stated the male ran eastbound from 3415 Grant Ave. Officer Pierson was notified by A.R., who was inside 3415 Grant Ave, that he saw a male behind the residence wearing all black and another male wearing light colored jacket. A.R. stated both individuals were armed with handguns. When Officer Colclazier arrived on scene he began patrolling streets east of Grant Ave trying to locate individual's that matched that description. Approximately ten minutes later, Officer Colclazier observed an individual, later identified as Jermerrell Hubbard 10/04/2002, wearing all black walking westbound from 34th Street and Gladstone Ave. Officer Colclazier observed Mr. Hubbard get into a gray BMW, which was parked in the 3400 block of Forest Manor Ave. This is directly one block east of Grant Ave. Officer Colclazier observed the gray BMW, bearing Indiana license plate 732CGI, begin to travel south on Forest Manor. Officer Colclazier checked the license plate through the bureau of motor vehicles. He observed the vehicle was registered to Jermerrell Hubbard at 2403 Martin Luther Lane. Officer Colclazier knew Jermerrell to be the brother of the suspect in the homicide that occurred a couple weeks prior at 3415 N. Grant Ave. Officer Colclazier observed Mr. Hubbard turn at 30th Street and Forest Manor Ave. Mr. Hubbard turned to go westbound on 30th Street. Officer Colclazier engaged his emergency lights and siren on his fully marked police vehicle and Mr. Hubbard pulled over

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/s/ Bryan Sosbe

AFFIANT

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at 30th Street and Chester Ave. Officer Colclazier stopped the vehicle due to the driver matching the description of one of the people with a gun at 3415 N. Grant St. Officer Colclazier approached the driver's side front door and spoke to the driver, Jermerrell Hubbard. Officer Colclazier confirmed the male was Mr. Hubbard. (This is an excerpt from Ofc. Colclazier's probable cause).

Mr. Jermerrell Hubbard's known address of 2403 Martin Luther Ln. is approximately 2.8 miles away from A.R.'s address and is also the address that was searched in relation to the homicide of E.B., A.R.'s mother, which A.R. witnessed. Mr. Lee-Anthony Hubbard has been charged in that case, under IP220111635 from November 10, 2022.

Det. Sosbe contacted Ofc. Crawley and requested she return to the address, 3415 N. Grant, to check for the gray BMW X3. Ofc. Crawley did so and advised Det. Sosbe the vehicle was no longer present.

On January 8, 2023, while continuing the investigation, Det. Sosbe checked for case reports under Mr. Jermerrell Hubbard's name and noticed a case report made on January 7, 2023, at approximately 2:20 p.m., under case number IP230002388, where Mr. Hubbard made a police report, reporting his BMW X3 stolen from 2005 E. 30th St., Ajay's Food Mart. Per the report, the incident happened at approximately 9:00 am. Mr. Hubbard made the report from his mother's address and used his mother's phone number, 5 hours and 20 minutes after the approximate time the vehicle was stolen, and 2 hours after the shooting of A.R.

Det. Sosbe went to Eskenazi Hospital and conducted an audio recorded interview with A.R. A.R. stated he was with his cousin and went to the house to get the dog. A.R. got some mail out of his car, put it in the truck, then was going to the door. As A.R. went to the door, someone came around the corner and started shooting. A.R. put his hand up and turned away, getting shot one time in the right hand and one time in the buttock. A.R. could only describe the individual as wearing all black with a ski mask. A.R. went on to state that he believed this was

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another incident related to December 16, 2022, and his mother's homicide, in which he is a witness.

The gunshot to A.R.'s buttock damaged his bowel, bladder, and ureter. During a phone conversation with Dr. McCormick, Det. Sosbe was advised that A.R. would not have survived the injury without surgery.

Det. Sosbe, along with analysts listened to jail calls made by Mr. J. Hubbard's brother, Mr. Lee-Anthony Hubbard, before and after the shooting of A.R. Mr. L-A Hubbard, on separate calls, requests to have his brother, Mr. Jermerrell Hubbard, added to the call and provides the number 317-XXX-5899.

On November 17, 2022, at 10:08 pm, Mr. L-A Hubbard calls 317-XXX-5899 and the male (Jermerrel Hubbard) states, "Momma said you need to let her come up there."

On January 2, 2023, at 1:03 pm, Mr. L-A Hubbard calls 317-XXX-5899 and the male (Jermerrel Hubbard) answers, "What's up broski?" Mr. L-A Hubbard then asks, "Did mama ever do that, bro?" (referring to putting money on his books).

On January 7, 2023, at 8:26 pm, Mr. L-A Hubbard is speaking to his mother, when he tells his mom to 3-way call his brother at 317-XXX-5899.

On January 8, 2023, at 8:08 pm, Mr. L-A Hubbard is speaking to an unknown female when he tells her to text his brother at 317-XXX-5899

Det. Sosbe searched the number using online sources and the number shows registered to Mr. Jererre Hubbard, and serviced by T-Mobil. Det. Sosbe noted that Jererre is Jermerrell with the "m" and "l's" removed.

Det. Sosbe also reviewed available body worn camera (BWC) video. Det. Sosbe noted, and took screenshots from, Ofc. J. Petersons BWC video at 8:43, 17:23, and 18:14 showing the gray BMW SUV parked on the north side of the residence at 3423 N. Grant Ave. The same was done for Ofc. Crawley's BWC at 5:37, 12:10, and 15:52, as well as one still image taken from

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the BWC of Ofc. Burns at 13:02. All times listed are in relation to video duration not actual time.

On January 11, 2023, Det. Sosbe spoke to Ofc. Colclazier who was the officer that stopped Mr. Jermerrell Hubbard on December 16, 2022. Ofc. Colclazier inquired about the incident in which A.R. was shot. Det. Sosbe described the suspect to Ofc. Colclazier. Ofc. Colclazier responded that it was the same description of the suspects the night of December 16th. Det. Sosbe also noted that Ofc. Colclazier listed in his report several types of ammunition, including 45 ACP ammunition. The same caliber of ammunition that was used in the shooting of A.R.

In regard to the incident from December 16, 2022, and the incident from January 7, 2023; both incidents involved similarly dressed individuals, Mr. Jermerrell Hubbard's BMW X3 with Indiana plate 732CGI was observed at or in the immediate area of 3415 N. Grant Ave. Mr. Hubbard is the brother of the suspect in A.R.'s mother's homicide.

On January 12, 2023, Det. Sosbe spoke to Chief S. Golden at the Indianapolis Housing Police. Chief Golden looked through records, confirming that Mr. J. Hubbard was not on any current lease administered through the Indianapolis Housing Authority (IHA). Chief Golden also confirmed information that Mr. J. Hubbard, his brother, Mr. L-A. Hubbard, and Mother Ms. C.G. are all listed in the IHA records with the last name graves. Chief Golden advised this information has to be confirmed through IRS records for qualification for IHA grants and placement.

Both Mr. J. Hubbard and Mr. L-A. Hubbard have identification cards issued with the last name Hubbard, it is unknown when the legal name change occurred.

On January 17, 2023, Det. Sosbe met with B.S., owner of Ajay's Food Mart. Det. Sosbe and B.S. made several attempts to recover the video from B.S.'s Nest account, unsuccessfully.

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On January 18, 2023, Det. Sosbe contacted B.S. and was able to obtain the necessary access to B.S.'s Nest account. There are no exterior cameras at Ajay's Food Mart. Det. Sosbe saved video from an interior camera by the register from 0700-1100 from January 7, 2023.

Det. Sosbe spent several hours watching the downloaded video. On 2 separate video clips, one at approximately 8:51 am and one at approximately 9:54 am, there are individuals who roughly fit the description of Mr. Hubbard, but it is unclear if either person is Mr. Hubbard. It was noted the video does not have a time/date stamp continuously through the video, only at the beginning. The times are estimated by the length of time into the recording, added to the start time.

Det. Sosbe received the warrant return from T-Mobile, outlining the requested information. The information was sent to Det. J. Hayes to have the information and locations sorted. Det. Sosbe also submitted a further request for more detailed location records to T-Mobile.

On January 19, 2023, Det. Sosbe began looking over the returned cellular phone records. The phone records are listed in UTC time (Universal Time), which is 5 hours ahead of EST (Eastern Standard Time).

Det. Sosbe noted the phone received an incoming call that lasted approximately 108 seconds at 17:00 UTC/12:00 EST, using the tower at 3636 E 38th St., the nearest tower, which is approximately 2800 feet northwest of 3415 N. Grant Ave. Det. Sosbe then noted several more entries between 18:40 and 18:42 UTC/1:40-1:42 pm EST that all originated from the same tower.

Previous to this time frame, the majority of calls/messages used the tower at 2425 E. 29th St., which is located approximately 2900 feet north/northeast of Mr. J. Hubbard's residence, and approximately 900 feet from a known family member's residence in the 2900 block of Hillside Ave.

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Det. Sosbe also noted there was no activity with Mr. Hubbard's phone from approximately 06:00 UTC to 15:41 UTC/1:00 am-10:41 am, on January 7, 2023, which encompasses the period during which Mr. Hubbard stated his vehicle was stolen from 2005 E. 30th St.

Det. Sosbe received the mapping return from Det. Hayes. These records show that during the call placed at 17:00 UTC/12:00 EST, using the tower at 3636 E 38th St., the phone conversation of 108 seconds occurred with the most called number in the call logs, (503) 753-5432. An internet search shows that number serviced by T-Mobile, with no subscriber information, issued out of northwest Oregon/Portland metropolitan area.

On January 27, 2023, Det. Sosbe was informed that Mr. J. Hubbard had been arrested the previous day, under case number IP230008848. Det. Sosbe checked the report system and read the following probable cause.

On January 26, 2023, Officer B. Lauerman ID 41352 was dispatched to investigate a report of a suspicious vehicle at 2514 Plaza Dr. The anonymous caller stated that two black males wearing ski masks were sitting in a grey SUV running for over 24 hours. Officer Lauerman arrived and spotted the vehicle backed into the apartment building at that location. Officer Lauerman pulled through the street westbound and could see that the vehicle a greyish blue BMW bearing Indiana plate #732CGI was occupied by two black males wearing masks, who attempted to slide and slouch lower into the seat surreptitiously to avoid detection. Officer Lauerman approached the vehicle 4 car lengths from the east and was able to see that there appeared to be a blue and white surgical mask obscuring the plate. Officer Lauerman knows through training and experience that people who conduct illegal activities commonly try to obscure their vehicles plate to avoid identification. Officer Lauerman made contact with the registered owner and driver of the vehicle. Officer Lauerman approached the driver's side door and requested that the driver roll down his window. Officer Lauerman was immediately hit by

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the strong odor of burnt marijuana. Officer Lauerman asked for the driver's ID. The driver was confirmed through control and the ID to be Jermerrell Cortez Hubbard B/M DoB XXXX Mr. Hubbard was also the confirmed registered owner of the vehicle according to control. Once Officer V. Harper arrived it was determined that both occupants would be removed due to the odor of marijuana emanating from the small opening in the window. Officer Lauerman removed Mr. Hubbard from the vehicle and then removed the passenger from the vehicle. A pat down was conducted and a small bulge in the passenger's pocket believed to be ID cards or similarly shaped objects was left on his possession. The passenger stated that he did not have an ID and that it was his "grandma's" items. As Officer Lauerman looked under the front driver's seat he observed a black semi-automatic handgun with an extended magazine. This firearm was later found to be a Glock 30s .45acp bearing serial #BWER479. Officer Lauerman located another handgun with an extended magazine under the passenger seat. This firearm was later found to be a Glock 32 .357 Sig bearing serial #BUGG853. It was at that point that both suspects were detained. Officer Lauerman requested through control to see if the driver was a prohibited person. Officer Lauerman was informed that Mr. Hubbard had a felony drug dealing conviction decided on 01/20/2023, reference cause #49D36-2211-F6-030715. The passenger refused to identify to officers. It wasn't until properly searched that the front passenger was found to be K.J. B/M DoB 09/2000. K.J. was found to have an outstanding Marion County warrant reference cause 49D20-2006-F3-018601. Officer Franz also located a small cigarillo wrapper in the front right pocket of K.J.'s pants. Inside this wrapper Officer Franz located what he knows through his training and experience to be raw, unburnt marijuana. Estimated weight of the marijuana at 3 grams. K.J. also told Officer Franz that he had cut his electronic monitoring device off. K.J.'s electronic monitoring was allegedly supposed to begin on 06/21/2021.

While both suspects were separated and placed in Officer Harper's and Franz's cars, Officer Lauerman requested an ATF certified gun liaison to the scene to conduct further

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investigation. Officer Tatlock arrived and removed both firearms and the magazines in the glovebox. Officer Tatlock will be completing his own investigative report and processing.

At the conclusion of the investigation both Mr. Hubbard and K.J. were placed under arrest.

Det. Sosbe was familiar with the silver BMW SUV, as it is the same vehicle that was parked on the north side of the vacant residence at 3423 N. Grant Ave., and the same vehicle Mr. Hubbard had reported stolen on January 7, 2023.

Det. Sosbe submitted a request to the crime lab to have the Glock Model 30, 45 ACP, tested against the shell casings recovered from the crime scene.

Det. Sosbe notified Det. Sgt. Navarro about the arrest and the firearm recovery.

On January 30, 2023, Det. Sosbe received an email from Mr. D. Boxler and the Marion County Crime Lab. The email stated the test fired casings from the Glock 30 matched the recovered casings from 3415 N. Grant Ave. Using this lead information, Det. Sosbe submitted a request to have a physical comparison completed on the casings.

Det. Sosbe also received further information from T-Mobile, stating they were unable to release the "Timing Advance Records".

On February 3, 2023, Det. Sosbe requested, and was granted, a buccal cell standard warrant for Mr. Jermerrell Hubbard.

On February 7, 2023, Det. R. Bradburn served the buccal cell standard warrant on Mr. Jermerrell Hubbard's person at the CJC, located at 675 Justice Way. Det. Bradburn then submitted the buccal cell standard to the IMPD property room, with a request for comparison to DNA recovered from the Glock model 30 recovered under case number IP23008848.

On March 14, 2023, Det. Sosbe received an email detailing the physical comparison of the casings to the test fired Glock 30, serial number BWER479, recovered under case number IP23008848. The report stated fired cartridge casings recovered under IMPD case number

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IP23002365 (items 1a-1f) were identified as having been fired by item 1 (one 45 Auto caliber Glock model 30S semiautomatic pistol, serial number BWER479) recovered under case number IP23008848.

All of the above events occurred in Indianapolis, Marion County, Indiana

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/s/ Bryan Sosbe

AFFIANT

DATED: April 18, 2023

AFFIDAVIT

FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Sgt. John Breedlove swears (affirms) that:

On June 1, 2015 at approximately 1:09am, IMPD officers responded to a report of a person shot near the Village Pantry at 1402 S East Street. Upon arrival officers located a white female, later identified as Hilary Acton, lying on the sidewalk in front of 1413 S East Street. Ms. Acton was pronounced deceased at the scene at 1:20am. Ms. Acton's boyfriend later identified as Mark Williams, told officers he was with Ms. Acton during an armed street robbery attempt by two black males. Homicide detectives were requested to respond. Det. Schemenaur, Det. Nelson, Det. Lehn and Det./Sgt. Breedlove responded to the scene.

Crime Lab specialist Colleen Clark recovered (4) four 9 millimeter cartridge casings near 1413 S. East St. and (1) one 9 millimeter cartridge casing at the corner of S. East St. and Cottage Ave.

On June 1, 2015 at approximately 1:47am, Det. Schemenaur conducted a recorded statement with Mark Williams at the scene. Mr. Williams stated he and Ms. Acton were removing clothing items from Ms. Acton's black 2004 Cadillac CTS 4 door sedan which was parked along the east side of S East St. Mr. Williams stated 2 black males approached them on the sidewalk and one stated, "We're going to need all that." Mr. Williams described the first suspect as a black male, mid 20's or 30's, dark skinned, possible dreads or braids, 5'6" to 5'8", medium build, wearing a dark button down shirt, navy basketball shorts, and armed with a silver semi-automatic.

Mr. Williams described the 2nd suspect as a black male, mid 20's, dark skinned, short possible fade hair, maybe waves, 6'1" or taller, thin build, wearing a dark hooded sweatshirt. Williams said he backed away, yelled for his brother "Jason!", and the armed suspect shot Acton.

The two suspects then ran southbound on the sidewalk on the east side of East Street before proceeding east onto Cottage Ave. Mr. Williams said he pursued the suspects (while unarmed) on foot. Mr. Williams said the armed suspect shot at him one additional time while on Cottage Ave.

Mr. Williams said he then returned back to the vehicle and found Hilary Acton had been shot. Mr. Williams stated he did not know either suspect.

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AFFIANT

DATED: May 31st, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT


JUDGE

Affidavit for Probable Cause

From: Sgt. John Breedlove

On June 1st, 2015 at 6:49 AM Det. Schemenaur was contacted by Mark Williams informing him there was an additional cartridge casing found near where Hilary Acton was shot. Mr. Williams said the casing was found by his brother Jason Jenkins. The cartridge casing was located next to a utility lid just southeast of where Ms. Acton was shot.

On June 2, 2015 approximately 7:10pm, Det. Schemenaur and Det. Lehn conducted a video recorded interview with Mark Williams at the scene of 1413 S East Street. Mr. Williams showed where Ms. Acton was stepping out of the car. He said he was grabbing bags from the car and putting them in a tote. Mr. Williams said the taller guy walks up on one side of him and then the shorter guy walked up with a gun and said, "I'm going to need all that."

Mr. Williams said he went to grab for the gun, and Ms. Acton said, "No Mark." Mr. Williams said he was close enough to grab for the gun. Mr. Williams said he yelled for his brother and as he turned, then the shots went off. Mr. Williams said the suspect was holding a gun sloppy in his right hand and didn't shoot when he went to reach for it but when he yelled for his brother is when he shot.

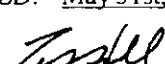
Mr. Williams turned away at the time the suspect shot three times. Mr. Williams turned back around and asked Hilary Acton, "Are you hit?" The suspects then took off running to the south. Mr. Williams said he began chasing them as his brother was coming from the house. The suspects ran south on East Street and then they went left on Cottage Ave. Before the two suspects reached an alley that parallels East Street, the suspects shot at Mr. Williams again. The taller suspect was in front of the one with the pistol.

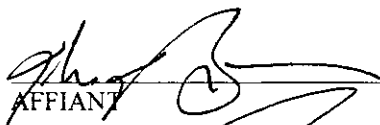
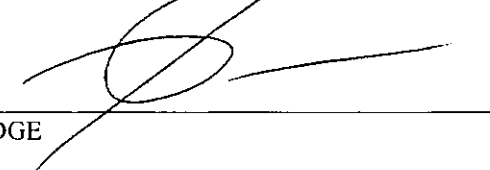
Mr. Williams described the suspect with the gun as a black male, 17 to 25 years old, 5'8", shorter dreads, dark complexion, dark clothing maybe a button up red shirt with something over the top. The gun looked like a "baby nine" nickel plated dull silver finish. The 2nd suspect was a black male 6'1"-6'3" slim-med build.

On June 1st, 2015 Det. Schemenaur attended the autopsy of Hilary Acton. Dr. Mira Geller performed the autopsy. Dr. Geller stated Hilary Acton died from a gunshot wound to the chest and the manner of death is homicide.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

DATED: May 31st, 2016


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NINETEENTH JUDICIAL CIRCUIT


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From: Sgt. John Breedlove

On June 2, 2015, Mark Williams contacted Det. Schemenaur to indicate that another shell casing was found approximately 4-6 feet from where Acton was shot. IMPD Evidence Technician recovered the shell casing and it was submitted to evidence as Item #30 through ballistics tests.

On June 2, 2015 at approximately 8:10pm, Det. Schemenaur and Det. Lehn conducted a recorded interview with Jason Jenkins. Mr. Jenkins said he was inside of his house at 1413 S. East St. with his girlfriend Tabatha Wimmer. Mr. Jenkins said his brother was outside with his girlfriend Hilary. Mr. Jenkins said Mark called him on the phone from outside and asked him to unlock the door so they could bring in groceries. Mr. Jenkins said he was talking to his brother on the phone when he heard his brother scream his name through the phone. Mr. Jenkins then heard 3 gunshots. He first ran out the back door then ran back inside, through the house and out the front door. Mr. Jenkins said he then saw his brother running down the street. Mr. Jenkins said he never saw the suspects.

On June 2nd, 2015 at about 8:50 PM, Det. Schemenaur and Det. Lehn conducted a recorded interview with Tabatha Wimmer. Ms. Wimmer said she had noticed two black males in the area three times that day which she has never seen in the neighborhood before. She described them as one being 5'5 with short braids or dreads and the other was tall and slender. Ms. Wimmer said she was inside of her residence at 1413 S. East St. with her boyfriend Jason Jenkins. Ms. Wimmer said she had just carried in two bags of groceries. While she was getting the groceries she noticed the same two males walking nearby. Ms. Wimmer said she was inside of the kitchen with Jason when she heard Hilary scream along with hearing five gunshots. Ms. Wimmer said she ran out the front door and saw Hilary on the ground and Mark Williams nearby.

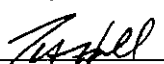
On June 3, 2015 at approximately 2:21am, Det. Schemenaur joined Crime Scene Specialist Clark to examine Hilary Acton's black 2004 Cadillac CTS 4 door sedan, pursuant to a signed written consent from by a co-owner of the vehicle, Steven Vaseloff (The other co-owner was Hilary Acton). The vehicle was photographed and examined for latent fingerprint evidence along the right side of the vehicle. During an inspection of the vehicle interior, CSS Clark found and collected a spent bullet from the passenger side floorboard. A Samsung Android smart phone (Model SGH-T599) was located by Det. Schemenaur in a female's black jacket within the interior cockpit of the sedan. This was consistent with the brand/style of phone reported by Hilary Acton's father Roger Acton and Williams.

On June 5th, 2015 Det. Schemenaur interviewed Ginger Stevens. Ms. Stevens is the mother of Tabatha Wimmer and also lives at 1413 S. East St. Ms. Stevens said she was upstairs in her

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NINETEENTH JUDICIAL CIRCUIT


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Affidavit for Probable Cause

From: Sgt. John Breedlove

bedroom when she heard gunshots right out front of her house. Ms. Stevens said she opened the door to the balcony and stepped out. Ms. Stevens stated she did not see anyone leaving the area.

On July 13th, 2015 Det. Schemenaur interviewed Ciara Jones. Ms. Jones stated on June 1st she heard 7-10 gunshots outside of her house. She said she heard people screaming and saw two males which she believed to be black running on Cottage Ave. Ms. Jones stated her cousin Marvin Mullins ran to the scene and began CPR on the female who was shot.

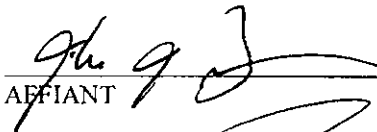
On July 13th, 2015 Det. Schemenaur interviewed Sgt. Marvin Mullins of the Marion County Sheriff's Office. Sgt. Mullins told Det. Schemenaur he was at home when he heard 5 to 6 gunshots then followed by 1-2 more. He left his home and went to the scene to assist the victim. He took his shirt off and applied pressure to her wound and performed CPR.

On 09/22/15 Det. Schemenaur received a NIBIN HIT on spent cartridge casings recovered from the crime scene on S. East St. on June 1st, 2015. The casing from S. East St. matched cartridge casings from a homicide case number DP15068031 which occurred on 06/19/2015 at 1938 Olney St. in Marion County. A second shell casing found within 4-6 feet from Acton's body (Item #30 listed above.) The homicide case on Olney Street was being investigated by Det. Jose Torres.

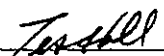
On 9/23/2015 Det Schemenaur met with Det. Jose Torres. Det. Torres' case involved a subject shot and killed within a vehicle during an alleged cellular phone buy. Det. Torres advised me he learned through the course of the investigation Eron Bonner was in the vehicle to sell a cell phone advertised on Craigslist. Eron Bonner got into a physical altercation with the victim at the time a gun went off several times. The victim was killed and Bonner was shot in the face. This was witnessed by Eron Bonner's friend Tafari Clay who claimed to be standing just outside this vehicle. Clay provided a mirandized statement to Det. Torres. Det. Torres had (4) 9mm casings recovered within the cockpit of the car, 3 from one gun, and 1 from a separate gun. The single casing from the separate gun was the NIBIN hit regarding the case at 1413 S. East St.

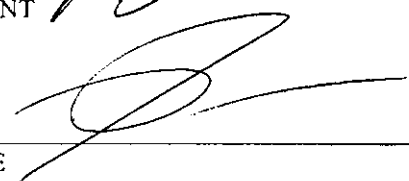
On June 24, 2015, Detective Tom Lehn and Jose Torres interviewed Tafari Clay for DP15-068031, in which Clay was a witness to an unrelated murder. Clay stated that he was with Eron Bonner, in the area of 2022 Olney when Bonner met an unknown subject in a black car to buy a cell phone. Clay stated he saw a struggle between Bonner and the male in the black car, later identified as Hanson Smith. Clay further stated that he witnessed Bonner shoot Smith while

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Affidavit for Probable Cause

From: Sgt. John Breedlove

inside the black car. Marion County Crime Scene Specialist Amanda Wilson recovered several cartridge casings from inside the black car where Smith was shot and killed.

On June 21, 2015, Det. Torres interviewed a witness related to the homicide investigation of Hanson Smith. The witness, David Martinez-Molina, stated he was in his kitchen when he looked out the window, facing the alley, when he saw two B/Ms behind his house near the vehicles. Martinez stated that one of the B/Ms was on a cell phone with a semi-auto handgun on his waistband. Martinez stated the other B/M was bleeding from his face.

On 10/13/2015 Det. Schemenaur placed Tafari Clay and Eron Bonner in photo arrays and met with Mark Williams. Tafari Clay is 5'8" 146 lbs with short dreadlocks. Eron Bonner is 6', 160 lbs. Det. Schemenaur showed Mr. Williams photo lineup #129209 which included a photo of Tafari Clay. Mark Williams identified Tafari Clay as the "shooter." Det. Schemenaur showed Mr. Williams photo lineup #129208 which included a photo of Eron Bonner. Mr. Williams could not make an identification.

On 12/23/2015 Det. Schemenaur interviewed Eron Bonner. Bonner denied any knowledge or involvement in the homicide on S. East St.

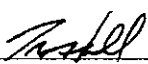
On 03/07/2016 Det. Schemenaur interviewed Tafari Clay. Tafari Clay also denied any knowledge or involvement in the homicide on S. East St.

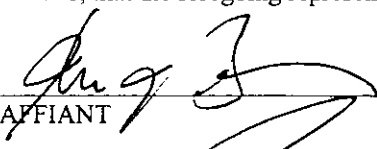
On 05/29/16 Sgt. Breedlove took a taped statement from Penny Mullins. Ms. Mullins said she was in her bedroom sitting on the side of her bed when she heard gunshots. She looked out her window and saw 2 black males on the corner of S. East St. and Cottage Ave. She saw one of the males raise his arm and fire one more round and then watched both males run east on Cottage Ave.

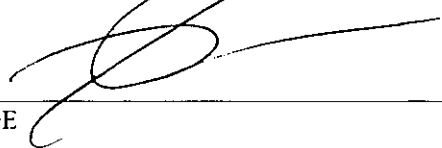
All events occurred in Marion County, Indiana.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

DATED: May 31st, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT


AFFIANT


JUDGE

0
**STATE OF INDIANA
MARION COUNTY, ss:**

**IN THE MARION SUPERIOR
CRIMINAL COURT 1
CRIMINAL DIVISION, ROOM W202**

STATE OF INDIANA

Cause No: 49G01-1605-MR-020949

vs.

INFORMATION

COUNT I

MURDER

I.C. 35-42-1-1(1)

A FELONY

COUNT II

MURDER

I.C. 35-42-1-1(2)

A FELONY

COUNT III

**ROBBERY RESULTING IN SERIOUS
BODILY INJURY**

I.C. 35-42-5-1(2)

A LEVEL 2 FELONY

COUNT IV

**UNLAWFUL POSSESSION OF A
FIREARM BY A SERIOUS VIOLENT
FELON**

I.C. 35-47-4-5(c)

A LEVEL 4 FELONY

**TAFARI DEPAUL CLAY
B/Male
DOB 3/22/1995**

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

On or about June 1, 2015, TAFARI DEPAUL CLAY did knowingly kill another human being, to-wit: Hilary Acton;

COUNT II

On or about June 1, 2015, TAFARI DEPAUL CLAY, did kill another human being, to wit: Hilary Acton; while attempting to commit armed robbery , to wit: demanding personal items from Hilary Acton while pointing a firearm at Hilary Acton, firing said firearm and striking Hilary Acton causing her death;

COUNT III

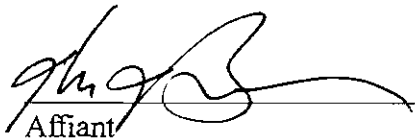
On or about June 1, 2015, TAFARI DEPAUL CLAY did knowingly attempt to take property, to-wit: groceries and clothing from another person, to-wit: Hilary Acton, by putting Hilary Acton in fear; said act resulting in serious bodily injury to shooting Hilary Acton, to-wit: causing her death;

COUNT IV

On or about June 1, 2015, TAFARI DEPAUL CLAY having previously been convicted of a serious violent felony, to-wit: Armed Robbery/FB under 49G01-1208-FB-053248 in the Marion County Superior Court G01 on or about August 6, 2012, did knowingly or intentionally possess a firearm, to-wit: a handgun;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44-2-1 that the foregoing representations are true.



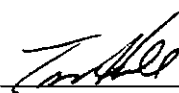
Affiant

May 31, 2016
Date

TERRY R. CURRY
Marion County Prosecutor
19th Judicial Circuit

State's Witnesses:

IMPD Brian Schemenaur, S7914
IMPD John Breedlove, B7028
IMPD Roger Feuquay, 30438
IMPD Thomas Lehn, X0650
IMPD Jose Torres, 21197
MCCL Collen Clarke
MCCL Kent Hedberg
MCCL Michael Putzek
MCCL Mackenzie Diouf
MCCL Amanda Wilson
MCCO Dr. Mira Geller
Mark Williams
Jason Jenkins
Tabatha Wimmer
Ciara Jones
Ginger Stevens
Marvin Mullins



Deputy Prosecuting Attorney

Penny Mullins

FILED

(38)

MAY 31 2016

Myla A. Eldridge
CLERK OF THE MARION CIRCUIT COURT

FILED
JUN 14 2016
Myla A. Eldridge
CLERK OF THE MARION CIRCUIT COURT

**AFFIDAVIT
FOR PROBABLE CAUSE**

STATE OF INDIANA, COUNTY OF MARION, SS:

Detective Jose Torres swears (affirms) that:

Friday June 19, 2015, at approximately 6:01PM, officers responded to a person shot in the face, in the area of 1900 Adams Street. Officers located the victim Eron Bonner suffering from a gunshot wound (GSW) to the face. Bonner was transported to Eskenazi Hospital and is currently in critical condition. Detective Scheid responded to Eskenazi Hospital and advised Bonner suffered a GSW to the chin, going upwards, and the bullet is behind his left eye. There was also stippling and burn to the chin area, and photos were taken of his injuries. At approximately 6:13PM officers also responded to 1938 N. Olney reference another person shot in a vehicle. Officer Hadley was flagged down by a B/F in front of 1938 N. Olney. Officer Hadley located the victim, Hanson Smith suffering from GSWs to the torso area. Smith was sitting on the driver's seat of a black 2014 Toyota with IN license plate WIF279. The vehicle is registered to Smith. Smith was pronounced on the scene by medics. The distance between both persons shot was less than a block away from each other.

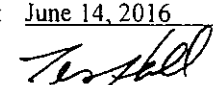
When I arrived on the scene I spoke to Reginald Batts and his girlfriend Teresa Little. Both stated they were walking N/B in the 1900 block of Olney when they noticed a black vehicle parked partially on the street and on the grass. Batts and Little noticed a person sitting in the driver's seat, when they approached the vehicle they noticed Smith was barely breathing and suffering from a GSW. They asked Smith what happened, however Smith did not say anything, and stopped breathing. Batts called 911 and Little flagged down officers when they arrived.

Detective Benner spoke to another witness named Tafari Clay. Clay stated he was a friend of Bonner, and was with Bonner when he was shot. Clay was transported to the Homicide Office. Clay stated Bonner had contacted someone from Craigslist to purchase a cell phone, and they agreed to meet on Olney Street. When he and Bonner arrived on Olney they saw a black vehicle parked on Olney occupied by a B/M. Bonner entered the vehicle and sat on the front passenger seat, while Clay stood next to the vehicle on the passenger side. Clay saw a struggle in the vehicle, he heard one gunshot and Bonner was shot in the face. Bonner and the B/M continued to struggle, when Clay saw Bonner shoot the B/M multiple times. After the gunshots Bonner exited the vehicle and Clay and Bonner ran W/B from Olney. While they were running away from Olney Clay called 911 from Bonner's cell phone. Clay gave Officer White, Bonner's cell phone, which is a white Samsung cell phone in a black case. I also checked the CAD system and the phone number which called 911 was 317-777-2200.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.


AFFIANT

DATED: June 14, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

JUDGE

Affidavit for Probable Cause

FILED

401

JUN 14 2016

From: Detective Jose Torres

Mylan A. Eldridge
CLERK OF THE NINETEENTH JUDICIAL CIRCUIT

Deputy Coroner Humbert arrived on the scene took photos of Smith and the scene. Humbert noticed Smith suffered two GSWs to the chest/stomach area, and his left arm/wrist area. There was an open pocket knife on the center counsel, next to Smith's right hand. Smith was transported to the morgue.

Smith's vehicle a black 2014 Toyota Camry IN license plate WIF279 VIN 4T1BF1FK4EU830983, was transported to ACC, 2600 S. Harding, and processed by Detective Lehn and Crime Lab. Four 9mm casings, a fired bullet, bullet fragment, four cell phones, tablet, various papers, folding knife, and inside a blue Chase Bank deposit bag was \$12,499.00 in cash. There was DNA/blood recovered on the front passenger side door, front passenger seat cushion, front passenger side interior front panel located between the door and seat. There was also DNA/blood recovered from the front of a black messenger bag located on the front passenger side floor board.

No firearms were located inside the vehicle, or on the scene.

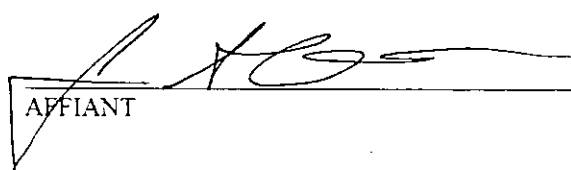
Saturday June 20, 2015, Detective Lehn went to Eskenazi Hospital, to check on the condition of Bonner. Detective Lehn spoke to family and was advised Bonner was in stable condition but his jaw was wired closed. Bonner was able to understand Detective Lehn's questions but was only able to write answers. Bonner wrote he was on Olney with Clay when a black vehicle pulled up, the driver began shooting and there was no one else in the vehicle when the incident occurred. Bonner also advised he only had \$2 when the shooting occurred, and Bonner denied being in the vehicle when the shooting happened.

Saturday June 20, 2015, I spoke to Dawn Togue, who is Smith's girlfriend. Pogue stated Smith dropped her off at home on June 19th in the afternoon and told her that he was going to meet somebody to sell a cell phone. Pogue also stated she went with Smith on two previous occasions earlier in the week, to meet with this same individual but this person gave them a wrong address on both occasions. Pogue also advised Smith's cell number was 317-695-2279.

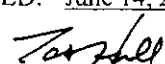
Saturday June 20, 2015 I attended the autopsy of Hanson Smith under MC#15-0514, the autopsy was performed by Dr. Mira Geller. Smith suffered three GSWs, two to the lower chest/stomach area, and one to the left wrist. There were two bullets recovered during the autopsy. The cause of death was determined to be the two GSWs to the chest/stomach area, where the bullets struck the aorta. The manner of death was ruled a homicide.

Saturday June 20, 2015, Detective Donna Ciesielski, from the Computer and Digital Forensics Unit, conducted an examination of Smith's cell phone with cell phone number 317-695-2279. The last text conversation Smith had before the shooting was with cell phone number 317-657-7228. In the

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.


AFFIANT

DATED: June 14, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

JUDGE

Affidavit for Probable Cause

FILED

491

JUN 14 2016

From: Detective Jose Torres

Myla A. Eldridge
CLERK OF THE NINE JUDICIAL CIRCUIT COURT

conversation between Smith and 317-657-7228 they were communicating about meeting in the area of 21st/Olney, and the last message was sent by Smith to 317-657-7228 at 5:49PM.

Saturday June 20, 2015, after obtaining a search warrant for the white Samsung cell phone in a black case that Clay gave Officer White, Detective Donna Ciesielski, from the Computer and Digital Forensics Unit, conducted an examination of the white Samsung. It was determined the cell phone number for the white Samsung was actually 317-652-6581, and not 317-777-2200, which was originally believed to be Eron Bonner's cell phone.

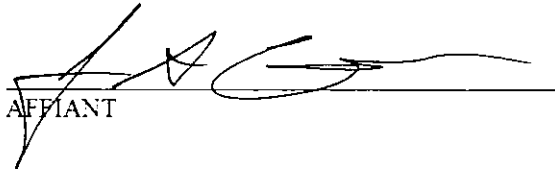
Sunday June 21, 2015, I interviewed David Martinez-Molina. Martinez stated he was in his kitchen around 6:00 pm when he looked out the window, which is facing the alley, and saw two B/Ms behind his house near the vehicles parked behind the house. It appeared to Martinez the two B/Ms were hiding. Martinez stated one B/M had a gray semi-auto handgun on his waistband and talking on a cell phone, the other B/M was bleeding from the mouth. The two B/Ms eventually ran W/B from behind the house, through his yard and onto Adam Street.

Wednesday June 24, 2015, Detective Lehn and I interviewed Tafari Clay. Clay stated he and Bonner were hanging out on the front porch of 2022 Olney, because Bonner was going to meet somebody about getting a cell phone. Bonner and Clay saw a black vehicle pull up and at first they were not sure if that was the person Bonner was going to meet about the cell phone, until the vehicle pulled up, and stopped in front of them. Clay saw only one person in the vehicle when Bonner got in the front passenger seat, while Clay stood outside the vehicle, near the passenger side door. Clay saw a struggle in the vehicle between Bonner and the driver, he heard gunshots, and stated Bonner shot the driver. After hearing the shots Bonner exited the vehicle, and they both ran W/B from the vehicle. While running from the vehicle they ran into an alley, and hid by some vehicles while Clay called 911. Clay denied having a gun before, during and after the shooting but also stated he was not sure if Bonner had a gun before he entered the vehicle.

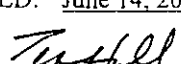
Monday August 3, 2015, Detective Lehn and I took a statement from Bonner. Bonner's jaw was still wired closed but he was fully aware of what he was saying and he had not taken any pain medications. Bonner stated he was walking on Olney Street with Tafari Clay, when a car pulled up next to them, they were on the passenger side, and began shooting. Bonner also stated he was standing straight up when he was shot. Bonner only had \$2 when the shooting occurred, and denied ever being in the black vehicle when the shooting occurred.

Friday January 8, 2016, I interviewed a Cooperating Witness #1 (hereinafter CW#1), a person who is known to law enforcement and who has no apparent motive to lie, who provided the following information. CW#1 stated he/she was at a residence at 20XX Houston Street, when he/she was speaking to a B/M named Eron Bonner AKA Half-Head and another B/M with dreads, which matches the

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.


AFFIANT

DATED: June 14, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

JUDGE

Affidavit for Probable Cause

From: Detective Jose Torres

description of Tafari Clay. While they were speaking to CW#1, Bonner and the other B/M told him/her they were going to meet the "phone guy" and rob him, because they heard he had money. CW#1 also said he/she saw Bonner with a gun while they were talking, and Bonner still had the gun with him when they left. CW#1 was still at the 20XX Houston Street residence when he/she saw several police cars arrive in the area and he/she saw Bonner was injured in the face but he/she did not approach Bonner. I showed CW#1 lineup #130627 and he/she identified the person in position #5 as the person he/she knows as Eron Bonner AKA Half-Head. The person in position #5 is Eron Bonner. Hanson Smith was also known in the neighborhood as the "phone guy".

Thursday June 2, 2016, I interviewed Shayana Pugh, who is the mother of Eron Bonner's daughter. Pugh told me she, Tafari Clay and Eron Bonner were at Vernon York's residence, on Houston Street. While at York's residence Clay and Bonner were talking about getting a cell phone from somebody, when that person called and text Bonner's cell phone saying he was going to pull up to a location so they could meet. Bonner told this person the description of Pugh's vehicle, which is a silver Chrysler Concord. Pugh then drove Bonner and Clay to the location which was a couple blocks away. Bonner and Clay exited her vehicle and walked up to a black vehicle parked in front of Pugh's vehicle. While Bonner and Clay were at the vehicle, Pugh saw Bonner lean into the vehicle when he was shot, and saw Clay shoot into the vehicle multiple times. After the shooting Clay and Bonner ran toward the alley. I showed Pugh lineup #133082 and she identified the person in position #2 as Tafari Clay. The person in position #2 is Tafari Clay gallery number 703062.

All of the above events occurred in Indianapolis, Marion County, Indiana.

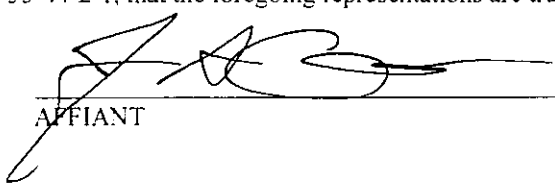
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431

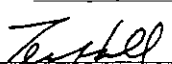
JUN 14 2016

Myla A. Eldridge
CLERK OF THE MARION CIRCUIT COURT

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.


AFFIANT

DATED: June 14, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

JUDGE

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR
CRIMINAL COURT 2
CRIMINAL DIVISION, ROOM W241

STATE OF INDIANA

vs.

TAFARI DEPAUL CLAY

B/Male

DOB 3/22/1995

FILED

401

JUN 14 2015

Nylen A. Eldridge
CLERK OF THE MARION CIRCUIT COURT

Cause No: 49G02-1606-MR-022838

INFORMATION

COUNT I

MURDER

I.C. 35-42-1-1(1)

A FELONY

COUNT II

MURDER

I.C. 35-42-1-1(2)

A FELONY

COUNT III

ROBBERY RESULTING IN SERIOUS

BODILY INJURY

I.C. 35-42-5-1(1)

A LEVEL 2 FELONY

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

On or about June 19, 2015, TAFARI DEPAUL CLAY did knowingly kill another human being, to-wit: Hanson Smith;

COUNT II

On or about June 19, 2015, TAFARI DEPAUL CLAY, did kill another human being, to wit: Hanson Smith; while committing or attempting to commit the offense of robbery, to wit: while Clay was attempting to take property from the person or presence of Hanson Smith by using or threatening the use of force and while armed with a deadly weapon, Hanson Smith was shot and killed;

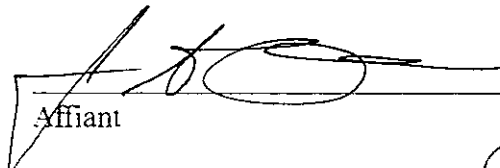
COUNT III

On or about June 19, 2015, TAFARI DEPAUL CLAY did knowingly take property, to-wit: U.S. Currency from another person or the presence of another person to-wit: Hanson Smith, by using force or

by threatening the use of force, to-wit: with the use of a gun; and said act resulting in serious bodily injury to Hanson Smith, to-wit: gunshot wounds;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44-2-1 that the foregoing representations are true.


Affiant

FILED

401 JUN 14 2016

June 14, 2016

Date

TERRY R. CURRY

Marion County Prosecutor
19th Judicial Circuit

State's Witnesses:

Det. Jose Torres, IMPD, 201278

Det. Thomas Lehn, IMPD, X0650

Det. Charles Benner, IMPD, B4219

Amanda Wilson, MCCL, 40137

Dr. Mira Geller, MCCO

Reginald Batts

Teresa Little

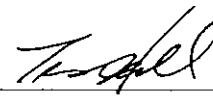
David Molina-Martinez

CW #1

Dawn Pogue

Shayana Pugh


CLERK OF THE MARION CIRCUIT COURT


Deputy Prosecuting Attorney

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR
CRIMINAL COURT 19
CRIMINAL DIVISION, ROOM T442

STATE OF INDIANA)

Cause No: 49G19-1507-CM-026064

vs.)

INFORMATION

COUNT I

POSSESSION OF MARIJUANA

I.C. 35-48-4-11(a)(1)

A CLASS B MISDEMEANOR

COUNT II

OPERATING A MOTOR VEHICLE

WITHOUT EVER RECEIVING A
LICENSE

I.C. 9-24-18-1

A CLASS C MISDEMEANOR

TAFARI DEPAUL CLAY B/Male
DOB 3/22/1995

FILED

JUL 27 2015

(130)

Myra A. Eldridge
CLERK OF THE MARION CIRCUIT COURT

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

On or about July 21, 2015, TAFARI DEPAUL CLAY did knowingly possess a controlled substance, that is: Marijuana, pure or adulterated;

COUNT II

On or about July 21, 2015, TAFARI DEPAUL CLAY did knowingly or intentionally operate a motor vehicle upon a public highway, said defendant never having received a valid driving license;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44-2-1 that the foregoing representations are true.



Affiant

July 24, 2015

Date

TERRY R. CURRY
Marion County Prosecutor

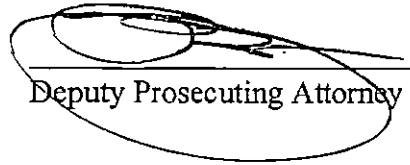
State's Witnesses:

S. Bohan 30753 IMPD

Devon Meyers Sheridan PD

M. Hoskins 21162 IMPD

19th Judicial Circuit



Deputy Prosecuting Attorney

AFFIDAVIT FOR PROBABLE CAUSE

FILED

STATE OF INDIANA, COUNTY OF MARION, SS:

JUL 27 2015

130

Marshall Hoskins swears (affirms) that:

Nyle A. Eldridge
CLERK OF THE MARION CIRCUIT COURT

On 07/20/2015 at approximately 11:06 PM officers of the IMPD, including Ptl. Kelli Novak were dispatched to the Shell gas station at 2401 E Prospect St on report of a carjacking. Upon arrival Ptl. Novak spoke with Tyrique Engel-Stevenson. Tyrique Engel-Stevenson stated that he was sitting in his white Dodge truck at the gas pump when two black males approached him, one pointed a gun at him, and they stole his truck, wallet, and phone.

On 07/21/2015 at approximately 9:32 PM Ptl. Scott Bohan of the IMPD was dispatched to E Michigan St and N Oakland Ave on report of a located carjacked vehicle. Ptl. Bohan was advised that the victim had located his stolen vehicle and saw people standing around it. While Ptl. Bohan was enroute the vehicle left on E Michigan St. Ptl. Bohan saw the vehicle and conducted a traffic stop. The driver continued to drive east from N. Parker Ave into a Speedway gas station at 3005 E 10th St. The vehicle continued through the lot into the parking lot of Doc's Liquors at 3029 E 10th St. The passenger, later identified as Christopher Gilbert, jumped out of the moving vehicle and fled on foot. Ptl. Devon Meyers of the Sheridan Police Department was working off duty security at Speedway and witnessed Christopher Gilbert run and apprehended him behind 3005 E 10th St. The driver, later identified as Tafari Clay, exited the truck while it was still moving and the truck rolled into a parking block and a street sign causing minor damage. Ptl. Bohan took Tafari Clay into custody. During search incident to arrest, Ptl. Bohan located what, based on his training and experience, he believed to be marijuana in Tafari Clay's right front pants pocket. He arrested Tafari Clay for auto theft and possession of marijuana. He arrested Christopher Gilbert for auto theft and resisting law enforcement by fleeing.

On 07/23/2015 I, Det. M. Hoskins of the IMPD took a recorded statement from Tyrique Engel-Stevenson. His statements were consistent with his initial report. He described the suspects as follows:

Suspect #1, Black male, 16-18 y/o, 5'6"-5'9", slim build 140-150 lbs, shirt over his hair, a short afro, possible white shirt, armed with a black semi automatic handgun.

Suspect #2, Black male, 16-18 y/o, 5'6"-5'9", slim build 140-150 lbs, possibly with small dreads about to the neck, unarmed.

Tafari Clay is a black male, 20 years old, 5'8", 146 lbs, with short dreads that stop above the neck. Christopher Gilbert is a black male, 18 years old, 5'6", 150 lbs, with short dreads that stop just below the

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

[Signature]
AFFIANT

DATED: 07/24/2015

[Signature]
DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

[Signature]
JUDGE

Affidavit for Probable Cause

From: Marshall Hoskins

ear.

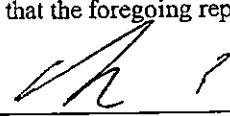
I showed Tyrique Engel-Stevenson photo array #128180, which contains a photo of Tafari Clay in position #6. Tyrique Engel-Stevenson eliminated photos #1, 3, and 5. He stated #2 was a strong possibility and #4 and #6 were weaker possibilities for the suspect.

I showed Tyrique Engel-Stevenson photo array # 128181, which contains a photo of Christopher Gilberts in position #6. He initially stated that #6 looked very familiar and selected that photo at 70-80% certainty as the unarmed suspect. He then selected two other photographs and stated that he believed they were also possibilities at about a 20% chance.

On 07/24/2015, I went to the Shell at 2401 E Prospect St and viewed their security footage. The footage did confirm Tyrique Engel-Stevenson's statements, but is not of sufficient quality to make identification of the suspects. I did take a copy of the video surveillance.

The above facts and information occurred in the County of Marion, State of Indiana.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.



AFFIANT

DATED: 07/24/2015



DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

JUDGE

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49

STATE OF INDIANA)
)
 vs.)
)

INFORMATION

VINCENT MCCURTIS
B/Male
DOB 8/20/1993

COUNT I
DOMESTIC BATTERY
I.C. 35-42-2-1.3(a)(1) and I.C. 35-42-2-
1.3(b)(1)
A CLASS A MISDEMEANOR

COUNT II
DOMESTIC BATTERY
I.C. 35-42-2-1.3(a)(1) and I.C. 35-42-2-
1.3(b)(1)
A CLASS A MISDEMEANOR

COUNT III
DOMESTIC BATTERY
I.C. 35-42-2-1.3(a)(1)
A CLASS A MISDEMEANOR

COUNT IV
DOMESTIC BATTERY
I.C. 35-42-2-1.3(a)(1)
A CLASS A MISDEMEANOR

COUNT V
PUBLIC INTOXICATION
I.C. 7.1-5-1-3(a)(4)
A CLASS B MISDEMEANOR

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I, PAGE ONE

On or about May 12, 2017, VINCENT MCCURTIS did knowingly touch Ashlee Peterson, a family or household member, in a rude, insolent or angry manner by pushing her;

COUNT II, PAGE ONE

On or about May 12, 2017, VINCENT MCCURTIS did knowingly touch Ashlee Peterson, a

family or household member, in a rude, insolent or angry manner by grabbing her neck area;

COUNT III

On or about May 12, 2017, VINCENT MCCURTIS did knowingly touch Ashlee Peterson, a family or household member, in a rude, insolent or angry manner by pushing her;

COUNT IV

On or about May 12, 2017, VINCENT MCCURTIS did knowingly touch Ashlee Peterson, a family or household member, in a rude, insolent or angry manner by grabbing her neck area;

COUNT V

On or about May 12, 2017, VINCENT MCCURTIS was found at or near the 2000 block of E 38th St, a public place or a place of public resort, in a state of intoxication caused by the person's use of alcohol or a controlled substance; and further, VINCENT MCCURTIS harassed, annoyed or alarmed another person;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44.1-2-1 that the foregoing representations are true.

/s/ E Page Prentice

Affiant

May 12, 2017

Date

TERRY R. CURRY

Marion County Prosecutor
19th Judicial Circuit

/s/ E Page Prentice

Deputy Prosecuting Attorney

State's Witnesses:
BRANDON BROWN, IMPD
MARLON DOUGLAS, IMPD
Ashlee Peterson
Robin Bagby
MCSO 911 KOR
MARION CO CLERK
IMPD PRINT ANALYST - KOR

5/12/2017

Online RMS :: Narrative

Incident Summary: 05/12/2017 0129 Hrs - [REDACTED] Caroline AVE Indianapolis, IN 46218 Agency Name: IMPD North District
Offense(s): 35-44.1-3-E-ESCAPE Report #:PD17051320 Supp #:0

Narrative: Field Arrest #17AR-IMPD02352 Narrative #1

STATE OF INDIANA, COUNTY OF MARION, SS:

PROBABLE CAUSE AFFIDAVIT

IMPD Case/Incident Number: PD17051320 / I171320168

Defendant Name: Vincent Mccurtis

Location of Incident: 2015 E 38th

Arresting Officer / ID: 40801 / Brown

Agency: Indianapolis Metropolitan Police Department

On May 12, 2017 at approximately 0132 hours, I, Officer Brandon Brown with the Indianapolis Metropolitan Police Department responded to investigate a disturbance between a male and female by [REDACTED] Caroline Ave. Upon arrival, officers noticed both subjects walking east on 38th street in front of 2015 E 38th. I noticed the male subject, identified as Vincent Mccurtis, use his hands to shove the female victim, identified as Ashlee Peterson. Mr. Mccurtis continued to yell at Ms. Peterson, then Mr. Mccurtis looked as if he was going to punch Ms. Peterson with his right hand. Officers then stopped both subjects, and Mr. Mccurtis was placed in handcuffs and detained for further investigation. Mr. Mccurtis and Ms. Peterson live together and are in a sexual relationship. Ms. Peterson was very uncooperative with officers, where she did not acknowledge the battery. Also both subjects were heavily intoxicated. Officers located the complainant, identified as Robin Bagby, who stated she saw both subjects outside of her home. She then noticed Mr. Mccurtis yelling at Ms. Peterson, and shoving her around. Ms. Bagby stated that Mr. Mccurtis was trying to get Ms. Peterson to come back home and she did not want to go. Ms. Bagby then noticed Mr. Mccurtis grab Ms. Peterson by the neck with his arm. Ms. Bagby then told both subjects to go away from her home, and she notified the police. Officers arrived soon after.

After the investigation, Mr. Mccurtis was arrested for Domestic Battery and Battery. While officers were waiting for the wagon, Mr. Mccurtis continued to yell and curse at officers. Officers continued to tell him to quiet down, in which he did not listen. Citizen started to gather on the street because of the disturbance. Mr. Mccurtis then got up off the ground and tried to run away from officers, in an attempt to escape police detention. Mr. Mccurtis was then also arrested for Escape and Disorderly Conduct. Mr. Mccurtis was then transported to the APC by Marion County Wagon Driver.

All events occurred in Marion County, Indianapolis, IN.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Brandon Brown

Law Enforcement Officer

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49G03

STATE OF INDIANA)

vs.)

VINCENT MCCURTIS
B/Male
DOB 8/20/1993

INFORMATION

COUNT I

AGGRAVATED BATTERY

I.C. 35-42-2-1.5(2)

A LEVEL 3 FELONY

COUNT II

INVOLUNTARY MANSLAUGHTER

I.C. 35-42-1-4(b)(3)

A LEVEL 5 FELONY

COUNT III

BATTERY RESULTING IN SERIOUS
BODILY INJURY

I.C. 35-42-2-1(c)(1) and I.C. 35-42-2-1(g)(1)

A LEVEL 5 FELONY

COUNT IV

CRIMINAL CONFINEMENT

I.C. 35-42-3-3(a) and I.C. 35-42-3-3(b)(1)

(C)

A LEVEL 5 FELONY

COUNT V

BATTERY RESULTING IN BODILY
INJURY TO A PUBLIC SAFETY
OFFICER

I.C. 35-42-2-1(c)(1) and I.C. 35-42-2-1(g)(5)

(A)

A LEVEL 5 FELONY

COUNT VI

ESCAPE

I.C. 35-44.1-3-4(a)

A LEVEL 4 FELONY

COUNT VII

ESCAPE

I.C. 35-44.1-3-4(b)

A LEVEL 6 FELONY

COUNT VIII

RESISTING LAW ENFORCEMENT

I.C. 35-44.1-3-1(a)(3)

A CLASS A MISDEMEANOR

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial

Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

On or about March 9, 2018, VINCENT MCCURTIS did knowingly inflict injury on Edward Bodie that caused protracted loss or impairment of the function of a bodily member or organ, to-wit: death;

COUNT II

On or about March 9, 2018, VINCENT MCCURTIS did kill another human being, to wit: Edward Bodie; while committing or attempting to commit Battery;

COUNT III

On or about March 9, 2018, VINCENT MCCURTIS did knowingly touch J.T. in a rude, insolent, or angry manner, by punching him in the head, resulting in serious bodily injury, that is: unconsciousness;

COUNT IV

On or about March 9, 2018, VINCENT MCCURTIS did knowingly confine J.O. without the consent of J.O., said act resulting in bodily injury to J.O., to-wit: pain;

COUNT V

On or about March 9, 2018, VINCENT MCCURTIS did knowingly touch Sonya Daggy, a public safety officer, in a rude, insolent, or angry manner by striking her in the head with a door, while said officer was engaged in the execution of his official duties, resulting in bodily injury, that is: a cut and/or laceration to the forehead of Sonya Daggy;

COUNT VI

On or about March 9, 2018, VINCENT MCCURTIS did intentionally flee from lawful detention and in committing said act the defendant inflicted bodily injury on Sonya Daggy;

COUNT VII

On or about March 9, 2018, VINCENT MCCURTIS did knowingly violate a home detention

order, to wit, a home detention order issued on or about June 16, 2017 by Marion County Superior Court Criminal Division Room 4, under cause number 49G04-1602-F5-006298;

COUNT VIII

On or about March 9, 2018, VINCENT MCCURTIS did knowingly flee from Eric Reidenbach, Michael Watkins, and/or Kenneth Greer, a law enforcement officer with the Indianapolis Metropolitan Police Department, after said officer identified herself by visible or audible means and visibly or audibly ordered VINCENT MCCURTIS to stop;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44.1-2-1 that the foregoing representations are true.

/s/ Jeremy Teipen
Affiant

March 13, 2018
Date

TERRY R. CURRY
Marion County Prosecutor
19th Judicial Circuit

State's Witnesses:
Jose Torres 20178 IMPD
Marcus Kennedy K2692 IMPD
Eric Reidenbach R8134 IMPD
Michael Watkins W7454 IMPD
Kenneth Greer G4054 IMPD
Sonya Daggy D6849 IMPD
Shandra Clawson 40659 MCCL
Dr. Christopher Poulos
J.T.
J.O.
R.C.
J.D.

/s/ Jeremy Teipen
Deputy Prosecuting Attorney

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Jose A. Torres swears (affirms) that:

Friday March 9, 2018, at approximately 5:43AM, officers responded to 3525 N. Shadeland, Shadeland Inn, reference a fight in the lobby of the hotel. When officers and medics arrived they spoke to a W/M named J.T., and B/M named Edward Bodie. J.T. and Bodie told the officers the person who assaulted them was a younger B/M with dreads, blue jeans, and no shirt. Officers apprehended the shirtless B/M, identified as Vincent McCurtis. After apprehending McCurtis officers brought him back to the lobby of the hotel. Ambulances were requested to check the injuries sustained by J.T. and Bodie. While medics were checking on Bodie he collapsed and went into cardiac arrest, Bodie was transported to Eskenazi Hospital, where he was pronounced deceased at 6:24AM by Dr. Simons. J.T. was transported to Community East Hospital and was eventually released in good condition. While McCurtis was in custody for the assault he fled from officers, while cuffed, by running out the front door of the lobby of the hotel. While running he struck Officer Sonya Daggy in the face with the door, causing pain, and injured her face. Officers were able to apprehend McCurtis near 3510 N. Shadeland, and he was transported to the Homicide Office. Officers also transported a W/F named J.O., who was with McCurtis when the incident occurred, to the Homicide Office.

Friday March 9, 2018, I interviewed R.C., who was staying at the hotel. R.C. stated he was going toward the front lobby when he heard loud noises coming from the lobby. When he walked into the lobby he saw a W/M lying on the floor bleeding from his mouth. R.C. also saw a shirtless B/M with dreads, later identified as McCurtis, being loud and hostile. McCurtis approached R.C. and calmed down while R.C. was trying to help J.T. get up from the floor. R.C. went back to his room to get ice for J.T., when he returned to the lobby with the ice he saw an older B/M, later identified as Edward Bodie, enter the lobby. R.C. heard McCurtis get in an argument with Bodie, and R.C. went back to his room. Approximately 15 minutes later R.C. walked back towards the lobby, saw Bodie lying on the floor, and heard McCurtis yelling at the front desk employee saying "Don't call the police or you will be next." R.C. went back to his room and called 911. When officers arrived on the scene R.C. went back to the lobby and saw they had McCurtis in custody. R.C. also saw McCurtis flee from police and strike the female officer in the face with the door.

Friday March 9, 2018, I interviewed J.D., who was staying at the hotel. J.D. stated he went to the lobby of the hotel when he saw McCurtis yelling at the front desk employee, and hitting the security window. While McCurtis was still yelling and acting very erratic, McCurtis walked over to woman, later identified as J.O., for a moment when J.T. walked into the front

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Jose Torres

AFFIANT

DATED: March 12, 2018

Affidavit for Probable Cause

From: Jose A. Torres

door of the lobby. McCurtis then began arguing with J.T. about money. While they were arguing J.D. saw McCurtis punch J.T. and saw J.T. fall to the floor. After witnessing the assault J.D. went back to his room.

Friday March 9, 2018, Detective Marcus Kennedy went to Community East Hospital and interviewed J.T.. J.T. stated he was staying at the hotel and earlier in the evening he met McCurtis and J.O.. Eventually, all three went back J.T.'s room where they drank beer together. While in the room McCurtis asked J.T. if he had any money. J.T. told him yes, and showed him approximately \$100. McCurtis took \$80 from J.T., and refused to give the money back to J.T.. Eventually McCurtis and J.O. left the room. J.T. began searching the hotel for McCurtis and when he walked into the front lobby of the hotel he saw McCurtis. J.T. asked McCurtis for his money and McCurtis became very hostile towards him. McCurtis then punched J.T. twice in the face knocking him down to the floor, rendering him unconscious. J.T. was eventually able to find his cell phone and called 911. J.T. also saw Bodie walk into the lobby and saw McCurtis begin arguing with Bodie. J.T. saw McCurtis hit Bodie several times knocking Bodie to the floor, and saw that McCurtis was on top of Bodie, and while they were on the floor McCurtis struck Bodie several times. J.T. sustained injuries to his teeth, nose, lips and the back of the head.

Friday March 9, 2018, I interviewed J.O.. J.O. stated she had been dating Vincent McCurtis for approximately 3 months and they have been staying together at the hotel for a week. J.O. and McCurtis arrived at the hotel at approximately 3:00AM Friday morning when they met J.T. and went to his room for approximately 30minutes to drink. Eventually she and McCurtis left J.T.'s room and returned to the lobby to get towels when she saw J.T. at the front door of the lobby. McCurtis approached J.T. and began arguing about money. While they were arguing J.O. saw McCurtis hit J.T. at least two times and J.T. fell to the floor. A few minutes later J.O. saw Bodie walk into the lobby and McCurtis began yelling at him. McCurtis began hitting Bodie several times, and McCurtis was on top of Bodie when he fell to the floor. While they were fighting, J.O. went into the bathroom hiding from McCurtis until police arrived. While J.O. was speaking to Officer Sonya Daggy she saw McCurtis flee from the police, striking Officer Daggy in the face with the hotel door as he ran out. McCurtis continued to run from uniformed IMPD officers, despite commands to stop. J.O. also stated that earlier in the evening she had tried to get away from McCurtis several times but he forcibly made her stay with him by physically restraining her, pulling her hair and grabbing her neck.

Friday March 9, 2018, I attempted to interrogate Vincent McCurtis but after I advised him of his Miranda rights he declined to give me a statement.

Friday March 9, 2018, I viewed the surveillance recording from the hotel of the incident. At 05:26:13AM McCurtis is seen approaching J.T. in the lobby and becoming aggressive. I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Jose Torres

AFFIANT

DATED: March 12, 2018

Affidavit for Probable Cause

From: Jose A. Torres

towards J.T.. At 05:27:39AM McCurtis strikes J.T. on the face with his right fist. At 05:27:52AM McCurtis strikes J.T. again on the face with his right fist and J.T. falls to the floor, clearly unconscious. At 05:35:38AM McCurtis pushes J.T. back down to the floor and continued being aggressive towards J.T.. At 05:37:52AM Bodie enters the lobby from the front door and walks towards the front counter when McCurtis approaches him and becomes aggressive towards Bodie. At 05:38:25AM with McCurtis becoming more aggressive Bodie backs away and McCurtis continued advancing forward towards Bodie. At 05:39:33AM McCurtis knocks Bodie to the floor, McCurtis is on top of Bodie striking him multiple times. At 05:47:27AM McCurtis stepped away from Bodie and Bodie was able to stand up. McCurtis continued being aggressive towards Bodie and at 05:48:57AM McCurtis began hitting Bodie again. Bodie was able to get out of the front door but McCurtis grabbed Bodie's coat so he was not able to leave the front door. Officers arrived at 05:50:49AM and Bodie enters the lobby with the officers. From the time Bodie entered the lobby and McCurtis became aggressive towards him, until the conclusion of McCurtis' assault on him, approximately 10 minutes elapsed.

McCurtis was also on home detention reference Cause #49G04-1602-F5-006298 when this incident occurred.

Friday March 9, 2018, I attended the autopsy of Edward Bodie under MCCO #18-0592, conducted by Dr. Christopher Poulos. Dr. Poulos' determined the manner of death to be a homicide.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Jose Torres

AFFIANT

DATED: March 12, 2018

STATE OF INDIANA
MARION COUNTY, ss:

**IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION**

Cause No: 49D27

STATE OF INDIANA)
)
)
 vs.)
)

INFORMATION
COUNT I
MURDER
I.C. 35-42-1-1(1)
A FELONY

VINCENT MCCURTIS
B/Male
DOB 8/20/1993

Co-Defendant with:

BRANDON JACKSON

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about May 14, 2023, VINCENT MCCURTIS did intentionally kill another human being, to-wit: Bryan Ward;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

May 22, 2023
Date

RYAN MEARS
Marion County Prosecutor
19th Judicial Circuit

/s/ Amy Jacobson

Amy Jacobson, #31039-49
Deputy Prosecuting Attorney

State's Witnesses:
M. Melky, IMPD
VN
NS

AFFIDAVIT

FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Detective Matthew Melkey swears (affirms) that:

On Sunday, May 14, 2023, IMPD Southwest District Officers responded to 1759 Howard Street to investigate the report of a person assaulted. Officers arrived on scene and spoke with a neighbor, later identified as VN, who advised police that an unidentified male was observed being assaulted in the backyard of 1759 Howard Street before being drug into the residence. Officers were able to make entry into 1759 Howard Street and located an adult male, later identified as Bryan Ward, inside suffering from trauma consistent with an assault. Officers also located three other individuals at 1759 Howard Street, NS, Vincent McCurtis, and Brandon Jackson. IEMS and IFD were called to the scene. Once medical personnel arrived, they began to transport Bryan to Eskenazi Hospital. While receiving treatment from IEMS, the male entered cardiac arrest. When IEMS and IFD arrived at the hospital, the male continued to receive medical treatment from hospital staff. Aggravated assault and Homicide detectives responded to the scene while Det. Sgt. Duke responded to Eskenazi Hospital. Det. Sgt. Duke advised that Brandon was currently suffering from a brain bleed and did not have any penetrating trauma found on his body at this time. CSU Sego responded to the scene for processing.

NS, Vincent, and Brandon were transported to the IMPD Homicide office. Detective Melkey and Detective Ramos observed a red mark on the right forearm of Vincent and scratches on the chest and arms of Brandon that appeared to be new.

Detective Ramos and Detective Melkey took a recorded statement from VN on scene. VN stated that when she arrived home today, she parked out back. When VN parked, she observed NS, Vincent, the male that got hurt, and another male in the back. The male that got hurt made a comment about liking VN's legs while she was walking in. VN stated herself, NS, the male that got hurt, and the other male were then out in front of the duplex. VN stated everybody except her had been drinking. While there, the male that got hurt made another comment to VN, and Vincent told the male that got hurt not to talk to his "sister" like that and the male that got hurt said that he wouldn't anymore. Vincent, the male that got hurt, and the other male then went out back. After a short time, the male that got hurt returned to the front of the duplex while Vincent and the other male went into Vincent's residence. Vincent then came out of his residence and told the male that got hurt not to talk to VN. Vincent then continued to say that the male that got hurt was disrespecting him by talking to VN. Vincent then called out the other male from inside his residence saying to help him come beat up the male that got hurt. VN then saw the male that got hurt go towards the east side of the residence to go towards his truck and Vincent and the other male chased him. At this point, VN heard a physical altercation. Vincent then came back to the front of the residence and said to VN, "This is what you wanted right?". VN said "no I didn't say anything, if he's being disrespectful, I understand that, but you can just tell him to leave," and Vincent responded by saying "No this is what I do, this is who I am. I'm going to take care of it". VN then heard Vincent screaming "I'm going to kill him for you" and "I'm going to do this for you". VN stated the other guy took the male that got hurt to the backyard and Vincent kept going into his residence going from the back and out to the front. While this was happening, VN heard Vincent screaming "Tie him up", "get him inside", and "I'm going to kill him". VN and NS then determined they needed to call police and Vincent told them not to call police and they better not call the police. VN also noted during these altercations that Vincent and the other guy took the male that got hurt phone and keys and Vincent said, "he's not leaving" and "Make sure he doesn't leave". Vincent also drove the male that got hurt vehicle for a short while, while the other guy had the male that got hurt inside. When Vincent came back, VN heard Vincent say, "Put him in the bathtub, I'm going to drown him in the bathtub". Vincent would then go back to the car and the other male came outside. VN then heard Vincent say, "he

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Matthew Melkey

AFFIANT

DATED: 05/17/2023_____

Affidavit for Probable Cause

From: Matthew Melkey

better not be dead dead in there, like you keep him dead but keep him alive so I can finish him off". VN could then hear a physical altercation occurring inside Vincent's residence. VN went inside her residence to get a jacket and Vincent began to ask where VN was and thought she was calling the police. VN then heard Vincent say to strip the male that got hurt of his clothes and get him naked and bring him back out to the porch so everybody could see what he was doing to him. Vincent then invited VN inside his residence saying, "Come inside, you need to see what I'm doing, you need to see what I'm doing for you". VN then went inside her residence and called her friend C. C had called the police for VN. While this was occurring, Vincent and the other guy tried to come into VN's residence but were unsuccessful because VN closed her door. VN then observed Vincent and the other male dragging the male that got hurt from their side of the duplex over to her residence. Through the window, VN could see them throw the male that got hurt to the ground. Vincent was then banging on the door and VN could hear Vincent saying, "Come here, come see what I was doing, come see what I did for you." Vincent and the other male then dragged the male that got hurt back into 1759 Howard Street by his feet. Police then showed up. VN then left her residence and waited for officers. VN had not seen the male that got hurt or the other guy before today and did not know their names.

VN described NS as a white female that is approximately 35 years old and had blue hair. NS had been her neighbor since February 2023. VN described Vincent as a tall black male, who has multiple tattoos, and longer dreadlock hair. Vincent had been her neighbor since February 2023. VN described the other male as a white male that is approximately 20 years old. The other male was shirtless with a hat, had blonde or strawberry blonde hair, and was not shoulder length but shorter. VN described the male that got hurt as a skinny white male that is approximately 57 years old, wears glasses and has dark longer hair with grays in it. The male that got hurt was wearing a black shirt.

Detective Gray took a records statement from EB. EB stated she came over to VN's house because VN had texted her. When she arrived, police tape and police cars were on scene. EB relayed to officers that there was a ring camera outside of NS's house. EB talked to VN and NS on scene prior to giving a statement and then gave a similar story to what NS and VN stated.

Detective Ramos and Detective Melkey took a recorded statement from NS. NS stated that she is the girlfriend of Vincent. Today, she, Vincent, Brandon, and another male she knows as "Old School" were hanging out at her and Vincent's house, which is 1759 Howard Street. VN arrived at her home, 1757 Howard Street, and was walking into her residence when "Old School" commented that he likes VN's legs. NS and VN then went to the front of their duplex and were looking at books when Vincent, Brandon, and "Old School" came to the front. While there, "Old School" continued to make comments about VN. Vincent told "Old School" that is his "little sister" and to not talk to her that way. NS stated that an altercation then began, however, it occurred around the corner of the residence and the altercation took place on the side and back of the residence. NS observed Brandon hit "Old School". NS did not wish to give a further taped statement regarding this. Detective Ramos and Detective Melkey then presented photo array # 164826 to NS. NS picked number 3, which contained a photo of Brandon Jackson. NS stated that she recognized number 3 from being involved in the incident that occurred today. NS also informed Detective Melkey and Ramos that she had a Ring camera on her house. NS released the phone to Detective Melkey to obtain the Ring footage.

Detective Ramos and Detective Melkey read Brandon the IMPD advice of rights and waiver of rights form. Brandon stated that he understood his rights and would make a statement. Brandon stated they were all in the backyard when the guy that got beat up showed up in his truck. The guy that got hurt and "Drew" had some type of argument, and they went into the house fighting. Brandon and "Drew's" girlfriend followed inside. Once "Drew" and the guy that got beat up fought, "Drew," told them not to leave and if they tried "Drew" would put his hands on them. When police were coming into the residence, "Drew" pushed Brandon outside and told Brandon to say that he did

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Matthew Melkey

AFFIANT

DATED: 05/17/2023 _____

Affidavit for Probable Cause

From: Matthew Melkey

everything. Brandon saw "Drew" beat the guy that got hurt by hitting and kicking him. Brandon stated the scratches on him were from the guy next door and around the neighborhood who he called "Drew". Brandon denied any involvement in the beating

Detective Ramos and Detective Melkey read Vincent the IMPD advice of rights and waiver of rights form. Vincent stated that he understood his rights and declined to make a statement at this time.

CSU Mishler responded to the IMPD Homicide office. CSU Mishler collected photographs and DNA swabs from Vincent pursuant to a granted search warrant under cause # 49D30-2305-MC-013900. CSU Mishler collected clothing from Vincent pursuant to a granted search warrant under cause # 49D25-2305-MC-013902.

CSU Mishler collected photographs and DNA swabs from Brandon pursuant to a granted search warrant under cause # 49D31-2305-MC-013901. CSU Mishler collected clothing from Brandon pursuant to a granted search warrant under cause # 49D23-2305-MC-013903.

Detective Melkey was able to confirm Bryan by using the BMV information, including a photograph, obtained from Bryan's truck that was parked in the back of the residence. The truck is a black Ford with license plate # TK1190HQ VIN 2FTRX07292CA42091

Vincent McCurtis and Brandon Jackson were placed under arrest for attempted murder. They were both transported by wagon to the CJC.

On Monday May 15, 2023, Detective Melkey was informed that Bryan was declared brain dead at 12:33 P.M. by Dr. Clare Russel. It was noted that Bryan's injuries included a brain bleed. At 6:56 P.M., Bryan was deceased. Coroner Chambon responded to Eskenazi Hospital and took possession of Bryan. Coroner Chambon was shown that Bryan had flatlined at 6:56 P.M. Bryan was transported to the Marion County Coroner's office.

On Tuesday May 16, 2023, Detective Melkey met with VN. Detective Melkey presented photo array # 164827 to VN. VN picked number 6, which contained a photo of Brandon Jackson. VN stated that she recognized number 6 from being involved in the incident. Detective Melkey then presented photo array # 164838 to VN. VN picked number 2, which contained a photo of Vincent McCurtis. VN stated that she recognized number 2 from being involved in the incident.

Detective Melkey then met with NS. Detective Melkey presented photo array # 164837 to NS. NS picked number 5, which contained a photo of Vincent McCurtis. NS stated that she recognized number 5 as her fiancé and from being involved in the incident.

On Wednesday May 17, 2023, Detective Melkey attended the autopsy of Bryan. The autopsy was performed by Dr. O'Neill who was assisted by technician Patterson. CSU Shaler was also present. Dr. O'Neill ruled the cause to be multiple blunt force injuries and the manner to be homicide.

All above events occurred in Marion County, Indiana.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Matthew Melkey

AFFIANT

DATED: 05/17/2023 _____

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49D27

STATE OF INDIANA)
)
 vs.)
)

INFORMATION

COUNT I

DEALING IN A SCHEDULE III
CONTROLLED SUBSTANCE

I.C. 35-48-4-2(a)(1) and I.C. 35-48-4-2(c)(2)

A LEVEL 5 FELONY

VINCENT MCCURTIS B/Male
DOB 8/20/1993

Co-Defendant with:

WENZEL WILLIAMS

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about July 17, 2024, VINCENT MCCURTIS did knowingly or intentionally deliver Buprenorphine, a controlled substance, pure or adulterated, classified in Schedule III, and VINCENT MCCURTIS committed the offense on the property of a penal facility;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

August 30, 2024

Date

RYAN MEARS

Marion County Prosecutor
19th Judicial Circuit

/s/ Mary Ball

Mary Ball, #21984-53
Deputy Prosecuting Attorney

State's Witnesses:

GLORIA HICKS
CHARLES MOSS
JOHN NELSON

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Agency case report: IP240066923

On July 17th, 2024, while working as an Operator of the Critical Emergency Response Team (C.E.R.T.), for the Marion County Sheriff's Office, Cpl. Moss was assigned to the CERT Movement Team.

CERT Operators were tasked with conducting a shakedown inside of 4D housing unit.

Central Control was advised to turn off the water inside of the housing unit prior to CERT Operators and assisting Deputies entering the block to prevent any contraband being flushed down the toilet.

At approximately 1355hours, CERT operators and assisting Deputies entered 4D housing unit. All inmates were directed to go to the wall under the TV with both of their heads while they were moving. Once they were on the wall all inmates were directed to place both hands on the wall above their head, all inmates were also directed to face the wall during the process. CERT operators (male staff) and assisting Detention Deputies conducted strip searches of each inmate in the shower area. Once the strip search was completed, inmates were placed in the recreation room while a search of the unit was conducted.

The following was found during the shakedown:

Cpl. Moss was conducting a strip-search of inmate Williams, Wenzel (JID#848161) located inside of his right sock was an orange circular pill that was tied into a knot. Moments before CERT Operators and assisting Deputies entered the block inmate Williams receives an unknown item through the cross-over door from housing unit 4C from Inmate McCurtis, Vincent (JID#754080). When inmate Williams was asked by Cpl. Moss if this was the item that was given to him through the cross over door inmate Williams admitted that it was indeed given to him through the cross over door. The exchange of the contraband can be seen on Camera #2008 (inside of housing unit 4C) and Camera #2023 (inside of housing unit 4D) at approximately 1343 hours. On Camera #2018 at 1347:25 hours inmate Williams is seen placing an unknown article into his right sock where the contraband was found.

(IMCFSa examination of the substance returned the analysis identifying the pill as .3970 g of Buprenorphine, a schedule III controlled substance.)

All events occurred in Marion County, State of Indiana

DATED: July 22, 2024

/s/ Charles L. Moss 44391
AFFIANT

COUNT IV

On or about May 2, 2020, Kendale Abel did, without the consent of Ashley Richardson, recklessly, knowingly or intentionally damage or deface the property of Ashley Richardson, to-wit: her cell phone;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

May 5, 2020

Date

RYAN MEARS

Marion County Prosecutor
19th Judicial Circuit

/s/Elizabeth Filipow

Deputy Prosecuting Attorney, 11553-49

State's Witnesses:

IMPD DET. T. COBIAN C4133

IMPD OFF. B. HARVEY 20965

IMPD OFF. D. ROBERT KING K2662

Ashley Richardson

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

swears (affirms) that:

ON MAY 02, 2020, OFFICER BRIAN HARVEY OF THE INDIANAPOLIS METROPOLITAN POLICE DEPARTMENT WAS DISPATCHED TO THE 1000 BLOCK OF W 33RD ST ON A REPORT OF A DISTURBANCE. UPON ARRIVAL TO THE SCENE, OFFICER HARVEY SPOKE TO ASHLEY RICHARDSON AND KENDALE ABEL AND PREPARED THE FOLLOWING REPORT:

"On 5/2/20 at approx 6:16am I, Ofc Brian Harvey of the IMPD, along with Ofc Tillison, M. 41362 were dispatched to the 1000 block of W 33rd St on a disturbance under CAD IP20050200000312. On arrival I spoke with the victim, Ashley Richardson, who stated she and the suspect/ boyfriend, Kendale Abel, (B/M DOB 08/01/1989) were only having a verbal altercation and everything was fine. Ashley said Kendale wanted her to leave so she was grabbing some of her belongings and then leaving and police were not needed. This initial call was made by Kendale's grandmother, Glenda Hughes, who lives on the upper level of this address and said she did not see anything but only heard the arguing."

APPROXIMATELY 1 HOUR LATER, OFFICER HARVEY WAS DISPATCHED BACK TO THE RESIDENCE AND PREPARED THE FOLLOWING SUPPLEMENTAL REPORT:

"Approx one hour later at 7:18am Ofc Tillison and I were dispatched again to the 1000 block of W 33rd St on a disturbance called in by Ashley's sister, Kayla Richardson, in reference to the earlier run. On arrival I spoke with Ashley again who appeared in pain and kept wincing when she moved her right arm/shoulder and seemed nervous or afraid. Ashley then stated that she was assaulted by Kendale prior to the first run officers responded to but did not say so because she was scared and did not want anyone to go to jail. Ashley stated Kendale is jealous and controlling and always looks through her cell phone so at approx 6:00am this morning she was sitting in the living room looking through Kendale's cell phone when he walked into the living room, saw her and demanded his phone. She then refused and told him it was only fair since he was always looking through her phone and they began to argue at which time Kendale retrieved a hammer. Ashley said Kendale then took her phone, set it on the living room table and bashed it with the hammer several times damaging it. Ashley got angry that Kendale damaged her phone so she ran into the bedroom picked up his Xbox and threw it across the bedroom. Ashley stated Kendale followed her and was standing behind her when

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

/s/TOBI M COBIAN

AFFIANT

Affidavit for Probable Cause

From:

she threw his Xbox at which time he struck her on the back of her right shoulder and the top left side of her head with the hammer causing a laceration and pain as she fell to the floor onto her knees. Ashley said Kendale then struck her on her back with the hammer approx 10-15 times causing her additional pain and injury. Ashley said she able to roll over onto her back and grab the small metal nightstand to defend herself and block any further strikes from Kendale at which time he stopped his assault.

I then spoke with Kendale who stated he woke up at approx 6:00am this morning and walked into the living room to find Ashley looking through his phone so he told her to stop and to give him his phone. He said Ashley refused to return his phone so they began to argue and he took it from her at which time she became angry and began breaking his things. I then asked Kendale if there were any other details of the incident he wanted to share and he said "that's it" and did not have anything else to tell me. I placed Kendale under arrest for Domestic battery and Battery and he was transported to Intake by wagon. The ET, Ofc King, D. K2662, responded to the scene for photos.

Ashley's injuries consisted of an approx .25 inch laceration near the top of her head surrounded by a .5 inch spot of blood and 5-6 visible 1 inch circles and partial circles of bruises/contusions on her back which appear consistent with the head of a hammer. Ashley said she was in pain but did not want medics to respond for a check out. I did not see or locate the alleged weapon."

I DETECTIVE TOBI COBIAN SPOKE TO MS RICHARDSON ON MAY 04, 2020. MS RICHARDSON ADVISED THAT SHE AND MR ABEL HAD BEEN ENGAGED AND TOGETHER IN AN INTIMATE RELATIONSHIP FOR ABOUT 1 YEAR SINCE THEIR LAST BREAK-UP. MS RICHARDSON ADVISED THAT THEY WERE LIVING TOGETHER IN THE 1000 BLOCK OF W 33RD ST.

MS RICHARDSON WENT ON TO STATE THAT ON MAY 02, 2020, SHE RETURNED HOME FROM A FRIENDS HOUSE AROUND 4:00-5:00 AM. SHE STATED THAT MR ABEL CONTINUOUSLY GOES THROUGH HER PHONE AND THAT ON THIS DATE, SHE DECIDED TO GO THROUGH HIS PHONE. MS RICHARDSON WENT ON TO STATE THAT MR ABEL WOKE UP AS SHE WAS GOING THROUGH HIS PHONE AND ASKED FOR HIS PHONE BACK. SHE TOLD HIM TO HAVE A SEAT AND THEY COULD GO THROUGH HIS PHONE TOGETHER LIKE HE GOES THROUGH HERS. SHE STATED THAT HE THEN WALKED AWAY AND GRABBED A CLAW HAMMER (YELLOW HANDLE) AND AGAIN DEMANDED HIS PHONE BACK. SHE ADVISED THAT SHE THEN GAVE HIM THE PHONE BACK.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

/s/TOBI M COBIAN

AFFIANT

DATED: MAY 05, 2020

Affidavit for Probable Cause

From:

MS RICHARDSON ADVISED THAT SHE WALKED AWAY AND THAT MR ABEL THEN BEAT HER PHONE ON THE TABLE WITH THE HAMMER. MS RICHARDSON ADVISED THAT SHE SAW WHAT MR ABEL WAS DOING AND THEN ASKED "AWW ARE WE BREAKING SHIT?" SHE ADVISED THAT SHE THEN WENT INTO THEIR SHARED ROOM AND GRABBED HIS "GAMEBOY SWITCH" AND KNOCKED IT OFF ITS SHELF. SHE STATED THAT MR ABEL THEN STRUCK HER ON HER BACK AND HEAD AREA WITH THE HAMMER, CAUSING HER TO FALL TO THE BED. SHE ADVISED THAT THIS CAUSED HER PAIN AS WELL. MS RICHARDSON ADVISED THAT SHE THEN GRABBED MR ABEL'S PLAYSTATION CONTROLLER. SHE TOLD HIM TO LEAVE HER ALONE AND THAT MR ABEL CONTINUED TO LUNGE TOWARDS HER IN AN AGGRESSIVE MANNER WITH THE HAMMER STILL IN HIS HAND. SHE ADVISED THAT SHE PUT HER ARMS UP IN SELF DEFENSE TO BLOCK BLOWS FROM MR ABEL AND HE THEN BEGAN TO STRIKE HER WITH THE HAMMER AS SHE WAS ON THE BED. HE STRUCK HER NUMEROUS TIMES ON HER BACK, LEGS, AND HER ARMS, AGAIN CAUSING PAIN. SHE ADVISED THAT SHE GRABBED MR ABEL'S PLAYSTATION AND THREW IT ACROSS THE ROOM.

SHE ADVISED THAT SHE WAS ABLE TO GET OFF OF THE BED AND GRABBED THE PLAYSTATION AND BEGAN TO BEAT IT AGAINST THE FLOOR, CRYING AND YELLING "YOU'RE SO WEAK!" MR ABEL AGAIN STRUCK HER WITH THE HAMMER APPROXIMATELY 2-3 MORE TIMES ABOUT HER BACK. SHE ADVISED THAT IS WHEN MR ABEL'S AUNTIE, GLENDA HUGHES, CAME DOWNSTAIRS. MS HUGHES DID NOT SEE ANY OF THE ASSAULT.

MS HUGHES CALLED THE POLICE INITIALLY. SHE ADVISED THAT SHE DID NOT TELL THE RESPONDING OFFICERS OF WHAT HAD TRANSPIRED INITIALLY BECAUSE SHE LOVES MR ABEL AND SHE DID NOT WANT HIM TO GO TO JAIL ESPECIALLY WITH THE COVID-19 PANDEMIC GOING ON.

MS RICHARDSON ADVISED THAT APPROXIMATELY 45 MINUTES LATER, HER SISTER, KAYLA RICHARDSON, HAD CALLED HER ON FACETIME AND THAT SHE HAD RELAYED TO KAYLA WHAT HAD HAPPENED AND SHOWED HER THE INJURIES SHE SUSTAINED ON "FACETIME". KAYLA THEN CALLED THE POLICE BACK TO THE RESIDENCE AT WHICH TIM MS RICHARDSON THEN CONFIDED INTO THE OFFICERS AND TOLD THEM WHAT HAD HAPPENED AND SHOWED THEM HER INJURIES.

MR ABEL WAS SUBSEQUENTLY ARRESTED AND TRANSPORTED TO THE MARION COUNTY JAIL. MS RICHARDSON WAS TREATED AT THE ESKENAZI HOSPITAL AND SUSTAINED NO FRACTURES AS A RESULT OF THE ATTACK. I DID SEE BRUISING

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

/s/TOBI M COBIAN

AFFIANT

DATED: MAY 05, 2020

Affidavit for Probable Cause

From:

THAT WAS EVIDENT ON HER LEFT UPPER ARM AS WELL AS A SMALL LACERATION. SHE ALSO HAD ANOTHER BRUISE AND LACERATION/ABRASION TO HER LOWER LEFT ARM AS WELL. SHE HAD SCRATCH MARKS AND ABRASIONS TO HER BACK AS WELL. SHE ALSO SHOWED ME A CURVED ABRASION TO HER UPPER RIGHT ARM, NEAR HER SHOULDER. MS RICHARDSON WAS IN SO MUCH PAIN, SHE COULD BARELY STAND AND HAD TO BE PUSHED IN A WHEEL CHAIR. ON A SCALE OF 1-10, HER PAIN LEVEL WAS AT 10.

ALL OF THE ABOVE EVENTS OCCURRED IN INDIANAPOLIS, MARION COUNTY, STATE OF INDIANA.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

/s/TOBI M COBIAN

AFFIANT

DATED: MAY 05, 2020

STATE OF INDIANA
MARION COUNTY, ss:

**IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION**

Cause No: 49G01

STATE OF INDIANA)
)
vs.)
)

INFORMATION
COUNT I
MURDER
I.C. 35-42-1-1(1)
A FELONY

KENDALE EUGENE ABEL Jr. B/Male
DOB 8/1/1988

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about June 9, 2020, KENDALE EUGENE ABEL Jr. did knowingly kill another human being, to-wit: Ashley Seymone Richardson;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

June 14, 2020
Date

RYAN MEARS
Marion County Prosecutor
19th Judicial Circuit

/s/Katie Melnick

Deputy Prosecuting Attorney

State's Witnesses:

JONATHAN MATTHEW HASSTEDT
JAMES CURTIS HURT
CALEB MATTHEW MELLOH
NICHOLAS RISTI MODESTO
JASON OLSON
STEPHEN JAMES SMALLEY
CHRISTOPHER JAMES WINTER
JOHN DR. CAVANAUGH
Marinda Hall (NOK)
Gwenda Hughes
Jasmine Melendez

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Detective James C. Hurt swears (affirms) that:

On June 9, 2020 at approximately 12:29 AM, Officer Modesto with IMPD Northwest District, was dispatched to a possible person shot call to 1XXX West 33rd Street. Dispatched advised that the 911 caller stated that he tried to shoot himself and shot a female. Officer Modesto arrived on scene and came into contact with a subject, later identified as Kendale Abel Jr., and placed him in custody. Other responding officers arrived on scene and located a female subject, later identified as Ashley Richardson, suffering from gunshot wounds inside of 1XXX West 33rd Street. Officers also encountered, G.H., a resident of 1XXX West 33rd Street. After securing the scene, Medic #5 Kissel, arrived and pronounced Richardson deceased at 12:48 AM. Officers asked for a homicide detective and Detective Hurt, Detective Winter, and Detective Smalley, responded to the scene.

On scene, Detective Hurt spoke with Officer Modesto and learned the above information. Detective Hurt contacted Detective Patrick and asked her to obtain a search warrant for the residence at 1XXX West 33rd Street, which was later granted. Detective Hurt had Abel transported to the homicide office to be interviewed.

Detective Hurt conducted a taped statement with G.H. G.H. stated that Abel is her cousin and acts as her caregiver, because she suffers from vertigo. G.H. stated she and Abel reside at 1XXX West 33rd Street, alone. G.H. stated Abel's girlfriend, Richardson, resided at the residence up until about a month ago, but due to a domestic disturbance (ref IP200042551) between Abel and Richardson, she no longer lived there. G.H. went on to explain that Abel was subsequently arrested and placed on GPS monitoring reference that disturbance. Reference this incident, G.H. stated she was asleep and awoken to Abel, walking up the stairs calling her name. G.H. stated that Abel stated, "(G.H.), it's bad it's bad, she (Richardson) was messing with me, and I shot her, I killed her!" G.H. stated the next thing she knew, she came down stairs and officers were on scene. G.H. stated she did not hear any gunshots because she takes medication and is a heavy sleeper. G.H. also stated she did not know Richardson was at the house. After speaking with G.H., she was released. Detective Hurt responded back to the homicide office.

Detective Winter and Crime Lab Technician Olson, CSU 31, processed the scene. Several items were collected, including several spent shell casings, live ammunition, and a 9mm Bersa firearm, serial #H97516. After processing the scene, Coroner 19, Melendez, arrived on scene. Richardson was positively identified through fingerprints. Richardson was transported to the Marion County Coroner's Office, pending autopsy.

At the homicide office, Detective Hurt conducted a taped statement with Officer Modesto, F326. Officer Modesto stated officers were dispatched at 12:29 AM to a person shot at 1XXX West 33rd Street. Officer

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

Dated: June 11, 2020

/s/ James C. Hurt
AFFIANT

AFFIDAVIT FOR PROBABLE CAUSE

Modesto stated he was at 30th Street and Harding Street, a few blocks away. Officer Modesto stated he arrived on scene at 12:31 AM and noticed a black male, later identified Abel, attempting to get into a white vehicle. Officer Modesto stated he held Abel at gunpoint until backup arrived and placed him in custody. Responding officers entered the residence and discovered Richardson lying on a bed, suffering from gunshot wounds. Officer Modesto went on to explain that he detained Abel due to him being a male in close proximity to the residence, along with him attempting to get into a vehicle directly in front of the residence, and the fact that he (Officer Modesto) had arrived on scene very shortly after the dispatched call. Officer Modesto stated after Abel had been detained and without being asked any questions by officers, Abel made the statement, "it was an accident." Abel went on to state that he was attempting to commit suicide and accidentally shot Richardson.

After speaking with Officer Modesto, Detective Hurt conducted a video recorded interview with Abel. Detective Hurt read and went over an advice of rights form with Abel. He stated that he understood his rights and signed the form. During his statement, Abel stated he and Richardson were boyfriend and girlfriend and had planned to get married. Abel went on to explain their relationship. Abel stated they (Richardson and Abel) had a domestic dispute about a month prior. Abel stated he was later arrested for that incident. Abel stated after spending about a week in jail and another week at a friend's house, he moved back into 1XXX West 33rd Street with G.H. He stated Richardson moved out when he moved back into the residence. Abel stated he and Richardson continued to see each other. Abel stated Richardson would constantly use this incident against him to manipulate him. Abel stated if he did not do what Richardson wanted, she would threaten to call the police on him. Abel stated earlier in the day, June 8th, he went to a friend's house for a barbeque, where he met up with Richardson. Abel stated while at the cookout, they had a few drinks. He stated afterwards, they drove back to his residence. Abel stated that as the night went on, the two of them began to argue. Abel stated Richardson was yelling at him and making comments like, "you're nothing, you're trash, a loser." Abel stated he was tired of it and "didn't want to be here anymore." He stated he tried to kill himself. Abel stated he grabbed a 9mm handgun from under his bed and attempted to shoot himself. Abel stated that he had purchased the handgun from a local gun store and had owned it for approximately a year. Abel stated after he grabbed the gun, he got down on his knees and put the gun to his head. Abel stated Richardson continued to yell at him and tell him "he wasn't worth anything." Abel stated as he had the gun to his head, he pulled the trigger but missed his head and accidentally struck Richardson, who was sitting on the bed. Abel stated he went to check on Richardson, and with the gun still in his hand, he accidentally shot her again. Abel stated he realized that Richardson was not alive. Abel then stated he attempted to shoot himself yet again, but missed again. Abel stated he then put the firearm on the bed and called 911. He also stated that he went upstairs and told G.H. about what had just happened. Abel stated he was later detained by officers. Abel stated while he was detained, he told officers without being asked that he tried to kill himself. While speaking with Abel, Detective Hurt noticed that he had an injury to his head, where he

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

Dated: June 11, 2020

/s/ James C. Hurt
AFFIANT

AFFIDAVIT FOR PROBABLE CAUSE

said he attempted to shoot himself. Detective Hurt had medics respond and evaluate Abel. Abel declined to go to the hospital and medics bandaged his wound.

After speaking with Abel, CSU 31, Olson, responded to the homicide office and took photos of Abel's injury and person. While taking photographs of Abel's clothing, Detective Hurt noticed that Abel had a blood stain on the arm of his green tee shirt. A warrant was sought and granted to collect Abel's shirt and pants. Detective Hurt collected Abel's clothing and Detective Winter transported them to the property room.

Abel was informed that he was being placed under arrest for Murder and was transported to the Marion County Jail Intake by Detective Hurt.

Later that morning, Detective Hurt attended Richardson's autopsy. Detective Hurt observed several defects to Richardson's head and chest. Detective Hurt was informed that Richardson had sustained two gunshot wounds, one to her head and one to her chest, both of which entered and exited Richardson's body. Richardson's manner of death was ruled a homicide.

All of the above events occurred in Marion County, Indianapolis, IN.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

Dated: June 11, 2020

/s/ James C. Hurt
AFFIANT

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49G08

STATE OF INDIANA

)
)
)
)

vs.

INFORMATION

COUNT I

DOMESTIC BATTERY

I.C. 35-42-2-1.3(a)(1)

A CLASS A MISDEMEANOR

Marcus Anderson

B/Male

DOB 6/20/1997

COUNT II

DOMESTIC BATTERY

I.C. 35-42-2-1.3(a)(1)

A CLASS A MISDEMEANOR

COUNT III

BATTERY RESULTING IN BODILY
INJURY

I.C. 35-42-2-1(c)(1) and I.C. 35-42-2-1(d)(1)

A CLASS A MISDEMEANOR

COUNT IV

ATTEMPTED THEFT

I.C. 35-43-4-2(a) and I.C. 35-41-5-1

A CLASS A MISDEMEANOR

COUNT V

CRIMINAL TRESPASS

I.C. 35-43-2-2(b)(2)

A CLASS A MISDEMEANOR

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

On or about September 6, 2017, Marcus Anderson did knowingly touch Tamara Carpenter, a family or household member, in a rude, insolent or angry manner by grabbing and/or shaking her person;

COUNT II

On or about September 6, 2017, Marcus Anderson did knowingly touch Tamara Carpenter, a

family or household member, in a rude, insolent or angry manner by grabbing and/or ripping an apron that she was wearing;

COUNT III

On or about September 6, 2017, Marcus Anderson did knowingly touch Dorian Doncan in a rude, insolent or angry manner by striking Mr. Doncan with his hand(s), resulting in bodily injury, that is: pain and/or swelling and/or bruising;

COUNT IV

On or about September 6, 2017, Marcus Anderson did attempt to exert unauthorized control over the property of Tamara Carpenter, to-wit: a purse, with the intent to deprive Tamara Carpenter of any part of the use or value of the property; and further, he did so by engaging in conduct which constitutes a substantial step toward the commission of said crime of Theft, that is: removing the purse from an office where it was located and/or moving toward the exit of an establishment while carrying the purse;

COUNT V

On or about September 6, 2017, Marcus Anderson, not having a contractual interest in the property, did knowingly or intentionally refuse to leave the real property of another person, to-wit: Steak 'N Shake, after having been asked to leave by Steak 'N Shake or its agent;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44.1-2-1 that the foregoing representations are true.

/s/ E Page Prentice

Affiant

State's Witnesses:
AUSTIN HEDDEN, IMPD
JOSHUA MURPHY, IMPD
WILLIAM NORLOCK, IMPD
PAUL WILSON, IMPD

September 7, 2017

Date

TERRY R. CURRY
Marion County Prosecutor
19th Judicial Circuit

/s/ E Page Prentice

Deputy Prosecuting Attorney

Tamara Carpenter
Dorian Duncan
Lindsey Bogie
Steak 'N Shake Video KOR

STATE OF INDIANA, COUNTY OF MARION, SS:

PROBABLE CAUSE AFFIDAVIT

IMPD Case/Incident Number: PD17100764

Defendant Name: Marcus Anderson

Location of Incident: 5360 N Keystone

Arresting Officer / ID: A. Hedden 41346

Agency: Indianapolis Metropolitan Police Department

On Wednesday September 6, 2017 Officer Austin Hedden 41346 of IMPD was dispatched to 5360 N Keystone Ave at the Steak N Shake to investigate a fight in progress. Upon arriving, Officer Hedden was met by a male and female yelling "get him". Officer Hedden observed a black male in a red hoodie yelling, later identified as Marcus Anderson. The complainant, and store manager of the Steak N Shake, identified as Lindsey Bogie, stated that Mr. Anderson was the aggressor and started fighting the victim, later identified as Dorian Duncan, who is an employee at the Steak N Shake. Mr. Anderson was placed in handcuffs while the investigation proceeded. Mr. Duncan stated that Mr. Anderson was asked to leave several times, but Mr. Anderson kept coming back into the manager's office of the Steak N Shake, which is not accessible to the public. Mr. Duncan stated that Mr. Anderson was trying to steal another employee's purse and car. The employee is Mr. Anderson's girlfriend, later identified as Tamara Carpenter. Mr. Duncan stated that Mr. Anderson got into a fight with Ms. Carpenter inside the Steak N Shake and was putting hands on her. Mr. Duncan stated that Mr. Anderson just grabbed ahold of her and was shaking her. Mr. Anderson was told to leave the store and employee section by the manager, and Mr. Duncan. Mr. Anderson started to leave according to the manager, but then he ran back, grabbed Ms. Carpenters apron and ripped it. After Mr. Anderson ripped Ms. Carpenters apron, he ran back into the office and grabbed the purse then tried to run off with it. Mr. Duncan then grabbed onto the purse and pushed Mr. Anderson up against the wall to try and get the purse back. Mr. Duncan then stated that Mr. Anderson swung on him and struck him with a closed fist and grabbed onto his clothing, ultimately ripping his sweatshirt. Mr. Duncan had a complaint of pain from the altercation with Mr. Anderson around his neck and shoulder area where Mr. Anderson ripped his clothing. Ms. Carpenter stated she witnessed the same event. The manager stated that she has video evidence of the altercation. Mr. Anderson was arrested for criminal trespass, battery, and attempted theft. Mr. Anderson was transported to the APC by MCSO Wagon. Steak N Shake manager also stated in Officers presence, to Mr. Anderson that he was trespassed from the property and not allowed to come back. Before this, Mr. Anderson was

told to leave on several occasions by Mr. Duncan and Ms. Bogie. No injuries were sustained to Ms. Carpenter.

All of the above events occurred in Marion County, Indianapolis.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Austin Hedden

Law Enforcement Officer

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49G06

STATE OF INDIANA)
)
 vs.)
)

MARCUS JAYON ANDERSON B/Male
DOB 6/20/1997

INFORMATION
COUNT I
ARMED ROBBERY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY
COUNT II
ROBBERY RESULTING IN BODILY
INJURY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY
COUNT III
BATTERY BY MEANS OF A DEADLY
WEAPON
I.C. 35-42-2-1(c)(1) and I.C. 35-42-2-1(g)(2)
A LEVEL 5 FELONY

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about July 25, 2018, MARCUS JAYON ANDERSON did knowingly take property, that is: United States currency/money, from Angela Thompson or the presence of Angela Thompson, by using force or by threatening the use of force, that is: by demanding money from a cash drawer and/or a safe, while MARCUS JAYON ANDERSON was armed with a pellet or BB gun or handgun, a deadly weapon;

COUNT II

On or about July 25, 2018, MARCUS JAYON ANDERSON did knowingly take property, that is: United States currency/money, from Angela Thompson or the presence of Angela Thompson, by using force or by threatening the use of force, that is: by demanding money from a cash drawer and/or a safe and/or striking Angela Thompson with a pellet or BB gun or handgun, said act resulting in bodily injury, that is: lacerations to the head requiring stitches, to Angela Thompson;

COUNT III

On or about July 25, 2018, MARCUS JAYON ANDERSON did knowingly touch Angela Thompson in a rude, insolent, or angry manner, by striking Angela Thompson in the head; said touching being committed with a deadly weapon, a pellet or BB gun or handgun;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

July 31, 2018

Date

TERRY R. CURRY

Marion County Prosecutor
19th Judicial Circuit

/s/ Phil Blowers

Deputy Prosecuting Attorney

State's Witnesses:

A BRANHAM B1406 IMPD
A HOLLOWAY 41940 IMPD
H MEANS 41660 IMPD
A MOSS 40519 IMPD
J STEWARD S0784 IMPD
B SOSBE 21111 IMPD
Angela Thompson
Chris Didion
D H
Tyree Leavell
Sandra Nuckols

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Bryan L. Sosbe swears (affirms) that:

On Wednesday July 25, 2018 at approximately 2105 hours, Officer Holloway ID 41940 with IMPD was dispatched to 2105 N Mitthoeffer Rd., Pizza Hut, to investigate a Robbery. On arrival, Officer Holloway walked in the Pizza Hut and noticed 2 workers at the door, and 3 workers surrounding the victim bleeding from the right side of her head. Officer Holloway noticed the cash register open and pieces of what appeared to be a gun on the floor. Officer Holloway requested that all the employees have a seat in the waiting area because it is now a crime scene. EMS Medic #41 2993 was called to the scene to treat the victim for her head injuries. Dispatch added a supplement stating the suspect was wearing black and gray clothing, with a gray hoodie, running towards Teal Run Apartments, which was mistyped as Hill Run Apartments.

While driving through Teal Run Apartments and the adjacent area, approximately 6 minutes after the robbery was dispatched, Officer Moss observed a male, straddling a black backpack, along with 2 other males. Officer Moss attempted to do an investigation and one male, later identified as Mr. Marcus Anderson, began to flee from █ Gable Dr., which is approximately 3 1/2 blocks from the incident location. When Mr. Anderson fled, he abandoned the backpack at █ Gable Dr. Officer Moss gave chase, giving his location on the radio, which allowed other district officers to set up a perimeter in the area. K924, Officer Branham, assisted by K917, Officer Steward, conducted a K-9 track of the suspect within the perimeter, locating Mr. Anderson at █ Dupont Ct., which is approximately 1 1/2 blocks from █ Gable Dr. After a K-9, Mr. Anderson was apprehended by K-9 officers.

Officer Means stayed on scene at Gable Dr., securing the black backpack. Det. Sosbe advised Officer Means to stay with the backpack until an evidence technician arrived to photograph it. B326 Officer Kermon, responded to the scene to take photos of the victim, the Pizza Hut, the black backpack, Mr. Anderson, and Mr. Murrell, who was observed standing near Mr. Anderson.

Det. Sosbe responded to the scene and observed that the register was partially pulled out, change was scattered across the floor, and there was a slide, or upper part of, what appeared to be, a semi-automatic handgun, lying on the floor. Officer Kermon photographed the crime scene inside of the Pizza Hut and recovered the piece of the handgun.

Det. Sosbe conducted an interview with the victim, Ms. Thompson. Ms. Thompson stated that a black male with a scarf or bandana around his face, a white long sleeved hoodie, and a hand gun entered the store. Ms. Thompson described the suspect as dark skinned, 5'5". The suspect then demanded that Ms. Thompson open the drawer and put the money in the backpack. Ms. Thompson complied. The suspect then demanded that Ms. Thompson open the safe. Ms. Thompson, while very nervous, accidentally changed the language on the safe and was unable to open it. The suspect then hit Ms. Thompson over the head with the handgun, causing lacerations that would need stitches. Ms. Thompson was checked out on scene by IEMS medic 41, who advised her to get a C.T. scan and that she would need stitches.

Ms. Thompson also stated to Det. Sosbe that it seemed odd that an employee was in the store off duty just before the robbery. That employee, Mr. M █ was stopped by Officer Means. Mr. M █ lives at the address that Officer Moss observed Mr. Anderson standing and talking to two other males.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

/s/ Bryan L. Sosbe

AFFIANT

DATED: July 27, 2018

Affidavit for Probable Cause

From: Bryan L. Sosbe

Det. Sosbe interviewed Ms. Nuckols, an employee, who stated that the suspect was wearing a gray and black sweater, was around 5'9", average build, and he had a book bag. After seeing that, Ms. Nuckols ran to the cooler to hide.

Det. Sosbe spoke to Mr. H[REDACTED] who stated that he was cutting pizza, looked up, saw a black male, dark complexion, 5'5" tall, average build, with a gray hoodie, black mask, and book bag messing with the door. Mr. H[REDACTED] then fled to the back of the business.

Det. Sosbe interviewed Mr. Didion who stated that he was in the restroom, heard yelling, came out and saw the suspect standing over Ms. Thompson, wearing a gray hoodie. Mr. Didion fled the store through the side door and ran across the street to the Marathon Gas Station to call police.

Det. Sosbe interviewed Mr. Leavell who stated that he was washing dishes, heard a ruckus, and saw Ms. Nuckols and Mr. H[REDACTED] run to the back of the store. Mr. Leavell looked towards the front of the store and saw a black male wearing a white striped hoodie standing over Ms. Thompson. Mr. Leavell then followed Ms. Nuckols and Mr. H[REDACTED] to the back of the store.

After Officer Kermon photographed the bag, Officer Means transported the bag to Det. Sosbe at the Pizza Hut, located at 2105 N. Mitthoeffer Rd. Det. Sosbe then began to inventory the abandoned bag. Inside of the bag, Det. Sosbe located a total of \$382.00, which was returned to the store. Det. Sosbe also located a white hooded sweatshirt with small black stripes on it, a black scarf with a light colored design on it, and pieces of a broken handgun that appeared to be a pellet or BB gun. All items were photographed by Officer Kermon. Det. Sosbe observed that the broken handle to the handgun had, what appeared to be, hair fibers attached to it.

When Det. Sosbe pulled the hooded sweatshirt out of the backpack for inventory, Ms. Nuckols observed the sweatshirt and stated "That's the hoodie."

When Det. Sosbe pulled the scarf out of the backpack for inventory, Ms. Thompson stated "That's the mask he was wearing."

After being checked by medics, Mr. Anderson was placed under arrest. Search incident to arrest, Deputy Stitt located \$70 in Mr. Anderson's right sock. This money was taken to the IMPD property room and held as evidence. Due to a clerical error, Mr. Anderson was placed into and MCSO wagon without the proper paperwork. Deputy Stitt arrived on scene at the Pizza Hut and observed a \$20 bill lying in the grass where the suspect fled. This was photographed and collected by Officer Kermon, and returned to the business.

Det. Sosbe conducted an audio and video recorded interview of Mr. M[REDACTED] with his mother, Ms. Davis, present, at 50 N. Alabama St. Mr. M[REDACTED] stated he was in the store, along with his girlfriend, and brother. Mr. M[REDACTED] stated that he went into the back to make a pizza. Shortly after, Ms. Davis called Mr. M[REDACTED] and told him to get home, so he left the store and went home. Approximately 15 minutes later, Mr. M[REDACTED] was outside of his residence with his girlfriend and his brother, when a guy stopped in front of the residence. Mr. M[REDACTED] saw police pull up, the male started running. Not knowing what was happening, Mr. M[REDACTED] went back to his residence and Ms. Davis told Mr. M[REDACTED] to go out and talk to the police. Mr. M[REDACTED] was released to the custody of his mother after the interview.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

AFFIANT

DATED: July 27, 2018

Affidavit for Probable Cause

From: Bryan L. Sosbe

Officer Kermon transported the top portion of the firearm to the IMPD property room where it was submitted for prints. Det. Sosbe returned the money to the business and transported the \$70.00, backpack containing parts of the gun, hooded sweatshirt, and black scarf to the IMPD property room.

On July 26, 2018 Det. Sosbe conducted a canvass of the area to attempt to locate any video footage of the incident. No business contacted had any video and no residences had any video that would face the street or location of travel. Det. Sosbe also stopped by the business and was advised that a total of \$472.00 was taken. Det. Sosbe believes that the additional \$70.00 that was on Mr. Anderson's person at the time of arrest was also property of the business.

Det. Sosbe met with Ms. Thompson to conduct a buccal swab to be able to confirm or deny that the hair on the pistol grip of the firearm is her hair. Det. Sosbe submitted Ms. Thompson's buccal sample to the IMPD property room for testing by the Marion County Forensic Services Agency. Ms. Thompson also advised Det. Sosbe that her injury required 5 staples and 4 stitches.

On July 27, 2018 Det. Sosbe applied for, and was granted, a buccal swab search warrant. The search warrant was served on Mr. Anderson at 40 S. Alabama St., the Marion County Jail, at approximately 10:50 p.m., without any issues.

Det. Sosbe also conducted an interview of Mr. Anderson at the Marion County Jail. Mr. Anderson was advised of his rights and agreed to speak to Det. Sosbe. Mr. Anderson advised Det. Sosbe that he was in the area, on his way to visit "D", who was supposed to introduce Mr. Anderson to a female, who is either the sister or cousin of "D". Through the earlier investigation, Det. Sosbe knows "D" to be Mr. M [REDACTED]. Mr. Anderson stated that Mr. M [REDACTED] is dating his sister, Ms. Walker, who is also a juvenile. Mr. Anderson stated that the guy with the bag was a black male, around 6' tall, with dreads, and wearing all black. Later, Mr. Anderson stated that he was on "the next street over" when two officers, 1 white, 1 black, asked what street it was, and a female pointed stating "he ran that way." Mr. Anderson later stated that he was on the next street when everything started happening. Mr. Anderson continually stated that he was upset about being bit by the k-9, and that he wasn't the only one "wearing a blue shirt." that day. Mr. Anderson stated that he had nothing to do with the robbery, the bag was not his, and his DNA would not be found on any items in the bag.

Det. Sosbe submitted the buccal swab sample to the IMPD property room for testing.

All of the above events occurred in Indianapolis, Marion County, Indiana.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

AFFIANT

DATED: July 27, 2018

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49G02

STATE OF INDIANA)
)
 vs.)
)

MARCUS JAYON ANDERSON B/Male
DOB 6/20/1997

INFORMATION

COUNT I

MURDER
I.C. 35-42-1-1(1)
A FELONY

COUNT II

MURDER
I.C. 35-42-1-1(2)
A FELONY

COUNT III

ARMED ROBBERY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY

COUNT IV

ARMED ROBBERY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY

COUNT V

ARMED ROBBERY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY

COUNT VI

ARMED ROBBERY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY

COUNT VII

ARMED ROBBERY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY

COUNT VIII

ARMED ROBBERY
I.C. 35-42-5-1(a)(1)
A LEVEL 3 FELONY

COUNT IX

POINTING A FIREARM
I.C. 35-47-4-3(b)
A LEVEL 6 FELONY

On this date, the undersigned Deputy Prosecuting Attorney of the Nineteenth Judicial Circuit, being duly sworn on his/her oath (or having affirmed), says that in Marion County, Indiana

COUNT I

On or about May 30, 2020, MARCUS JAYON ANDERSON did knowingly kill another human being, to-wit: Christopher Beaty;

COUNT II

On or about May 30, 2020, MARCUS JAYON ANDERSON, did kill another human being, to wit: Christopher Beaty; while committing robbery, which is to knowingly take property from another person or presence of another person by using or threatening the use of force, or by putting said other person in fear;

COUNT III

On or about May 30, 2020, MARCUS JAYON ANDERSON did knowingly take property, to wit: a cell phone, from A.B. or the presence of A.B. by using force or by threatening the use of force while MARCUS JAYON ANDERSON was armed with a deadly weapon, to wit: a handgun;

COUNT IV

On or about May 30, 2020, MARCUS JAYON ANDERSON did knowingly take property, to wit: a cell phone, from B.M. or the presence of B.M., by using force or by threatening the use of force while MARCUS JAYON ANDERSON was armed with a deadly weapon, to wit: a handgun;

COUNT V

On or about May 30, 2020, MARCUS JAYON ANDERSON did knowingly take property, to wit: a cell phone and/or a wallet, from A.T. or the presence of A.T. by using force or by threatening the use of force while MARCUS JAYON ANDERSON was armed with a deadly weapon, to wit: a handgun;

COUNT VI

On or about May 30, 2020, MARCUS JAYON ANDERSON did knowingly take property, to wit: a book bag and/or contents, from S.F. or the presence of S.F. by using force or by threatening the use of force while MARCUS JAYON ANDERSON was armed with a deadly weapon, to wit: a handgun;

COUNT VII

On or about May 30, 2020, MARCUS JAYON ANDERSON did attempt to commit the crime of robbery which is to knowingly take property from S.M. by using force or threatening the use of force while armed with a deadly weapon, to wit: a handgun, by engaging in conduct, to wit: ordering S.M. to the ground and feeling her sides and/or pockets, which conduct constituted a substantial step toward the crime of robbery;

COUNT VIII

On or about May 30, 2020, MARCUS JAYON ANDERSON did attempt to commit the crime of robbery which is to knowingly take property from K.S. by using force or threatening the use of force while armed with a deadly weapon, to wit: a handgun, by engaging in conduct, to wit: ordering K.S. out of his car, which conduct constituted a substantial step toward the crime of robbery;

COUNT IX

On or about May 30, 2020, MARCUS JAYON ANDERSON did knowingly point a firearm, to-wit: a handgun, at A.T.;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

December 3, 2020

Date

RYAN MEARS

Marion County Prosecutor

19th Judicial Circuit

/s/ Anne E. Frangos

Deputy Prosecuting Attorney

State's Witnesses:

Stephen Smalley 30739 IMPD

Klinton Streeter 31368 IMPD

David Miller 30429 IMPD

Christopher Winter 31512 IMPD

Lottie Patrick 20919 IMPD

David Everman E8040 IMPD

Theodore Brink B4197 IMPD

Marc Klonne 30745 IMPD

Jason Leitze 20863 IMPD

Maurice Norris 41066 IMPD

Eric Harris H9854 IMPD

James McGunegill M5447 IMPD

Kaylee Schellhaass, MCCL

Timothy Spears, MCCL

Dr. Christopher Poulos, MCCO

A.B.

B.M.

A.T.

S.M.

S.F.

K.S.

A.Z.

D.M.

J.S.

L.L.

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS

Detective Stephen Smalley has knowledge that:

On May 30, 2020, at 11:43 p.m., Officers with IMPD were assisting a person in the 100 block of E. Vermont St. May 30 was the second night of protests and looting in the downtown area of Indianapolis. There was an increased police presence to handle the large crowds and high volume of emergency calls. While on scene, officers were informed there was a person down nearby. Sergeant Streeter was directed by the crowd to the 400 block of North Talbott Street where he located a subject, later identified as Christopher Beaty, suffering from multiple gunshot wounds. Officers reported the incident via police radio and requested additional officers and medics to the scene. Medics responded and declared Christopher Beaty deceased at 11:47 p.m. Homicide was requested and Detectives Stephen Smalley, David Miller, Christopher Winter, Lottie Patrick, and David Everman responded to the scene.

Crime Scene Specialist Kaylee Schellhaass responded to process and document the scene. Two 9mm shell casings, a cell phone belonging to Christopher Beaty, a phone charger, and two vape pens were recovered from 400 N. Talbott St. During a later search of the area, three additional 9mm shell casings were located. All five shell casings were submitted to the crime lab for further analysis.

On June 1, 2020, Detective Smalley attended the autopsy of Christopher Beaty at the Marion County Coroner's Office. The autopsy was conducted by Dr. Christopher Poulos. Beaty had four gunshot wounds: one to the left upper arm, one to the lower back, one to the upper left chest, and one to the neck. Christopher Beaty's cause of death was determined to be multiple gunshots, and the manner of death homicide. Two fired bullets were recovered from Christopher Beaty's body during the autopsy. The fired bullets were submitted to the crime lab for analysis.

As Detective Smalley continued to investigate the homicide of Christopher Beaty, he was notified by Detective Ted Brink of a robbery in the Newpoint parking garage across the street that occurred shortly before the homicide.

MAY 30, 2020 11:23 P.M. ROBBERY OF A.Z.

On May 30, 2020, Officer Eric Harris was near Vermont Street and Pennsylvania Avenue when he was flagged down by a female, later identified as A.Z, who reported a robbery that had just occurred. Due to the protests taking place in the area at that time, Officer Harris did not have time to get any information beyond A.Z.'s name and contact information. Officer Harris gave her a case number, IP200052458, and sent A.Z. on her way.

The following day, A.Z. logged onto the application "Find my iPhone." The phone had pinged at two locations. A.Z. thought this information would be beneficial, so she called to make a supplement to the case report. The reporting officer, James McGunegill, could not find the original case number, so he made a new report under case number IP200052655. Both of these cases were assigned to Detective Ted Brink on June 1, 2020.

Detective Brink interviewed the victim in the robbery, A.Z., and learned the following: A.Z. was sitting in her vehicle in the parking garage at 167 East Vermont Street shortly before 11:30 p.m. when she was approached by four black males, one of which knocked on her driver door window. She looked up and saw the male was pointing a handgun at her window. She opened her car door and the male at the window reached in the vehicle, pointed the gun at her face, and asked where her car keys were. The other suspects opened the rear car doors and took property from the vehicle. Another suspect opened the front passenger door, pulled her across the center console by her collar, and asked where her car keys were. The other suspects rummaged through her vehicle before walking away. When the suspects walked away, she got out of her vehicle, picked up some of her property from the ground, returned to her vehicle, and drove away.

Video Forensics Detective Jason Leitze assisted in recovering surveillance video from the Newpoint parking garage as well as from Mass Ave. Family Dentistry located at 310 N. Delaware. A review of this surveillance video and witness statements identified five suspects as being involved.

#1, A black male, late teens early 20's, 5'7", 160 pounds, wearing a red baseball cap, a surgical mask, a large diamond earring in his left ear, a blue Tommy Hilfiger sweatshirt with a

red t-shirt under it, light blue jeans with a black belt, light green underwear, blue surgical gloves, and Jordan 4 tennis shoes.

#2, A black male, late teens early 20's, 5'11, 160 pounds wearing a black ski mask, a black Nike hooded sweat shirt with white stripes and Nike logos down the sleeves, blue surgical gloves, black Adidas athletic pants with three white stripes down each pant leg, and black tennis shoes with white soles.

#3, A black male, early to mid-20's, 5'6", 175 pounds, chin length dreadlocks with a receding hair line, wearing a dark blue and white surgical mask, a white t-shirt with a logo on the front, a dark jacket tied around his waist, blue surgical gloves, black jeans, and black tennis shoes.



SUSPECT #1



SUSPECT #2

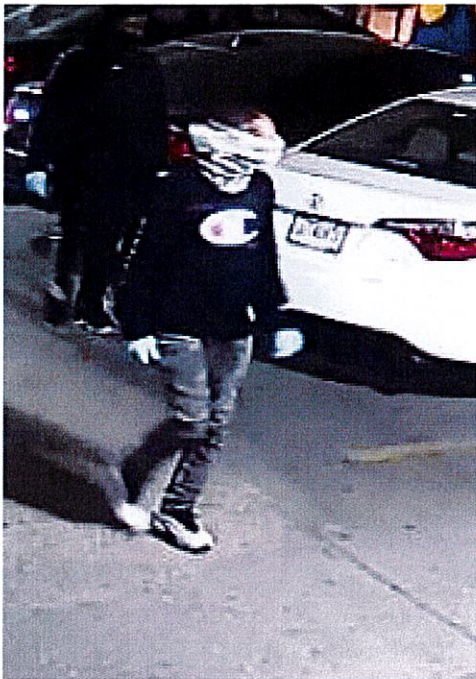


SUSPECT #3

#4, A black male, late teens to early 20's, 5'11, 150 pounds, long hair in a bun under a mask covering the bottom part of his face, wearing a black Champion sweatshirt with a large

Champion logo on the front, blue surgical gloves, light grey jeans, and white and black tennis shoes.

#5, A black female, 20's, wearing an oversized multicolored jacket with blue on the front, red on the back, yellow sleeves, and a green hood, blue surgical gloves, black leggings, and white tennis shoes with red accents on the sides and soles.



SUSPECT #4



SUSPECT #5

The suspects are first seen on surveillance footage at approximately 11:20 p.m. on May 30, 2020. The suspects are on foot in the 300 block of N. Delaware Street, less than one block from the robbery of A.Z.

Video shows the suspects then enter the Newpoint parking garage at 167 East Vermont Street through an entrance off Tippecanoe Street at approximately 11:30 p.m. Suspect #5 entered the garage behind the other suspects. As she entered the garage, she pulled the hood of her jacket up and cinched the hood around her face. Suspect #5 looked over her right shoulder twice as the other suspects approached A.Z.. Suspect #5 approached the victim within six feet of the driver side of the vehicle, looked at the driver side window where A.Z. was seated, and as she passed,

held the hood of her jacket around her face. When Suspect #5 passed A.Z.'s vehicle, she dropped her hands from the hood of the jacket and smiled.

Suspects #1, 2, 3, and 4 approached A.Z., who was seated in her vehicle. Suspect #1 handed Suspect #2 a silver and black semi-automatic handgun. Suspect #2 approached the driver side door of the vehicle and held the gun up to the glass. Suspect #5 walked in front of Suspect #2 while he was holding the gun. A.Z. opened the car door and Suspect #1 reached into the driver compartment and grabbed a bag belonging to A.Z.. At the same time Suspect #3 opened the front passenger side door and held A.Z. down while Suspect #2 opened the driver side rear door and removed items from the back seat. Suspect #1 walked behind the vehicle and emptied the contents of A.Z.'s bag on the ground. Suspect #2 dropped some of the property located in the back seat onto the ground. Suspect #4 picked up a small bag that was dropped onto the ground. Suspect #1 picked up a wallet. All of the suspects then fled North through the parking garage and out of frame. A.Z. got out of her vehicle, picked up some of her property, and keys then drove out of the garage. Approximately one minute later, the suspects are seen fleeing the garage on foot.

MAY 30, 2020 SHOTS FIRED NEWPOINT PARKING GARAGE

On May 31, 2020, D.M. determined that sometime after noon on May 30, 2020, his 2017 grey Mustang had his driver's side window broken while the car was parked on the east side of the Newpoint Parking Garage. This is the same parking garage where the robbery of A.Z. occurred. D.M. located a shell casing by his driver's side door and a bullet in his driver's seat. D.M. moved the vehicle to the west side of the parking garage. Evidence Technician Maurice Norris, recovered the shell casing by the initial parking spot as well as the bullet from D.M.. The shell casing and bullet were transported to the IMPD property room and submitted to the crime lab for further analysis.

MAY 30, 2020 11:33 P.M. ROBBERY OF UNKNOWN PERSON

A review of surveillance video in the area shows that at approximately 11:33 p.m., the five suspects are seen west in the 100 block of E. Michigan St. from the 400 block of N. Delaware St. Suspect #3, the b/m with chin-length dreadlocks, was walking in front of the group

and Suspect #5, the female in the multi-colored jacket, is walking at the rear of the group. An unknown subject can be seen approaching the suspects from the west on foot. Suspect #3 is seen extending an arm at the unknown subject, who stops walking and stands still. Suspect #3 can be seen knocking the person to the ground. A brief struggle ensues, the suspects continue west, and the unknown person gets up and runs east from the suspects.

MAY 30, 2020 11: 36 P.M. ROBBERY OF A.B., B.M., AND A.T. & MAY 30, 2020 11: 36 P.M. ROBBERY OF S.M. AND S.F.

While on scene investigating the homicide of Christopher Beaty, Detective Smalley was advised that five people reported being the victims of an armed robbery with shots fired in the 400 block of N. Talbott St. shortly before Beaty was found. Detective Smalley took recorded statements from the victims and learned the following:

A.T. stated he was in a vehicle with J.S., A.B., and B.M. on their way to 402 North Delaware Street. They parked in the lot north of the location, which adjoins 400 North Talbott Street to the east. They parked the car and were walking toward 400 North Talbott Street when J.S. said "Run!" and ran away from the group. A.T., A.B., and B.M. were forced to the ground by four or five black males. A shot was fired during the robbery and his phone, phone charger, and wallet were taken by one of the suspects. When the robbery was complete, A.T. fled south and then heard shots fired in the area of 400 North Talbott Street.

A.B. stated she was in a vehicle with B.M., A.T., and J.S. at 402 North Delaware Street. They parked the vehicle and were approaching the building when J.S. said "Run!" and then fled from the group. A.B. was grabbed by her shirt and forced to the ground by a group of four black males. Two of the suspects were armed with handguns, one of which was silver and black. One of the suspects took her phone during the robbery, but left it at the scene when they fled. A shot was fired during the robbery. When the robbery was complete, A.B. heard more shots fired in the 400 block of N Talbott Street. A.B. did not see Christopher Beaty at any time during the robbery.

B.M. stated he was with A.B., J.S., and A.T. at 402 North Delaware Street when they were approached by a group of four or five black males, B.M. and his friends were forced to the

ground and one of the suspects took his cell phone, wallet, and vape pen. While B.M. and his friends were being robbed, a female wearing a backpack approached on foot and was also robbed by the same suspects. B.M. saw one of the suspects press a gun to A.T.'s head during the robbery.

J.S. stated he was with A.B., B.M., and A.T. at 402 North Delaware Street when he saw a group of four or five black males running towards him. He yelled for his friends to run and ran south on North Talbott Street. J.S. could hear yelling and screaming from where his friends were as he entered the apartment building at 402 North Delaware Street. Once his friends came running, J.S. heard another gunshot so they sprinted inside the building. J.S. did not witness the robbery.

S.M. said she was at the riot downtown with her friend, S.F.. They were walking north in the 400 block of North Talbott Street when they happened into an armed robbery in progress. Two white males and a white female were on the ground, and a black male waving a silver and black semiautomatic handgun ordered S.M. and S.F. to the ground. The male with the gun was with three or four other people, one of which was a black male that was crouched over one of the victims on the ground. At least one of the suspects was yelling "Pockets!" at them. S.M. and S.F. got on the ground and were patted down by one of the suspects. One of the suspects kicked one of the male victims in the head. A shot was fired near S.M.'s head and one of the suspects said "We gotta go." The suspects then ran northeast from the 400 block of North Talbott Street, and S.M. and S.F. fled southwest to the intersection of North Pennsylvania Street and East Vermont Street. S.M. and S.F. were right around the corner and S.F. called 911 to report the robbery when they heard more gunshots nearby. While waiting for police to arrive, S.M. thought she saw the suspects that had robbed them walking on Pennsylvania Street, so they moved to another location until officers arrived. Nothing was taken from S.M. in the robbery. S.M. did not see Christopher Beaty at any time during the robbery. Detective Smalley researched the computer aided dispatch history reference the robbery and determined that S.F. had called 911 at 11:39 p.m.

S.F. told Detective Smalley she was walking north in the 400 block of North Talbott Street with S.M.. S.F. saw a black male that ordered her to the ground while motioning with a

handgun. S.F. realized there was a robbery in progress involving multiple suspects standing over multiple victims on the ground. She was tripped to the ground, patted down, and one of the suspects took a backpack from her containing her keys, debit card, and identification. During the robbery, the subject with the gun fired a shot near S.M.'s head. When the robbery was complete, the suspects ran northeast and S.F. and S.M. ran southwest before calling 911. S.F. was livestreaming from a mobile device up until the moment she encountered the robbery suspects, but did not capture any of the suspects on the video. Moments before the video ends, a male voice can be heard saying "C'mon! you already over here, c'mon!"

The phone charger collected by CSS Kaylee Schellhaass at the scene of the homicide of Christopher Beaty was determined to belong to A.T. and the two vape pens collected were determined to belong to B.M.

MAY 30, 2020 11:39 P.M. MURDER OF CHRISTOPHER BEATY

Christopher Beaty's body was in the 400 block of N. Talbott St. just south of the location of the above robberies. His cell phone was located just north of his body in the road. Detective Smalley submitted the phone belonging to Christopher Beaty to IMPD's Digital Forensics Unit for additional examination.

A review of the contents of Christopher Beaty's phone shows Beaty sent a text message at 11:34:19 p.m. that reads:

"I'm right downtown by the Eagle. The protest was at the war memorial, which a block from where I live."

At 11:35:16 Beaty sent a message reading:

"I'm bout to walk around the block now to make sure my building is good."

Surveillance video shows Beaty exiting the front door of his building at 402 N. Delaware St. and walking towards N. Talbott St. at 11:36 p.m.

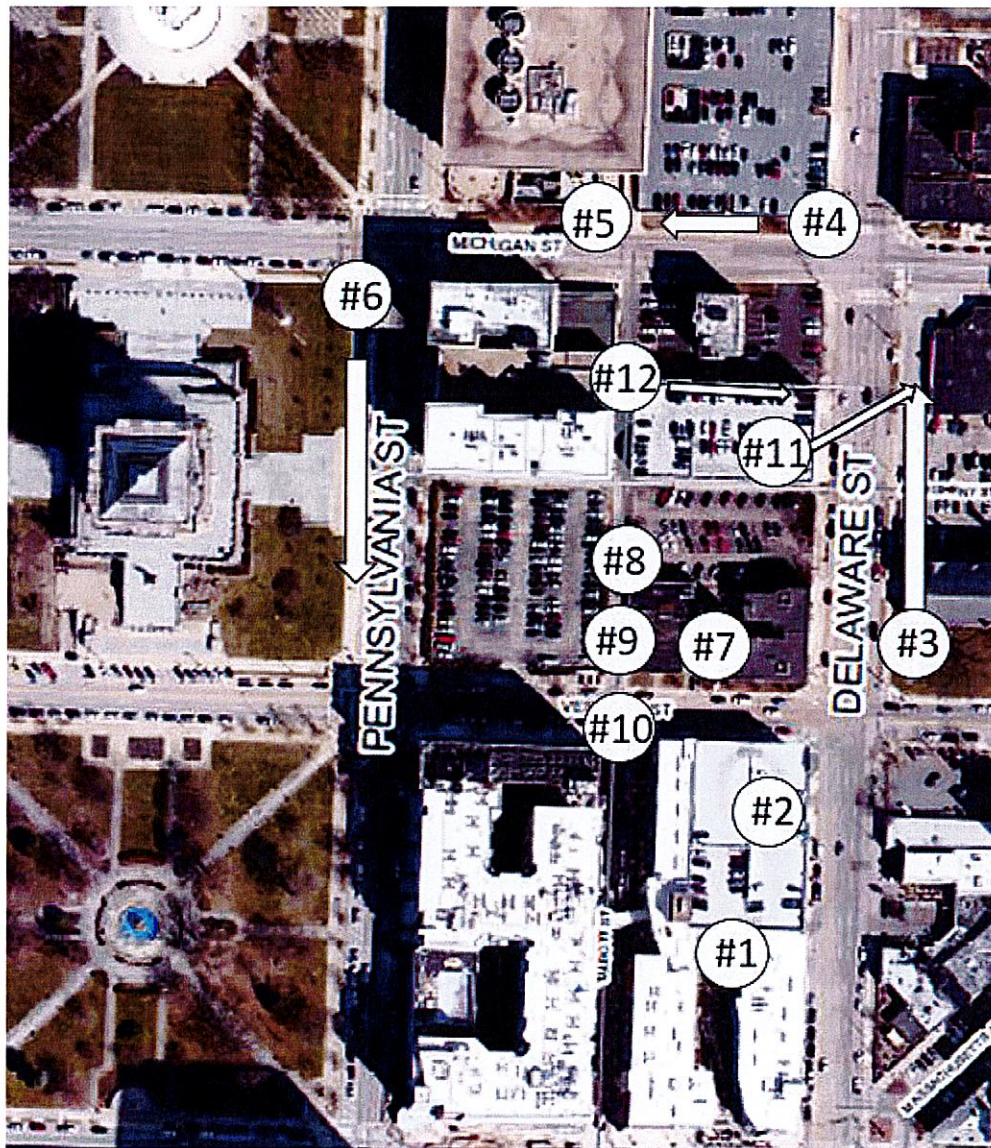
May 30, 2020 ATTEMPTED ROBBERY OF K.S.

On June 1, 2020, K.S. reported that on the evening of May 30, 2020 at approximately 11:40 p.m., he was at the intersection of N. Vermont St. and E. Talbott St. K.S. stated that two black males, one around 19 years old and the other around 21 years old approached his vehicle and pointed handguns at his vehicle. They told K.S. to “get out of the car.” K.S., afraid for his life, put his vehicle in reverse and fled the area. K.S. believed that they tried to shoot at the driver’s side front tire as he was leaving the intersection, but he was unsure.

CSS Specialist recovered a fired bullet from under the hood of K.S.’s 2005 gold Toyota Prius. The fired bullet was submitted to the crime lab for further analysis.

TIMELINE

Detective Jason Leitze was able to obtain additional surveillance footage from 400 N. Delaware St., 429 N. Pennsylvania Ave., 310 N. Delaware St., 127 E. Michigan St., and 167 E. Vermont St. as well as footage from the Indiana War Memorial at 400 N. Pennsylvania St. that was recorded on May 30, 2020. Using surveillance footage and witness statements, Detective Smalley was able to create the following timeline of the suspects’ movements throughout the immediate vicinity of the above-mentioned robberies and murder of Christopher Beaty:



- 11:20 p.m. The five suspects that committed the robbery at 167 E. Vermont St. are seen on foot in the 300 block of N. Delaware St. (#1 on Map)
- 11:23 p.m. The five suspects are seen committing the robbery at 167 E. Vermont St. Suspect #1 is seen passing a black and silver semiautomatic handgun to Suspect #2. (#2 on Map)
- 11:32 p.m. The five suspects are seen walking north in the 400 block of N. Delaware St. (#3 on Map)

- 11:33 p.m. The five suspects are seen west in the 100 block of E. Michigan St. from 400 N. Delaware St. Suspect #3 is seen extending an arm at the unknown subject and then knocking the person to the ground. (#4 and #5 on Map)
- 11:34 p.m. The five suspects walk south on 400 N. Pennsylvania St. from E. Michigan St. (#6 on Map)
- 11:36 p.m. Christopher Beaty is seen leaving his apartment building and walking towards 400 N. Talbott St. (#7 on Map)
- 11:36 p.m. A.B., B.M., and A.T. are robbed in the 400 block of N. Talbott St and a shot is fired. (#8 on Map)
- 11:36 p.m. S.F. and S.M. are robbed in the 400 block of N. Talbott St. (Same location, #8 on Map)
- 11:39 p.m. Christopher Beaty is murdered in the 400 block of N. Talbott St. (#9 on Map)
- 11:40 p.m. An attempt at a robbery on K.S. is made and a shot is fired. (#10 on Map)
- 11:41 p.m. Suspect #3 is seen walking northeast in the 400 block of N. Talbott St. Suspect #3 now has the dark jacket on over his light-colored shirt. Suspect #3 then runs northeast across Delaware St. and waits at the intersection of N. Delaware St. and E. Michigan St. (#11 on Map)
- 11:42 p.m. Suspect #1, Suspect #4 and Suspect #5 are seen walking from the 400 block of N. Talbott St. They cross Delaware St. and meet with Suspect #3. (Same location, #11 on Map)
- 11:42 p.m. Suspect #2 is seen walking north in the 400 block of N. Talbott St. He then crosses to N. Delaware St. and joins the other four suspects. (#12 on Map)
- 11:44 p.m. The five suspects walk west on E. Michigan St. and continue south in the 400 block of N. Pennsylvania St. toward Vermont St., the location where S.F. reported seeing the suspects that robber her shortly after the robbery. (Same location as #4 and #5 on Map)

An earlier incident was later determined to be connected to the events of May 30, 2020. On May 29, 2020, the Twin Jeweler's store in the Circle Center Mall was burglarized. Video surveillance shows multiple people in the store and shots being fired. Three 9mm shell casings and parts of spent rounds were recovered from the store. The casings and bullets were submitted to the crime lab for further analysis.

IDENTIFICATION OF SUSPECTS

Detective Jason Leitze submitted video stills and video surveillance from footage recovered from the Newpoint parking garage to be posted online for the public to view to assist in identifying the suspects. Detective Brink received anonymous tips that Suspect #1 was Dorian Murrell and that he was shot downtown later that night. Detective Brink also received anonymous tips that Suspect #2 was Alijah Jones, who is Dorian Murrell's brother.

Detective Brink researched the names Dorian Murrell and Alijah Jones and learned that Dorian Murrell was the victim of a homicide that occurred at approximately 2:00 a.m. on May 31st, 2020, IMPD case number IP200052501. This homicide occurred at 10 East Market Street, less than half a mile from the homicide of Christopher Beaty. Alijah Jones was reported to be a witness to the homicide of Dorian Murrell. Detective Brink looked at photos taken of Murrell at the Morgue during his autopsy. Every item of clothing worn by Suspect #1 in the robbery at 167 East Vermont Street, with an exception of the Tommy Hilfiger sweatshirt, was worn by Murrell at the time of his death.

Detective Stephen Smalley reviewed incident reports and statements taken by Detective Patrick reference the homicide of Dorian Murrell, case number IP200052501, and learned the following: On May 31, 2020, at 2:05 a.m., IMPD Officers responded to 10 East Market Street reference a person shot. Responding Officers found Dorian Murrell with a single gunshot wound to his torso. Murrell was transported to Eskenazi Hospital by Medics and later declared deceased.

Detective Lottie Patrick and Detective David Miller responded to Eskenazi Hospital to speak to the family of Dorian Murrell. At approximately 3:45 a.m. Alijah Jones was interviewed by Detective Patrick and Detective Miller at Eskenazi Hospital. He said he was with his brother, Dorian Murrell, near Monument Circle when Murrell was shot.

While speaking to Alijah Jones, Detective Miller observed Jones wearing black Adidas athletic pants with three white stripes similar to what Suspect #2 was wearing during the robbery at 167 East Vermont Street. Alijah Jones told Detective Patrick that he didn't know the names of the people he was with at the time of the shooting, but one of them was "Marcus."

While at Eskenazi hospital, Detective Miller observed a black male wearing a distinct multi-colored jacket that was pacing near the Emergency Room entrance. Detective Miller asked a family member who the male was, as the male appeared distressed. The family member told Detective Miller that the male in the jacket was "Marcus" and that he had witnessed the shooting of Dorian Murrell. Detective Miller attempted to speak with Marcus, but could not get a response. Detective Miller later reviewed the surveillance footage of the robbery of A.Z. at 167 E Vermont Street and recognized the jacket worn by Suspect #5 as the same jacket worn by "Marcus" at Eskenazi Hospital. Detective Miller also observed that "Marcus" had dreadlocks similar in style and length, and a distinct receding hairline similar to Suspect #3.

On June 5, 2020, Detective Smalley received a call and text message from S.F.. She saw the news story about the robbery at 167 East Vermont Street and advised that the suspects in the surveillance video are the same suspects that robbed her in the 400 block of North Talbott Street. She said the suspect in the white t-shirt with dreadlocks (Suspect #3) had a gun when she was robbed.

On June 6, 2020, Detective Smalley received a call and text message from B.M. saw the surveillance footage of the robbery at the parking garage at 167 E Vermont Street on the news and recognized those suspects as the same people who robbed him in the 400 block of North Talbott Street.

On June 7, 2020, Detective Brink received an anonymous tip that the suspect in the robbery at 167 East Vermont Street in the white shirt and dark pants was Marcus Anderson. Detective Brink followed up on the tip and identified a Marcus Anderson, 06/20/1997. Detective Brink found a BMV photo of Anderson and observed that he resembled Suspect #3. On May 31st, 2020, the day of Murrell's death, Marcus Anderson posted a message on his Facebook page regarding the death of Murrell:

"Man RIP Dee Chrishawn My mf brother from another!! Bitxh we done did waaay to much for you to be leaving us this early. Jesus got you now brother. Watxh over your people and keep em safe man they need closure."

Detective Smalley found that Dorian Murrell's Facebook name was Dee Crishawn, and that he and Marcus Anderson are "friends" on Facebook.

Detective David Miller viewed a BMV photo of Marcus Anderson and recognized him as the male wearing the multi-colored jacket at Eskenazi Hospital on May 31, 2020, that was identified by a family member of Dorian Murrell as "Marcus."

On June 22, 2020, Probation Director Megan Durbin received an anonymous tip from a female that identified herself as an ex-girlfriend of Marcus Anderson 06/20/1997. The female said that Anderson may have been involved in the homicide of Christopher Beaty. Director Durbin advised Detective Smalley that Anderson was on probation for robbery.

On July 7, 2020, Detective Smalley received a call from L.L. L.L. saw the surveillance video of the robbery at 167 East Vermont Street on the news and recognized Suspect #2 as Alijah Jones. She advised that her son has been friends with Jones for years, she has known Jones since he was young, and immediately recognized him in the video.

On July 22, 2020, Detective Smalley received information that the female suspect, Suspect #5, was Dorian Murrell's girlfriend, Nakeyah Shields. Detective Smalley researched the name Nakeyah Shields and found a Nakeyah Shields, 12/06/2000. Detective Smalley viewed a BMV photo of Shields and observed she bore a strong resemblance to Suspect #5 in the surveillance video of the robbery at 167 East Vermont Street. Detective Smalley reviewed the Facebook page belonging to Nakeyah Shields and found a post made on May 31, 2020 with pictures of Dorian Murrell and Nakeyah Shields together. The text accompanying the post read in part:

"I was there with you 🥺 I held you, I tried everything to save you."

On July 29, 2020, Detective Smalley received a tip that included a Facebook Live video that was recorded immediately after the shooting of Dorian Murrell on May 31, 2020. The video showed a female lying on the ground that appeared to be crying. The female was wearing shoes and pants identical to Suspect #5 in the surveillance footage as well as a Tommy Hilfiger jacket similar to the one worn by Suspect #1 from 402 North Delaware Street, 429 North Pennsylvania Avenue, 310 North Delaware Street, 127 East Michigan Street, and 167 East Vermont Street.

Dorian Murrell was shown lying on the ground and unresponsive. A subject was seen crouched over Murrell and could be heard saying "That's my brother." The subject's demeanor and body language indicated that he was referring to Murrell, leading Detective Smalley to believe that the subject crouched over Murrell was Alijah Jones. The subject believed to be Jones was wearing a sweatshirt, ski mask, pants, and shoes identical to those of Suspect #2 in the surveillance footage from 402 North Delaware Street, 429 North Pennsylvania Avenue, 310 North Delaware Street, 127 East Michigan Street, and 167 East Vermont Street.

The subject believed to be Alijah Jones could be seen talking to and shoving a male subject in a multicolored jacket identical to the jacket worn by Suspect #5 in surveillance footage from 402 North Delaware Street, 429 North Pennsylvania Avenue, 310 North Delaware Street, 127 East Michigan Street, 167 East Vermont Street, and the jacket worn by the subject at Eskenazi Hospital identified by Detective David Miller as Marcus Anderson. The subject was wearing pants and shoes identical to those worn by Suspect #3 in the surveillance footage from 402 North Delaware Street, 429 North Pennsylvania Avenue, 310 North Delaware Street, 127 East Michigan Street, and 167 East Vermont Street. This led Detective Smalley to believe that the Jacket worn by Suspect #5 in the surveillance footage from 402 North Delaware Street, 429 North Pennsylvania Avenue, 310 North Delaware Street, 127 East Michigan Street, and 167 East Vermont Street, was worn by Marcus Anderson at the time Murrell was shot.

Detective Smalley reviewed surveillance footage recovered from the Hilton Garden Inn at 10 East Market Street that captured the moments after the shooting of Dorian Murrell. 10 East Market Street is less than a block from where Murrell was shot. At approximately 2:05 a.m., several people could be seen running from the area where Murrell was shot. A male with a receding hairline and wearing a multicolored jacket could be seen running from the area. The jacket was identical to the jacket worn by Marcus Anderson at Eskenazi Hospital.

FACEBOOK RECORDS

On July 24, 2020, Detective Marc Klonne of the IMPD Violent Crimes Unit applied for and was granted a search warrant for the Facebook account belonging to Marcus Anderson. On

August 6, 2020, Detective Klonne received the responsive records and provided them to Detective Smalley.

Detective Smalley found messages sent by Marcus Anderson to multiple Facebook users that included a video of an unseen subject displaying Tommy Hilfiger and Polo brand clothing. The clothing was new and had security devices and sales tags still intact. One of the messages was sent to an account identified at D.S.E.. Detective Smalley found the following exchange between Anderson and Saunders on May 30, 2020:

Marcus Anderson: *Clothes. Hoodies jeans and shirts. Polo and Tommy Hilfiger*

S.E.: *Ok*

S.E.: *Lol u was down there*

Marcus Anderson: *Fucked em up*

Marcus Anderson: *Bro nem was down there*

Detective Smalley found the following exchange between Marcus Anderson and the Facebook user N.H.:

Marcus Anderson: *Clothes. Hoodies jeans and shirts. Polo and Tommy Hilfiger*

N.H.: *Is that your stuff*

Marcus Anderson: *Me n nigga*

N.H.: *Where the hell u get it*

Marcus Anderson: *Mall*

Detective Smalley located Facebook messages exchanged between Marcus Anderson and Alijah Jones on June 2, 2020:

Marcus Anderson: *Whats up bro, you straight? Is it coo if i stay there and work at the*

job when it start back up? I dont got nobody else out here to help me get back and forth

Marcus Anderson: *Ill help out on the food cuz i get stamps. Or the bills either one*

Alijah Jones: *That ain't no good idea you need to be hiding out and shit from the other night and my brother looking for another job so you still wouldn't have a way out there*

Marcus Anderson: *Damn. Okay imma hit you back when i can come and grab them Clothes*

Alijah Jones: *Aye you need to lay low get out of town or something I just seen the report from that dude*

Alijah Jones: *Ima send it to you but you gotta delete our whole message thread and all that shit*

Marcus Anderson: *What dude*

Alijah Jones: *Nigga from the alley*

Alijah Jones followed this message by sending a picture of a Facebook post describing the murder of Christopher Beaty and describing two possible suspects. After sending the picture, Alijah Jones sent a Message to Marcus Anderson saying:

"Delete this shit."

Records also showed that Alijah Jones removed Marcus Anderson as a Facebook friend on June 2, 2020.

On June 10, 2020 Marcus Anderson sent a Facebook message to a user identified as Z.S., stating:

"I need to move down there. Tbh I'm in a lil trouble up here and I def need to get tf lost."

Detective Smalley researched the account belonging to Z.S. and found the owner of the account listed her home state as Texas.

Detective Smalley located messages between Facebook user G.C. on June 19, 2020:

G.C.: *lol hair ahh mane*

Marcus Anderson: 

Marcus Anderson: *Had to cut it bro*

At the time of his arrest on August 13, 2020, Marcus Anderson had short hair and no longer had the chin-length dreads as seen in the surveillance video or his BMV identification photo.

On August 10, 2020, Detective Marc Klonne of the IMPD Violent Crimes Unit applied for and was granted a search warrant for the Facebook account belonging to Nakeyah Shields. On August 27, 2020, Detective Klonne received the responsive records and provided them to Detective Smalley. Detective Smalley reviewed the records and found messages exchanged between Nakeyah Shields and Marcus Anderson on June 4, 2020:

Marcus Anderson: *Aye somebody wanna buy that gun. Ask bro do he want to sell it*

Nakeyah Shields: *Don't talk like that on my phone*

Nakeyah Shields: *I don't know what you talking about*

Marcus Anderson: *My bad u right*

MARCUS ANDERSON STATEMENT

On August 11, 2020, an arrest warrant was issued for Marcus Anderson for Armed Robbery and Criminal Confinement, reference the robbery of A.Z. at 167 East Vermont Street, cause number 49G02-2008-F3-025061.

On August 13, 2020, Detectives Stephen Smalley and David Miller took a recorded statement from Marcus Anderson at the Marion County Jail, where Anderson was being held for a violation of probation reference a robbery conviction in 2018. Detective Smalley advised Anderson of his Miranda Rights. Anderson signed a waiver of rights form and gave a statement to Detectives Miller and Smalley. Anderson said that he remembered talking to Detective Miller at the hospital the night Murrell was shot and that he was "right there" when it happened. Anderson said that he rode downtown with Dorian and his brother in Dorian's car. When asked if Anderson was in a parking garage he said that it "was possible." Anderson was evasive when asked who he was with downtown. He said when they decided to leave, they couldn't get to their car because a murder had happened and their car was parked inside crime scene tape. Anderson said he didn't know where they were downtown, that they were walking with no destination, and that nothing happened that night.

A video from the evening of May 30, 2020 was recovered from a civilian in the area of 400 N. Talbott St. A white Nissan Murano similar to the one registered to Alijah Jones can be seen parked in the immediate area of E. Vermont St. and N. Talbott at the time Christopher Beaty's body is discovered.

NAKEYAH SHIELDS STATEMENT

On August 14, 2020, Detective Smalley met with Nakeyah Shields at 50 N. Alabama St. for a recorded statement. Detective Smalley advised Shields of her Miranda Rights. She signed a waiver of rights form and gave a statement to Detective Smalley. Shields began her statement by saying that she didn't know who killed Christopher Beaty because she "wasn't paying attention."

Shields said the night Beaty was murdered, she was downtown with Alijah Jones, Dorian Murrell, Marcus, whose last name she didn't know, and an unknown male. Detective Smalley showed Shields a photo array contained Marcus Anderson. She identified the known photograph

of Marcus Anderson as the Marcus that was with her downtown. Shields said she rode downtown with Dorian in his vehicle and parked at a location that was a two or three- minute walk from 167 E. Vermont St. They went inside a parking garage and a robbery was committed. Shields said she walked past because she “didn’t want to see it.” Shields said that immediately after the robbery, Jones said that he “had to shit” so he went to some bushes and asked Murrell and Shields to “watch out for him.” Shields said she was standing near a car with Murrell and saw Christopher Beaty walk by while smoking a blunt. Shields said to Murrell that Beaty was smoking a blunt and “It must be nice.” Beaty told Shields to be safe and he continued straight in the alley. Shields said Beaty walked past Alijah in the bushes.

Shields heard a gunshot, and ran out of the alley with Murrell. Shields said that Anderson and the unknown male were not with her and Murrell when they ran from the alley. She did not see Beaty get shot because she was “focused on the opposite direction”. After she ran from the alley, the group found Jones and tried to return to their vehicle to leave but found the vehicle was inside the crime scene and could not be accessed.

On August 12, 2020 Nakeyah Shields provided an additional statement to Detective Smalley. Detective Smalley advised Shields of her Miranda Rights, Shields signed a waiver of rights form and gave a follow-up statement to Detectives Smalley, Miller, and Special Agent Langerman.

Shields stated that after the parking garage robbery, they continued walking and another robbery was committed by the group before the shooting of Christopher Beaty. Shields said that when the second robbery occurred, the group was walking in front of her and she saw Jones and Anderson “scuffling” with the unknown victim. Shields said she kept on walking when the robbery happened and was minding her own business. After the second robbery, they walked to an alley and Jones asked Murrell to “cover him” while he defecated in the bushes. Shields was standing near the alley and an intersecting street, was talking to Murrell, and on the phone with her cousin. Anderson and Suspect #4 continued walking in the alley. Shields did not see anyone else in or near the alley. Christopher Beaty walked by, told her to be safe, and continued walking. She heard shots and ran out of the alley with Murrell, leaving Jones in the bushes. She

stated no one discussed the shots fired the alley. When asked if there were any other robberies than the two she described, Shields responded, "not that I remember."

CONTINUED INVESTIGATION

On August 13, 2020, Detective Stephen Smalley and Sergeant Christopher Lawrence responded to Tippecanoe County Jail where Alijah Jones was being held for Possession of Marijuana and Operating a Vehicle While Intoxicated. Alijah Jones was transported to Marion County Jail.

On August 14, 2020, Detective Ted Brink conducted a photo array with A.Z.. He presented photo array 155372 to A.Z.. A known photograph of Marcus Anderson was placed in position #6. A.Z. indicated she was fairly certain person #6 was the person who held her down in the vehicle. When asked for a percentage of certainty, A.Z. indicated she was 80% sure because the other photographs looked similar to the person she selected.

Detective Smalley researched calls made by Alijah Jones from Marion County Jail after his arrest on August 13, 2020. Detective Smalley located a call made by Jones on August 14, 2020 at 5:22 p.m. to an unknown female. Jones and the female discussed Jones' arrest and that a second person, Marcus, was arrested reference the same investigation. Jones said that Marcus was a friend of his brother and that Marcus must have "Said something." On August 14, 2020, at 7:34 p.m., Jones made a call to an unknown female and discussed his arrest and the arrest of Marcus Anderson. Referring to Marcus, Jones said there was there was someone with them "that night" and that "This dude is trying to put some shit on me." On August 16, 2020, at 3:08 p.m., Jones made a call to a person known to law enforcement. While talking about Anderson's arrest, Jones said he thought Anderson "Told and tried to tie me in with his shit."

CELL TOWER LOCATION DATA

On August 4, 2020, Detective Marc Klonne applied for, and was granted a search warrant for phone records belonging to Marcus Anderson. On September 5, 2020, Detective Smalley received and reviewed the responsive records. The records show that Marcus Anderson's phone was in the area of 400 N Talbott Street around the time that Christopher Beaty was killed.

On August 20, 2020, Detective Smalley applied for, and was granted a search warrant for phone records belonging to Nakeyah Shields. On September 23, 2020, Detective Smalley received and reviewed the responsive records. The records show that Nakeyah Shields' phone was in the area of 400 N Talbott Street around the time that Christopher Beaty was killed.

GOOGLE RECORDS

On August 22, 2020, Detective Smalley reviewed the Facebook records belonging to Marcus Anderson and identified a Google Gmail address associated with the account, marcusa315@gmail.com. Detective Smalley applied for, and was granted, a search warrant for the records associated with the Gmail address. On September 25, 2020, Detective Smalley received and reviewed the responsive records. Detective Smalley found a video that was saved to Anderson's account on May 30, 2020, that showed him wearing a shirt identical to the shirt worn during the robbery at 167 East Vermont Street.



FIREARMS EVIDENCE

Tim Spears, a forensic scientist with the Marion County Forensics Services Agency (crime lab), examined the following collected evidence:

- Spent 9mm Shell Casing from the area of D.M.'s Mustang (167 E. Vermont St.)
- Fired Bullet Jacket from driver's seat of D.M.'s Mustang (167 E. Vermont St.)

- Five Spent 9mm Shell Casings from scene of Robberies and Christopher Beaty Homicide (400 N. Talbott St.)
- Two fired bullets recovered from Christopher Beaty at autopsy
- Fired Bullet from Attempted Robbery of K.S.
- Three Spent 9mm Shell Casings from Burglary of Twin Jewelers (Circle Center Mall)
- Three Fired Bullet Fragments from Burglary of Twin Jewelers (Circle Center Mall)

Spears examined and compared each spent shell casing and determined they were all fired from the same firearm.

Spears examined and compared each fired bullet and determined they were all 9mm/ 38 caliber class bullets and were fired from the same firearm.

All events occurred in Indianapolis, Marion County, IN.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.

DATED: December 3, 2020

/s/ Stephen Smalley
AFFIANT

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

Cause No: 49G02

STATE OF INDIANA)
)
 vs.)
)

INFORMATION

COUNT I

MURDER

I.C. 35-42-1-1(1)

A FELONY

COUNT II

ARMED ROBBERY

I.C. 35-42-5-1(a)(1)

A LEVEL 3 FELONY

FREDRICK LEE FORD Jr. B/Male
DOB 9/2/1965

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

On or about January 28, 2018, FREDRICK LEE FORD Jr. did knowingly or intentionally kill another human being, to-wit: Catrina Russell;

COUNT II

On or about January 28, 2018, FREDRICK LEE FORD Jr. did knowingly or intentionally take property, vehicle and/or purse and/or purse contents from Catrina Russell or the presence of Catrina Russell, by using force or by threatening the use of force, shooting at or against Catrina Russell, while FREDRICK LEE FORD Jr. was armed with a handgun, a deadly weapon;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44.1-2-1 that the foregoing representations are true.

/s/ Anne E. Frangos
Affiant

February 7, 2018
Date

State's Witnesses:
Harry Dunn, 30436 IMPD
Mark Howard, 20676 IMPD
Gary Smith, S1906 IMPD

TERRY R. CURRY
Marion County Prosecutor
19th Judicial Circuit

/s/ Anne E. Frangos

Dustin Keedy, 31759 IMPD
Daniel Kepler, K8718 IMPD
Leslie Vanbuskirk, V9625 IMPD
Kerry Buckner, X7871 IMPD
Matthew Fortney, 40189 IMPD
Leeorder Markey, M7046 MCSO
Amanda Mohaupt, 41548 MCCL
Jessica Miller, MCCO
Dr. John Cavanaugh, MCCO
Q.B.
J.C.
D.G.
J.G.
T.H.
B.M.
A.P.
D.S.

Deputy Prosecuting Attorney

AFFIDAVIT

FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

Detective Harry Dunn swears (affirms) that:

On January 28th, 2018 at approximately 03:02pm Indianapolis Metropolitan Police Department (MNE) Officers, including Officer Matthew Fortney, were dispatched to 2801 E. New York Street on a report of a person shot and body dumped in the parking lot with a grey or blue Lexus fleeing the scene. Upon officer's arrival they made contact with the decedent later identified as Catrina Russell. Officers requested for homicide detectives to respond to the location.

IMPD Homicide Detectives Mark Howard, Harry Dunn, Dustin Keedy, Gary Smith, Daniel Kepler, Sgt. Leslie Vanbuskirk, Lt. Kerry Buckner, responded to the scene / assisted with the investigation. Crime Lab Specialist Amanda Mohaupt arrived as well as Deputy Coroner Jessica Miller.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

While on scene Detective Dunn interviewed a witness B.M. B.M. stated that she had just arrived to the NY Express convenient store with her fiancé. She got out of her vehicle and heard a gunshot. She turned around and observed a grayish blue compact car with a bald, dark skinned, black male, wearing black outerwear on his upper torso, sitting in the passenger seat leaning over towards the driver's seat, opening the driver's door, and pushing a female out on to the pavement. B.M. then observed the same black male drive the car northbound on Rural Street.

Detective Mark Howard interviewed a witness A.P. She was walking northbound on Rural Street when a grayish/ blue car slowly was turning in front of her path. A.P. said the windows were not tinted or not very tinted. A.P. heard a gunshot, then observed a black male, low haircut, skinny, dark clothing, pushed what she later learned to be a female out of the driver's seat of the car on to the pavement. She then observed the car travel north on Rural street.

Detective Gary Smith interviewed witness D.S. He was inside NY Express when someone entered the store stating someone had just been shot. He exited out of the store and observed a black, bald male driving a grayish / blue Lexus exit the parking lot traveling

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

northbound at a high rate of speed on Rural Street. D.S. observed a black, bald male driving away in the car.

Detective Gary Smith interviewed J.G.. J.G. explained that he observed a car pull into the parking lot off of Rural Street. Then heard a gunshot, then he went in to the store while trying to get the attention of his fiancé.

Detective Gary Smith interviewed T.H. T.H. was the 911 caller referenced this incident. He was inside the store at the time of the shooting. He did not witness the actual shooting. He did not see the car or the incident occur.

The shooting incident was recorded on a video camera surveillance system at the NY Express. The recording confirmed what the witnesses observed. The video also displayed the suspect running the car over the top of the deceased victim's body, prior to it exiting the parking lot. There was also a witness that called 911 that gave the license plate number of the Lexus. This license plate came back to a registered owner Catrina Russell. The victim was later identified as Catrina Russell.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

Detective Dunn gained knowledge from Detective Kepler that the city's cameras caught the fleeing vehicle traveling north bound from the scene then turning eastbound on East 10th street. Detective Dunn requested that Detective Gary Smith attempt to travel the neighborhood the vehicle was last seen traveling towards. The vehicle was located a short time later near the corner of 14th and Kealing by Detective Gary Smith. The victim's purse, jacket and 357 caliber revolver bearing serial number 1707006, was found in the alley just north of where the vehicle was found. Detective Dunn relocated to that scene and observed the vehicle and other evidence recovered by crime lab. There was a possible witness located and interviewed by Detective Mark Howard.

Detective Mark interviewed Q.B. located at his house near the end of the alley, where the victim's leather jacket was located and recovered. Q.B. explained to Detective Howard that he was cleaning his back yard when he noticed the jacket near his fence. Q.B. noticed that there was possible blood on the jacket. Q.B. stated that he kicked the jacket underneath his fence into the alley. Q.B. stated that he doesn't recall ever touching the jacket with his hands.

Detective Dunn returned to the homicide office and interviewed the victim's daughter D.G. She explained that she believed her mother's boyfriend was responsible for the shooting. She gave the name of Fredrick Ford. She explained that her mother told her two days prior to

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

her death that she was leaving the relationship, and that she told Fredrick that he had to find another place to live. D.G. stated that her mother carried a 357 caliber revolver and was licensed to carry. She stated that her mother always carried her weapon on her or in her car. She stated that she has listened to Fredrick Ford brag about being a killer and robber. She said she had not witnessed Fredrick carrying a firearm. She said Fredrick and Catrina had been dating since approximately August of 2017. She described Fredrick Ford as a black, bald, dark skinned male. D.G. continued explaining that her mother called her on Sunday (the morning of the murder) at approximately 1:05pm. Catrina told D.G. that she was just leaving church and from visiting D.G.'s grandmother. Catrina said she was heading home to cook dinner and invited her over to eat. D.G. said her brother lives with her mom at her apartment on 46th and Allisonville Road. Fredrick, Catrina and her son J.C. live together in that apartment unit. D.G. positively identified Fredrick Ford in a photo array line up ID #142672.

On January 29th, 2018 Detective Dunn attended the autopsy MC-18-0258 of Catrina Russell. The autopsy was performed by Dr. John Cavanaugh who determined the cause of death to be a gunshot wound to the head. The Manner of Death was determined to be homicide.

Detective Dunn interviewed J.C. at the homicide office on January 29th, 2018. J.C. stated that he was at home, when his mother Catrina Russell arrived home from church, and from

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

visiting his grandmother. J.C. said she arrived home at approximately 2:00pm. Catrina told J.C. she was going to cook some alfredo. Then Fredrick Ford arrived to the house at approximately 2:10pm. J.C. said Fredrick asked Catrina to leave with him to go out to dinner. J.C. described Fredrick's clothing as burgundy and black striped shirt / zip up sweater, black jeans. J.C. said they left the house at approximately 2:30pm inside Catrina's Lexus. J.C. described Fredrick as a bald, black, dark skinned, skinny, approximately 5'9. J.C. positively identified Fredrick Ford in a photo array line up #142762.

Detective Dunn attempted to contact Fredrick Ford via Fredrick cell phone number (317-734-4294) the phone was turned off going to voicemail. Detective Dunn was aware that Catrina's family members made attempts to contact Fredrick after they were notified of the murder and the phone was off going to voicemail.

Detective Dunn served a search warrant on the victim's car. There were no prints recovered from inside the car, the car was swabbed for DNA and the victim's cell phone was recovered.

On Sunday evening, the victim's family members made attempts to contact Fredrick via cell phone. The phone was turned off and going straight to voicemail. Detective Dunn made

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

attempts on Sunday and Monday 01/29/2018 several times to contact Fredrick Ford and his phone was going straight to voicemail.

On Monday 01/29/2018 VCU Detectives began to seek to locate Fredrick with no success, even making contact with the Fredrick's sister T.F. whom also stated that Fredrick has not answered her text messages or calls.

Detective Dunn contacted Fredrick's parole officer. His parole officer stated that Terry Ford's address is Fredrick's listed address and began making contact attempts.

On Monday evening IMPD requested assisted from local media stations. A request to located Fredrick Ford for questioning only was made.

On Tuesday 01/30/2018 Fredrick's parole officer explained to Detective Dunn, that Fredrick was not responding his calls, also Fredrick had not shown up for work. He was going to make more attempts to contact Fredrick Ford for another 24 hours.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

On Wednesday 01/31/2018, Fredrick's parole officer contacted Detective Dunn and explained that Fredrick's employer decided to terminate his employment. The parole officer consulted with his supervisor.

On Thursday 02/01/2018 The parole officer contacted Detective Dunn informing him that they filed the petition to violate his parole, and they are awaiting the judges signature. Detective Dunn continued to conduct background research in an attempt to locate Fredrick. Detective Dunn stayed in contact with the victim's family and Fredrick had not return home ever since the day of the murder, never picked up his clothing, never came back to pick up his car, and has not contacted the police.

On Thursday evening at approximately 11:15pm, 02/01/2018, Detective Dunn received a phone call from MCSO Leeorder Markey. Deputy Markey told Detective Dunn that Fredrick Ford is his wife's brother and Fredrick reached out to Deputy Markey asking for his assistance to turn himself in to the police. During the early morning hours of Friday 02/02/2018 Detective Dunn continued to have conversations with Deputy Markey until Fredrick Ford agreed to turn himself in at 6:00am 02/02/2018.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

Deputy Marky arrived with the suspect at approximately 6:30am. Detective Dunn took a statement from Deputy Marky. The Deputy stated that he was given instructions to meet Fredrick at 25th and Post Road. During the car ride to the homicide office they only discussed the weather. Deputy Markey stated that he was aware that Fredrick was turning himself in for the murder of Catrina Russell, but stated that he was not told that directly from Fredrick.

Detective Dunn interviewed Fredrick Ford. Ford signed a waiver of rights form prior to speaking to Detective Dunn. During the interview Fredrick Ford admitted to being in the car with Catrina on Sunday January 28th, 2018 having an argument over a guy named Ronnie. Fredrick admits to leaving Catrina's apartment on 46th and Allisonville Road at approximately 01:45pm in Catrina's car. They traveled from 46th and Allisonville Road to Keystone Avenue southbound until approximately 35th /36th Street and Keystone Avenue.

Fredrick then says Catrina turned the corner on to a side street and put him out of the car, due to an argument over a guy named Ronnie. Fredrick said that Catrina said she did not like his attitude. Then Fredrick admitted that they could have possibly traveled as far south of 22nd and Keystone instead of 35th/36th Street. Then he flagged down an unknown person driving a dark color car and paid them 20.00 dollars to take him further east. Fredrick then called his nephew for a ride. Then he drove around in a car with his nephew M.S. (the son of the MCSD Deputy

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

that turned him in) and two other individuals (B.J. and S.F.) until around 7pm, then got a hotel on Pendleton Pike and Sunnyside Road for a couple of days.

Fredrick stated that he never called the police because he had to get his thoughts together. He said did not have his cell phone because he left inside the car with Catrina when she put him out. Fredrick had just told Detective Dunn that he called his nephew to pick him up. Fredrick said he touched her purse, and jacket, while living with her in the house. He said he never touch the gun, but was aware she owned gun because he witnessed her pulled the gun out last week on some other male named Ronnie. He admitted that he was wearing a dark colored shirt. This is similar color clothing as described by all three eye witnesses.

Detective Dunn observed the victim's vehicle traveling south bound from Rural Avenue and 10th Street on the city of Indianapolis cameras at 02:55pm. The murder occurred at 03:00pm on New York Street and Rural. According to J.C., Catrina and Fredrick left 46th an Allisonville Road at 02:30pm. Fredrick Ford said they left the apartment at approximately 01:45pm then had the argument and he was put of the car approximately 22 +/- blocks away from the scene where witnesses observed a suspect that matches his physical description, shot the victim then pushed her out of the car, then drove over her with her own car. Then admits that his DNA could be on

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/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

Affidavit for Probable Cause

From: Detective Harry Dunn

the victim's purse, jacket but not her gun. He never came back home to the apartment. Never called the police, nor his parole officer.

D.G. arrived to the homicide office with Catrina's gun box that she recovered from Catrina's apartment. The serial number # 1707006 was on the box. There was a receipt inside the box for the purchase of the 357 caliber revolver. The box did not have a weapon inside.

I swear (affirm), under penalty of perjury as specified by IC 35-44.1-2-1, that the foregoing representations are true.

/s/ Harry Dunn

AFFIANT

DATED: 02/07/2018

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

THE STATE OF INDIANA

vs.

Fredrick Ford B/M 9/2/1965
CAUSE NO. 49G060404FB063977
(AS TO COUNT(S) I, II, III)

) INFORMATION
) COUNT I
) UNLAWFUL POSSESSION OF A
) FIREARM BY A SERIOUS VIOLENT
FELON, CLASS B FELONY I.C. 35-
47-4-5
COUNT II
CRIMINAL RECKLESSNESS, CLASS D
FELONY I.C. 35-42-2-2
COUNT III
TRESPASS, CLASS A MISDEMENOR
I.C. 35-43-2-2

On this date, Stephen R. Haney came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

Fredrick Ford, being a serious violent felon, that is: having been convicted of Battery, a Class C Felony in Marion County Superior Court, Criminal Division Room 2 under cause number 49G029402CF021492 on September 8, 1994, did on or about April 15, 2004, knowingly or intentionally possess a firearm, that is: a rifle;

COUNT II

Fredrick Ford, on or about April 15, 2004, while armed with a deadly weapon, that is: a rifle, recklessly performed an act that created a substantial risk of bodily injury to Alisha McMiller and other persons in the vicinity of 1315 LeMans Court,

that is: chambering a round and brandishing a rifle in a bedroom at 1315 LeMans Court, Apartment 704;

COUNT III

Fredrick Ford, on or about April 15, 2004, did knowingly or intentionally refuse to leave the real property of Alisha McMiller, another person, after having been asked to leave by said other person or an agent of said other person, said defendant not having a contractual interest in said real property.

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by IC. 35-44-2-1 that the foregoing representations are true.

Stephen A. Hany
Affiant

04/19/2004
Date

CARL J. BRIZZI
Marion County Prosecutor
19th Judicial Circuit

Tom Rasheed
Deputy Prosecuting Attorney

State's Witnesses:

W. NORLOCK N1474 IPD

J. ABDULLAH A3917 IPD

A. MCMILLER

Y. DUNCAN

MARION COUNTY CLERK

KEEPER OF RECORDS, IPD IDENTIFICATION

KEEPER OF RECORDS, INDIANA DEPT. OF CORRECTIONS

IPD FINGERPRINT EXAMINER

MCSD FINGERPRINT EXAMINER

IMCFSa FINGERPRINT EXAMINER

cdh

FILED
APR 19 2004
126
Dawn Braxton
CLERK OF THE
MARION COUNTY COURT

STATE OF INDIANA, COUNTY OF MARION, SS:

PROBABLE CAUSE AFFIDAVIT

A43

Defendant Name: FORD, FREDRICK L

Location of Incident: 1315 LEMANS CT #704

Date of Incident: 04/15/2004

Case Number: 040042804

Slated Charges: FIREARM; POSS BY SERI/CRIMINAL TRESPASS/MA/INTIMIDATION/FC

Arresting Officer: NORLOCK, WILLIAM A IPD

Officer ID: N1474

Agency: Indianapolis Police Department

ON 4/15/04, AT APPROXIMATELY 12:54AM, IN MARION COUNTY, INDIANAPOLIS, INDIANA, MYSELF AND OFFICER ABDULLAH, #A342, WERE DISPATCHED TO 1315 LEMANS CT, #704. WE WERE ADVISED THAT THE CALLER ALISHA MCMILLER'S UNCLE BY THE NAME OF FREDRICK FORD, A BLACK MALE, 39, WAS IN THE RESIDENCE WITH A LOADED SHOTGUN, WAS UNDER THE INFLUENCE OF ALCOHOL AND NARCOTICS AND ADVISED THAT HE WAS GOING TO SHOOT ANYONE THAT KNOCKED ON THE DOOR.

WHEN WE ARRIVED WE TALKED WITH THE VICTIM WHO WAS STANDING IN THE PARKING LOT WHO STATED THAT HER ~~UNCLE CAME TO HER RESIDENCE AND ASKED TO USE THE RESTROOM. AFTER BEING LET INTO THE APARTMENT THE SUBJECT LEFT AFTER USING THE RESTROOM, RETURNING SHORTLY. HE CALLED HER INTO HER DAUGHTER'S ROOM AND TOLD HER THAT HE GOT INTO AN ARGUMENT WITH HER DAUGHTER'S FATHER BY THE NAME OF ANDRE ANDERSON AT THE KESSLER GARDEN APARTMENTS AND WAS SHOOTING AT HIM. HE TOLD HER THAT HE WAS GOING TO SHOOT HIM ON SIGHT AND PUT A BULLET IN HIS HEAD. HE ALSO STATED THAT HE WOULD SHOT ANYONE IN THE HEAD WHO COMES INTO THE ROOM. SHE STATED THAT SHE ASKED HIM JUST TO LEAVE THE APARTMENT, BUT THAT HE REFUSED TO GO AND CHAMBERED A ROUND IN THE GUN, PLACED IT BETWEEN HIS LEGS AND PUT HIS FINGER ON THE TRIGGER. SHE STATED HE HAD TOLD HER EARLIER IN THE CONVERSATION THAT HE HAD SMOKED SOME CRACK COCAINE. SHE STATED THAT SHE BECAME VERY FRIGHTENED FOR HER AND HER THREE SMALL CHILDREN, AGES 9, 3 AND 1, SAFETY. SHE GATHERED HER CHILDREN AND LEFT THE APARTMENT THEN CALLED THE POLICE. IT WAS DECIDED TO HAVE HER CALL THE APARTMENT AND TELL HIM THAT THE POLICE WERE TOWING HIS PICKUP TRUCK IN THE PARKING LOT OUTSIDE IN HOPES THAT HE WOULD COME OUT OF THE APARTMENT WITHOUT THE GUN. AS HE CAME OUT OF THE APARTMENT, HE WAS APPROACHED BY K9 23 OFFICER BAKER AND HIS PARTNER AND ORDERED TO THE GROUND, UPON SEEING THE CANINE HE QUICKLY COMPLIED AND WAS APPREHENDED WITHOUT INCIDENT.~~

MS MCMILLER SIGNED A CONSENT TO SEARCH FORM AND FOUND IN THE DAUGHTER'S BEDROOM WAS A LOADED WITH THE SAFETY OFF 22 CALIBER BOLT ACTION RIFLE, MODEL #81DL22. THERE WAS A TOTAL OF 12 LIVE ROUNDS RECOVERED AT THIS SPOT.

I swear or affirm under the penalties for perjury that the above facts are true to the best of my knowledge and belief and that I learned these facts from another law enforcement officer.

FILED

126 APR 19 2004

Law Enforcement Officer

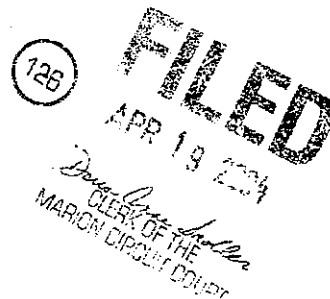
Probable cause found to order warrant of summons issued for defendant

Judge, Marion Superior Court

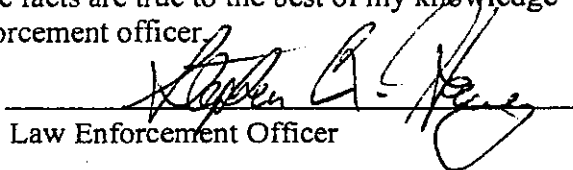
WHILE OUTSIDE LT MOSIER, #A401, READ MR FORD HIS MIRANDA RIGHTS. MR FORD STATED THAT THERE INDEED WAS A FIREARM INSIDE OF THE RESIDENCE. FOUND BY OFFICER ABDULLAH DURING A SEARCH OF MR FORD'S PERSON WAS A SPENT 22 CALIBER SHELL CASING IN HIS LEFT FRONT PANTS POCKET AND ONE LIVE 22 ROUND FOUND IN HIS RIGHT FRONT PANTS POCKET MATCHING THOSE ROUNDS THAT WERE RECOVERED WITH THE RIFLE IN THE DAUGHTER'S BEDROOM. THE FIREARM AND BULLETS UPSTAIRS WERE PHOTOGRAPHED BY EVIDENCE TECHNICIAN JONES, #A421, THAT EVIDENCE WAS COLLECTED BY MYSELF WEARING LATEX GLOVES AND TAKEN TO THE PROPERTY ROOM WITH THE REQUEST THAT THEY BE FINGERPRINTED.

MR FORD WAS PLACED UNDER ARREST AND CHARGED WITH A SERIOUS FELON IN POSSESSION OF A FIREARM. MR FORD HAS A PRIOR ROBBERY AND FIREARMS CONVICTION UNDER CASE #94023538, CONVICTION DATE OF 8/4/95, OUT OF COURT ROOM #G03.

DUE TO THE VICTIM'S FEAR FOR HER FAMILY'S SAFETY, THIS OFFICER AND MS MCMILLER ARE REQUESTING THAT A PROTECTIVE ORDER BE PLACED AGAINST MR FORD FOR THIS ADDRESS AND MS MCMILLER'S FAMILY.



I swear or affirm under the penalties for perjury that the above facts are true to the best of my knowledge and belief and that I learned these facts from another law enforcement officer.


Law Enforcement Officer

Probable cause found to order warrant or summons issued for defendant

Judge, Marion Superior Court

STATE OF INDIANA
MARION COUNTY, ss:

IN THE MARION SUPERIOR
CRIMINAL COURT 4
CRIMINAL DIVISION, ROOM W203

STATE OF INDIANA

vs.

Vincent McCurtis B/Male
DOB 8/20/1993

Cause No: 49G04-1602-F5-006298

INFORMATION

COUNT I

BATTERY AGAINST A PUBLIC SAFETY
OFFICIAL

I.C. 35-42-2-1(b)(1)

A LEVEL 5 FELONY

COUNT II

RESISTING LAW ENFORCEMENT

I.C. 35-44.1-3-1(a)(1)

A CLASS A MISDEMEANOR

COUNT III

BATTERY RESULTING IN BODILY
INJURY

I.C. 35-42-2-1(b)(1)

A CLASS A MISDEMEANOR

COUNT IV

DOMESTIC BATTERY

I.C. 35-42-2-1.3(a)

A CLASS A MISDEMEANOR

On this date, the undersigned came before the Prosecuting Attorney of the Nineteenth Judicial Circuit and, being duly sworn (or having affirmed), stated that in Marion County, Indiana

COUNT I

On or about February 12, 2016, Vincent McCurtis did knowingly touch Christopher Carlson, a public safety official, in a rude, insolent, or angry manner, to-wit: kicked at and against the person of Christopher Carlson with feet, while said official was engaged in the execution of his official duties, resulting in bodily injury to the other person, specifically pain to Christopher Carlson;

COUNT II

On or about February 12, 2016, Vincent McCurtis did knowingly forcibly resist, obstruct or interfere with Christopher Carlson, a law enforcement officer, while said officer was lawfully engaged in his duties as a law enforcement officer;

COUNT III

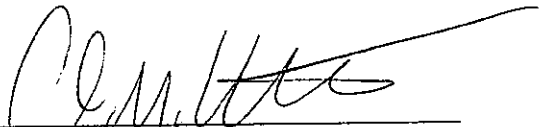
On or about February 12, 2016, Vincent McCurtis did knowingly touch Kristen White in a rude, insolent, or angry manner, to-wit: hit at and against the person of Kristen White with hands, resulting in bodily injury to the other person, specifically pain to Kristen White;

COUNT IV

On or about February 12, 2016, Vincent McCurtis did knowingly touch Kristen White, who is or was the spouse of Vincent McCurtis, is or was living with Vincent McCurtis as if a spouse of Vincent McCurtis, or has a child in common with Vincent McCurtis, in a rude, insolent, or angry manner, to wit: hit at and against the person of Kristen White with hands, and further said touching resulting in bodily injury to the other person, specifically pain to Kristen White;

all of which is contrary to statute and against the peace and dignity of the State of Indiana.

I swear or affirm under penalty of perjury as specified by I.C. 35-44-2-1 that the foregoing representations are true.

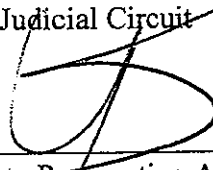


Affiant

February 17, 2016
Date

State's Witnesses:
C. Carlson 31330 IMPD
C. White 30465 IMPD
M. Harmon 30444 IMPD
C. Gibson 30717 IMPD
Kristen White

TERRY R. CURRY
Marion County Prosecutor
19th Judicial Circuit



Deputy Prosecuting Attorney

AFFIDAVIT FOR PROBABLE CAUSE

STATE OF INDIANA, COUNTY OF MARION, SS:

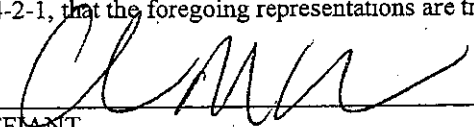
Detective Christopher White swears (affirms) that:

3232 Baltimore Ave

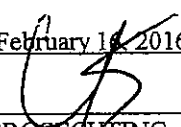
On February 12, 2016 at approximately 2235hrs. I officer Chad Gibson of the IMPD was dispatched to [REDACTED] I had previously been to this address a few minutes before because the male had kicked in the door and was intoxicated. I advised the female that there was nothing we could do since he lived in the house and was intoxicated in his own home. Upon arrival I spoke to the female complainant later identified as Kristen White. She stated her boyfriend later identified as Vincent Mccurtis had chased her down the street while she was trying to leave. She stated that he reached into the passenger side window of the car and punched her in the right side of her face near her cheek. She stated he did not use a closed fist, but believed it was more of a palm strike. She did have a complaint of pain, but no visible injuries. Kristen White stated they have no children in common and have been dating for one year and living together for a few months. There were no children present when this happened. She stated that there have been a few time she has reported the domestic violence within their relationship, however there is no protection order in place at this time.

While I was speaking with her Mr. Mccurtis came running outside very intoxicated and stood next to my car and put his hands behind his back and said "lets go". I then placed handcuffs on him. Officer Harman then put him in his car so I could finish the investigation and so Mr. Mccurtis could stay out of the cold weather. I asked Mr. Mccurtis what happened and he stated nothing happened and would ramble on about various unrelated things. While furthering my investigation looking for neighbors that my have been possible witnesses and interviewing the other female in the car who demanded to stay out of it. Mr. Mccurtis became very loud and angry. I could hear him from inside officer Harman's car from down the street. Later officer Harman and Carlson told me that while in Officer Harman's patrol car Officer Harman asked Mr. Mccurtis for his last name to which Mr. Mccurtis replied "8-20-93". Mr. Mccurtis then began asking Officer Harman if he could go home and go to the store. Officer Harman told Mr. Mccurtis that he was under arrest. Mr. Mccurtis then began yelling at Officer Harman stating that "I am going to get you." Mr. Mccurtis stated to Officer Harman "I am going to find you and get you". Officer Harman asked Mr. Mccurtis if that was a threat and he stated "yes". Mr. Mccurtis continued to yell toward Ms. White as well as at Officer Harman for several minutes. Officer Christopher Carlson arrived to assist and walked to the passenger side of Officer Harman's patrol car as he heard Mr. Mccurtis yelling. Officer Harman rolled down his passenger window to speak with Officer Carlson. While speaking with Officer Carlson Mr. Mccurtis continued to yell. At one point Mr. Mccurtis lunged toward Officer Harman yelling within one foot of Officer Harman's face that he was going to "get" Officer Harman. Mr. Mccurtis then leaned back in the seat and stated "here it comes" then lunged toward Officer Harman with an open

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.


AFFIANT

DATED: February 16, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

JUDGE

Affidavit for Probable Cause

From: Detective Christopher White

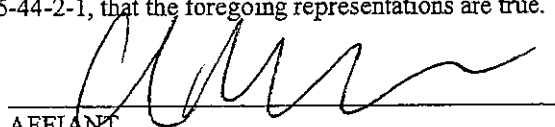
mouth. Officer Harman fearing that Mr. Mccurtis was going to bite him exited his patrol car. Mr. Mccurtis was throwing himself against the door to Officer Harman's patrol car and attempting to pulling against his handcuffs. Officer Harman feared that Mr. Mccurtis might injure himself. Mr. Mccurtis stated several times that he was not going to jail.

Officer Carlson and Officer Harman removed Mr. Mccurtis from Officer Harman's patrol car. Officer Harman and Officer Carlson both ordered Mr. Mccurtis to sit on the ground and Mr. Mccurtis continued to yell at Officer Harman and Officer Carlson. Mr. Mccurtis refused to sit down. Officer Harman and Officer Carlson assisted Mr. Mccurtis into a sitting position by lifting on his legs and placing him in a seated position. Mr. Mccurtis would still not stop yelling even after being told repeatedly by Officers to stop yelling. Mr. Mccurtis attempted to stand back up getting all the way to his feet. Officer Harman and Officer Carlson used a combination of a leg sweep and lifting on Mr. Mccurtis pants to place him back on the ground. Mr. Mccurtis still continued to yell insults at Officers threatening "I am going to get you". Mr. Mccurtis stood up a third time pulling away from Officers forcefully in an attempt to get away from Officer Harman and Officer Carlson. As Officer Harman and Officer Carlson were struggling to get Mr. Mccurtis back onto the ground I arrived and grabbed Mr. Mccurtis around the back of his head pulling Mr. Mccurtis to the ground as Officer Harman swept Mr. Mccurtis right leg. Mr. Mccurtis landed on his right side on the ground. Mr. Mccurtis then began kicking forcefully striking Officer Carlson near his left knee causing pain and discomfort to Officer Carlson. Mr. Mccurtis continued to kick striking Officer Harman and myself in the legs several times causing pain and discomfort to Officer Harman and myself. Officers were attempting to keep their weight on Mr. Mccurtis in an attempt to stop him from struggling hurting himself or officers. In an attempted to stop Mr. Mccurtis from assaulting officers I attempted to deploy his issued CS spray. My spray would not discharge. Officer Carlson at this time handed me his issued CS Spray since I was closest to Mr. Mccurtis face, at which time I deployed a one to two second burst of CS to Mr. Mccurtis brow above his eyes. Mr. Mccurtis continued to lift officers up in an attempt to stand and continued to kick at officers. I again deployed a one to two second burst of CS.

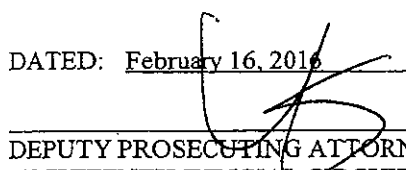
During this struggle Officer Carlson stated that he was kicked at least 10 times in the left shin area causing a complaint of pain. I was kicked approximately 6 times in my right thigh and knee area causing a complaint of pain. Officer Harman was kicked one time in his left lower leg. Mr. Mccurtis continued to resist and refused to get into the wagon, making us lift him up and slide him in the best that we could. Officer Harman's issued patrol car received a dent in the passenger side door of his patrol car. Photos were taken of all officers as well as the damaged patrol car. It should be noted that all officers on scene were wearing full police uniforms and arrived in fully marked police vehicles. During the entire struggle we continued to tell Mr. Mccurtis to quit resisting and to relax. He never did.

All events occurred in the city of Indianapolis, county of Marion, state of Indiana.

I swear (affirm), under penalty of perjury as specified by IC 35-44-2-1, that the foregoing representations are true.


AFFIANT

DATED: February 16, 2016


DEPUTY PROSECUTING ATTORNEY
NINETEENTH JUDICIAL CIRCUIT

JUDGE

STATE OF INDIANA
MARION COUNTY, SS:

IN THE MARION SUPERIOR COURT
CRIMINAL DIVISION

THE STATE OF INDIANA)

vs.)

Frederick Ford)

SSNDL: 312-78-3099)

DOB: 9/2/65)

Court Cause No.: 49F150303F105106

INFORMATION
CRIMINAL MISCHIEF

CLASS D FELONY
I.C. 35-43-1-2

68

FILED

MAR 31 2003

Doretha McMiller
CLERK OF THE
MARION CIRCUIT COURT
File Stamp

The undersigned affiant does hereby swear or affirm under the penalties of perjury that:

On or about 3/29/03, in Marion County, State of Indiana, at
1315 Lemans Ct. location, the following
named defendant, Frederick Ford, did without the consent of
Doretha McMiller, recklessly or knowingly damage that
person's property, to wit: 2000 Mitsubishi
by Kicking in the roof
of her car. and caused a
pecuniary loss of at least two thousand five hundred dollars (\$2500).

All of which is contrary to the laws of the State of Indiana.

Signed *m. p.*

Printed _____

Approved *[Signature]*

Deputy Prosecuting Attorney
Nineteenth Judicial Circuit

State's Witnesses:

Lashowski / # 20423

Doretha McMiller

Revised 12/02/98

STATE OF INDIANA
MARION COUNTY ss:

IN THE SUPERIOR COURT

FILED

STATE OF INDIANA

68

MAR 31 2003

Doris Ann Sadler
CLERK OF THE
MARION CIRCUIT COURT

INFORMATION

DISORDERLY CONDUCT
IC 35-45-1-3
CLASS B MISDEMEANOR

vs.

Fredrick Ford

The undersigned affiant, does hereby affirm under penalty of perjury that:

On March 29-2003, at 1:54 pm in Marion County, State of Indiana

Fredrick Ford recklessly:

(1) Engaged in fighting or in conduct that resulted in or was likely to result in serious bodily injury to a person or substantial damage to property, specifically: damage to sister's vehicle by jumping on the roof

(2) Made unreasonable noise by: shouting obscenities and drawing a crowd

_____, and continued to do
so after being asked to stop.

(3) Disrupted a lawful assembly of persons assembled to _____
by _____

All of which is contrary to the law of the State of Indiana.

State's Witnesses:

Laskowski, N. 20423, IPD
Burgess, M. B9836, IPD

X *Nicole Laskowski*
Nicole Laskowski
Printed Name

Approved

m. P.
Deputy Prosecuting Attorney
Nineteenth Judicial District

STATE OF INDIANA, COUNTY OF MARION, SS:

PROBABLE CAUSE AFFIDAVIT

A43

Defendant Name: FORD, FREDERICK L

Location of Incident: 1315 LEMANS CT #704

Date of Incident: 03/30/2003

Case Number: 030036081

Slated Charges: DISORDERLY CONDUCT/M/CRIMINAL MISCHIEF/FD

Arresting Officer: LASKOWSKI, NICOLE M IPD

Officer ID: 20423

Agency: Indianapolis Police Department

ON MARCH 29, 2003, AT 1:54PM, I, OFFICER NICOLE LASKOWSKI, WAS DISPATCHED TO 1315 LEMANS CT, #704, ON REPORT OF A DOMESTIC DISTURBANCE BETWEEN BROTHER AND SISTER. WHEN I ARRIVED ON THE SCENE, I SPOKE WITH THE VICTIM, WHO ADVISED THAT HER BROTHER HAD KICKED IN THE ROOF OF HER CAR. DAMAGE WAS ESTIMATED AT \$2,500. I PLACED THE BLACK MALE, IDENTIFIED AS FREDERICK FORD, DOB 9-2-65, SSN 312-78-3099, UNDER ARREST FOR CRIMINAL MISCHIEF.

MR FORD STATED THAT HE DID KICK IN THE ROOF OF THE VEHICLE AND HE ADVISED ME HE WOULD DO IT AGAIN. AT THIS TIME MR FORD WAS SHOUTING OBSCENITIES AND DRAWING A CROWD. I ADVISED MR FORD SEVERAL TIMES TO BE QUIET AND HE REFUSED. MR FORD WAS ALSO ARRESTED FOR DISORDERLY CONDUCT. MR FORD WAS TRANSPORTED TO LOCKUP BY MIDDLE SHIFT WAGON DRIVER BOLLING, ID #20007.

EVIDENCE TECH PEATS, ID #P4704, TOOK PHOTOS OF THE VEHICLE, A BLACK MITSUBISHI MIRAGE, #95S9911.

ALL THE ABOVE EVENTS TOOK PLACE IN INDIANAPOLIS, MARION COUNTY, INDIANA.

FILED

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MAR 31 2003

Doris Ann Miller
CLERK OF THE
MARION CIRCUIT COURT

I swear or affirm under the penalties for perjury that the above facts are true to the best of my knowledge and belief and that I learned these facts from another law enforcement officer.

[Signature]
Law Enforcement Officer

Probable cause found to order warrant or summons issued for defendant

Judge, Marion Superior Court